agileintelligence

AGILE INTELLIGENCE RESEARCH REPORT · SITE V1.39 · ASSESSMENT V2.79 · PROJECT FACTS VERIFIED TO 14 OCTOBER 2026 · LAST UPDATED 18 OCTOBER 2026

# pax silica and the philippines

An independent review of the Economic Security Zone proposed at New Clark City in Tarlac, on 1,618.74 hectares. What has actually been signed, what is only being claimed, what the land and the grid can really support, and what the Philippines gains or loses either way.

Published by Agile Intelligence · under human editorial direction.

updated daily · new information is adversarially verified before anything here changes · maintained by AI under human editorial direction

read the six findings →

explore the exhibits

**US$0**
INVESTMENT LEGALLY COMMITTED AT THE CUTOFF

**14 / 16**
IMPLEMENTATION GATES STILL OPEN

**−12.1**
NET SENTIMENT ACROSS 50,424 SOFTWARE-LABELLED MENTIONS TO 17 OCTOBER 2026; COLLECTION-WIDE ACCURACY NOT ESTABLISHED, SEE EXHIBIT NOTE

**+2.5pp**
NET NEW TARIFF ON PHILIPPINE GOODS FROM

THE COUNTERPARTY, 24 JUL 2026

COUNTDOWN TO THE FRAMEWORK SIGNATURE WINDOW

# 73 DAYS · BCDA'S EXPECTED WINDOW, BEFORE THE END OF 2026

BCDA said on 13 October that it expects signing before the end of 2026; it neither reaffirmed nor expressly withdrew the previously reported November target. This report sets seven conditions before an instrument creates substantive rights; a strictly non-binding framework is acceptable only with every express safeguard in the two-branch rule. **none is met** as at the latest verification.

THE ASSESSMENT AT A GLANCE

Neither endorsement nor rejection: seven preconditions before any instrument creating substantive rights is signed, and express safeguards for a strictly non-binding framework.

## 1,618.74 ha

BCDA-OWNED LAND OFFERED — 17.1% OF NEW CLARK CITY, CAPAS AND BAMBAN, TARLAC

## nothing binding

NOT FINANCED, CONTRACTED OR PERMITTED AT PROJECT LEVEL; FOURTEEN OF SIXTEEN GATES OPEN

## US$40–70 billion · 130,000–190,000 jobs

HEADLINE CLAIMS THAT NO PUBLISHED MODEL RECONCILES

## 90 MLD water

RAINWATER CAPTURE NEEDS 90%–193% OF THE ENTIRE SITE UNDER PLAUSIBLE ASSUMPTIONS

## 3 GW power

ABOUT A FIFTH OF LUZON PEAK DEMAND; THE GRID RAN A 373 MW DEFICIT IN MAY 2026

## before end-2026

BCDA'S EXPECTED SIGNING WINDOW (13 OCT REPLY); NOVEMBER, THE PREVIOUSLY REPORTED TARGET, NEITHER REAFFIRMED NOR WITHDRAWN — SEVEN PRECONDITIONS SET, NONE MET

LATEST REPORTING

## in the news

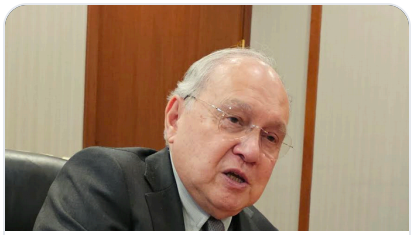
newest item 16 October 2026 · 10 items · checked daily, verified before listing




CNA · 16 OCTOBER 2026

## Philippines eyes billions in investment from Pax Silica tech hub, but farmers fear for their livelihoods

read at channelnewsasia.com →



GMA NEWS ONLINE · 16 OCTOBER 2026

## All Pax Silica issues to be 'properly addressed', says envoy

read at gmanetwork.com →



THE PHILIPPINE STAR · 15 OCTOBER 2026

## Trump visiting Manila for ASEAN Summit in November

read at philstar.com →




UM NEWS · 14 OCTOBER 2026

## Filipino United Methodists question AI hub

read at umnews.org →



MANILA BULLETIN · 13 OCTOBER 2026

## Pax Silica won't put local livelihood, burial sites at risk—PBBM

read at mb.com.ph →



GMA NEWS ONLINE · 13 OCTOBER 2026

## BCDA submits Pax Silica legal framework to Marcos

read at gmanetwork.com →



GMA NEWS ONLINE · 12 OCTOBER 2026

### Marcos: PH serious on nuclear energy amid future power demands of AI, data centers

read at gmanetwork.com →



THE MANILA TIMES · 10 OCTOBER 2026

### Gatchalian: Prepare workers for Pax Silica

read at manilatimes.net →



THE PHILIPPINE STAR · 9 OCTOBER 2026

### Marcos: Philippines ‘terribly excited’ about Pax Silica

read at philstar.com →




POLITIKO · 5 OCTOBER 2026

### Legarda urges caution on Pax Silica project, demands protection for Aeta communities

read at politiko.com.ph →

sources · linked publishers; each item opens the original article. Headlines are the publishers’ own claims, not this report’s findings.

## 01 six findings

## the instrument does not describe the project

01

The published BCDA offer proposes a bilateral coordination office and states that the property "shall be used exclusively" for five coordination functions. It contains no reference to semiconductor packaging, data centres, mineral processing, or private locators. The public prospectus has no published legal basis.

**0**

REFERENCES TO INDUSTRY IN THE OPERATIVE INSTRUMENT

## the headline figures do not reconcile

02

Pairing US$40–70bn with 130,000–190,000 direct jobs is unreconciled and jointly implausible: constructible on paper, but the one illustrative mix this report constructed needs more back-end employment in this one site than the whole national industry supports today, and no published mix reconciles them. The claimed PHP 68–75bn of annual withholding tax, which BCDA has confirmed is payroll withholding, implies average pay of PHP 2.13m at an assumed 20% effective rate and 160,000 jobs, 2.4 times what a Philippine semiconductor engineer earns. The named anchor is expected to generate "thousands."

**2.37×**

EXPORTS VS. 2025 EXPORT BOOK · PERIOD UNSPECIFIED, NOMINAL SCALE ONLY

## water and power are unsolved, not solved

03

Harvesting 90 MLD from rainfall needs a catchment of 1,460–3,129 hectares, or 90% to 193% of the site. 3 GW is 19.2% of the DOE's 15,600 MW projection for 2026 Luzon peak demand and 20.6% of the 14,534 MW actually recorded by mid-2026, on a grid that ran a 373 MW deficit under red alert in May 2026. The DFC is

## the counterparty relationship is asymmetric

04

On 24 July 2026 a US 12.5% forced-labour tariff on Philippine goods took effect. Narrower than the headline: semiconductors and other Section 232 articles are exempt, and it replaced an expiring 10% measure, so the net increment is about +2.5 points. The direction is what matters.

funding an LNG feasibility study, not a solar one.

**15,000 ha**

LAND A SOLAR-POWERED 3 GW WOULD NEED. THE SITE IS 1,619.

The Philippines is being asked to grant land and rent forgone, for a project that would also require substantial water and electricity whose sources, allocation, price, infrastructure and cost bearer remain unresolved, in exchange for a non-binding declaration and feasibility studies.

**+2.5pp**

NET TARIFF INCREMENT, BEFORE ANY FRAMEWORK IS SIGNED

05

## provider-labelled sampled net sentiment was most negative in july, and on water, land and governance

Under the listening provider's labels, net sentiment among 6,437 mentions in its stated 10% sample was −1.0 before the Philippines' accession (December to 15 April) and −24.8 after it (16 April to 27 July). July, at −34.8, was the most negative month in the record. Among the eight reported, overlapping keyword-matched topic categories, net sentiment was near zero for AI and technology (−1.5), geopolitics and security (0.0), jobs and economy (+2.6), and minerals and mining (+2.3). The three lowest values were governance and corruption (−54.4), land and indigenous (−50.3), and water and environment (−43.8). This card

06

## the strategic case is genuine, and some criticism is wrong

Comparative non-entanglement with Chinese capital is a real and time-limited asset. BPO at 7.4% of GDP faces AI displacement. And some of the most widely circulated environmental critiques do not survive scrutiny: silicon rather than nickel is the semiconductor input, and the light-pollution claim, while a legitimate and mitigable screening item, is substantially overstated as popularly framed.

previously highlighted the report's classifier-labelled historical series. Following a 17 September 2026 audit, the report withdrew its explanation of that series' positive early-month levels and its use of the classifier-labelled April–May decline as evidence against the provider-labelled May recovery. The audit did not examine the historical mentions. These are machine-labelled sampled mentions, not a measure of the Philippine public's views. The running exhibit above tracks the conversation daily on software labels whose collection-wide accuracy is not established.

**−34.8**

PROVIDER-LABELLED NET SENTIMENT IN JULY AMONG SAMPLED MENTIONS

**7.4%**

OF GDP: THE BPO EXPOSURE THAT MAKES AN ALTERNATIVE ENGINE URGENT

02

## node, or not

What matters is whether the terms on the table at signature beat the alternative. Both columns below are real; neither is costless.

PATH ONE

### as a pax silica node

WHAT THE PHILIPPINES GAINS

> A named position inside an allied supply chain while comparative non-entanglement with Chinese capital is still a credible, time-limited asset.

A credible upgrade path from back-end assembly into advanced packaging, where industry value is migrating as transistor scaling slows.

An alternative growth engine as BPO, at 7.4% of GDP, faces AI-driven displacement.

BCDA's projected PHP 60bn of lease income over 25 years, plus the option value of first-mover designation in a network intended to span continents.

Access to allied capital, the Stanford Foundry School curriculum, and Luzon Economic Corridor infrastructure momentum.

WHAT IT CARRIES OR FORGOES

1,618.74 hectares committed, possibly for 99 years, at a rent that is currently "to be discussed."

3 GW on a grid that ran a 373 MW deficit under red alert three months before this report.

65–90 MLD of what is, at that scale, watershed water, in a Type I climate with a pronounced dry season.

An unquantified tax expenditure under CREATE MORE, including a 100% additional deduction on power for a multi-gigawatt load.

A named role in a strategy whose own fact sheet states the objective of displacing rival supply chains, borne physically by the Philippines.

PATH TWO

## outside pax silica

WHAT THE PHILIPPINES GAINS

No 99-year commitment, no grid increment, no watershed claim, and it avoids the incremental targeting exposure associated with hosting the proposed node; broader exposure may remain because the Philippines has already signed the Pax Silica Declaration.

The same political attention and institutional bandwidth, and any public resources the zone would otherwise absorb, could go toward closing the ~50% industrial electricity cost gap with Indonesia and Vietnam, which would benefit every existing locator, not one zone; prospective private zone capital would not itself be redirected.

Freedom to lead with minerals leverage rather than land concessions, on the Indonesian model.

Supplier development and workforce programmes for an electronics base that already earns US$46bn a year.

WHAT IT CARRIES OR FORGOES

Forgone lease income of BCDA's projected PHP 60bn over 25 years, with a present value of about PHP 25.6bn.

Forgone option value on a strategic position, and reputational cost with Washington.

The allied-advantage window is time-limited and closes without being used.

The manufacturing gap keeps widening while Malaysia moves into semiconductors, Thailand into automotive and Indonesia into nickel processing.

THE ASSESSMENT'S OWN POSITION

**Neither endorsement nor rejection. The Philippines should decline to sign an instrument creating substantive rights before the seven conditions are met; a strictly non-binding framework is acceptable only with every express safeguard in the two-branch rule. Its legal leverage continues until substantive rights are created, though the November target can increase political pressure: it holds the asset, it has not yet signed, and the counterparty wants a deliverable for a presidential visit tied to the 80th anniversary of bilateral relations. A deadline set by another country's summit calendar is the worst possible reason to accept undetermined terms.**

03

## the exhibits

Fourteen exhibits: quantitative sensitivities, schematic comparisons and monitoring indicators. Sourced inputs, assumptions and illustrative

plotting proxies are distinguished below. Move the controls to explore the stated arithmetic.

EXHIBIT 01 · WATER

## the catchment does not fit on the site

$$A = V \div (R \times C)$$

$$V = \text{demand} \times 365 \times 1{,}000\ m^3$$

**daily demand** 90 MLD

BCDA states 65–90 MLD demand and 120 MLD design capacity, expandable "to as much as 300 million liters per day through advanced technology".

**annual rainfall** 1,900 mm

Site-specific rainfall data are unpublished. The range covers normal rainfall for this part of Central Luzon.

**runoff coefficient** 0.55

0.90 happens only if nearly the whole site is paved over, which contradicts the promise to keep 40% of it open space.

CATCHMENT REQUIRED

**3,144** ha

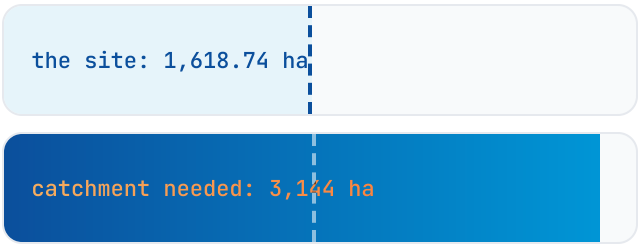
AS A SHARE OF THE SITE

**194%**

DRY-SEASON STORAGE, 180 DAYS

**16.2** million m³

BOTH BARS ON ONE SCALE · 0 TO 3,332 HA




At these parameters the required catchment exceeds the parcel. Supply would depend on a shared watershed resource; the effect on existing users cannot be determined without a basin water balance and environmental-flow analysis.

The arithmetic is a screening test, not a design verdict. At 90 million litres a day the catchment range is 90–193% of the parcel before competing land uses and seasonal storage; sufficiency has not been

demonstrated. At 65 million, favourable assumptions reduce the required area but do not establish a workable design. What taking that water would do to people downstream is a separate question, and the maths cannot answer it. Holding water back could capture rainy-season flow that currently runs to the sea unused. It could equally cut the supply people depend on in the dry months. Telling those two apart needs a study of the whole river system, including how much water it has to keep flowing to stay healthy. No such study was identified in the reviewed public record. Until one is published, the burden of proof sits with BCDA. BCDA has since described an expansion path to 300 MLD, at which every figure here scales by 3.3 times, to a required catchment of roughly 4,900–10,400 hectares. The storage figures are rough upper limits for a first check, not an engineering design.

EXHIBIT 02 · POWER

## 3 gigawatts has to come from somewhere

**share of energy served by solar** 20%

all gas — all solar

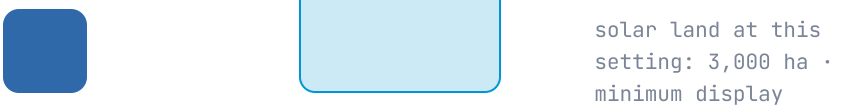
**3,000 MW**
SOLAR NAMEPLATE REQUIRED

**3,000 ha**
LAND AT THE ACWA BENCHMARK OF 1 HA/MW

**2,400 MW**
AVERAGE GAS-ENERGY EQUIVALENT IN THIS SCENARIO · NOT FIRM CAPACITY

**7.0 Mt**
ILLUSTRATIVE $CO_2$ PER YEAR IF THE NON-SOLAR ENERGY IS GAS-FIRED

SOLAR LAND REQUIREMENT, TO SCALE



the pax silica site: 1,619 ha

all of new clark city: 9,450 ha

solar land at this setting: 3,000 ha · minimum display marker; not to scale near zero

At this low annual-solar share, most energy in this screen comes from other sources. That is not a finding about the eventual mix: the DFC-funded ≥1,200 MW LNG study and the dedicated plant of unspecified fuel that proponents said on 9 August 2026 they were studying are feasibility work, not committed plans, and no integrated, project-specific final generation mix or off-site renewables-plus-firming plan was located. This tests annual energy and land, not hourly adequacy.

THE REGULATOR'S OWN VERDICT · 27 JULY 2026

**“If you put it on the grid, and then suddenly this 3 gigawatt demand will be lost, the grid will just shut down... It’s too dangerous for our usual consumers.”**

ENERGY SECRETARY SHARON GARIN, INTERVIEW WITH RAPPLER, 27 JULY 2026

**100–200 MW**
THE CEILING THE GRID CAN ABSORB

**3–7%**
OF THE PROJECT’S EVENTUAL DEMAND

**1,300 MW**
SHORT ON PAPER, COUNTING SOLAR NAMEPLATE AND A STUDY-STAGE LNG OPTION · NOT FIRM CAPACITY

**3–5 yrs**
TO BUILD CONVENTIONAL GENERATION; ABOUT 10 FOR NUCLEAR

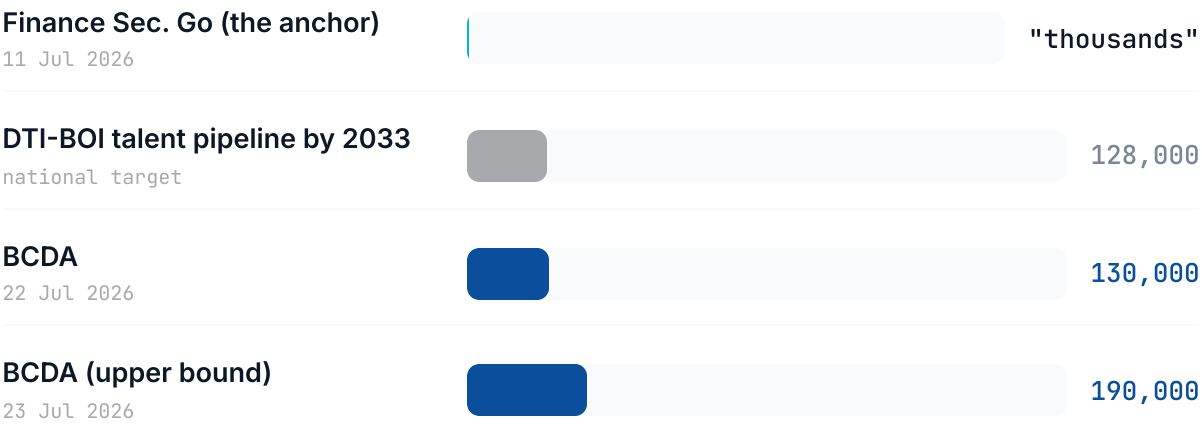
Her preferred configuration is a stand-alone system with its own generation, renewable or gas. On 9 August BCDA said proponents are studying a dedicated power plant so the facility would not jeopardise residential supply — directionally consistent with the regulator’s own-generation requirement, though a study establishes neither a stand-alone configuration nor capacity. The interview puts the load at about 19% of Luzon’s projected 2026 peak, matching this report’s figure by an independent route, and notes it is close to the entire Visayas grid. The 1,300 MW is a paper shortfall, not a gap between committed and required

capacity: it is what is left after setting 500 MW of ACWA solar nameplate and the 1,200 MW LNG option, still at feasibility-study stage, against the 3,000 MW required. Neither figure is firm committed capacity, and a 500 MW solar plant does not produce 500 MW at night, so the firm shortfall on the record is larger. The LNG option carries a logistics problem of its own: it arrives by ship, but Clark has an airport, not a seaport, so the gas must land at a coastal terminal and reach the plant by an inland delivery route that no published document specifies. The unsolicited Subic–Clark pipeline proposal is for jet fuel, a liquid fuel, and nothing on the record identifies it as that route. No phase-specific energisation schedule has been published against BCDA's Q1 2028 site-development target, so compatibility with the 3–5-year lead time for conventional generation remains a conditional risk rather than a settled shortfall. What changes here is not the direction of the finding but its standing: the department that would have to approve grid connection has said publicly that it will not approve it at scale.

Benchmark: BCDA's own signed ACWA Power lease, 500 hectares for up to 500 MW of solar plus storage, i.e. 1 ha per MW of nameplate. Solar at 20% capacity factor. The Department of Energy projects Luzon's 2026 peak demand at 15,600 MW. The highest peak actually recorded by mid-2026 was 14,534 MW. So a 3 GW load is 19.2% of the projection, and 20.6% of the real maximum. On 15 May 2026 the grid ran a 373 MW deficit under red alert with 4,106 MW unavailable to the grid, including 30 plants on forced outage. The US DFC has funded a feasibility study for a ≥1,200 MW LNG terminal and plant at the site.

EXHIBIT 03 · EMPLOYMENT

## five figures in fifteen days, no new study

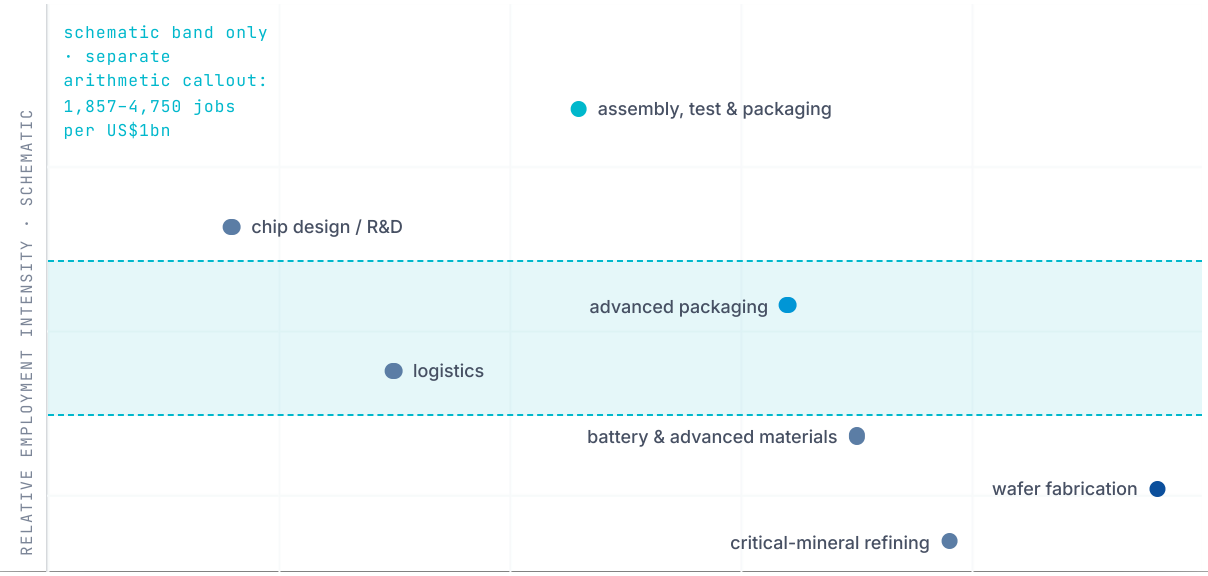


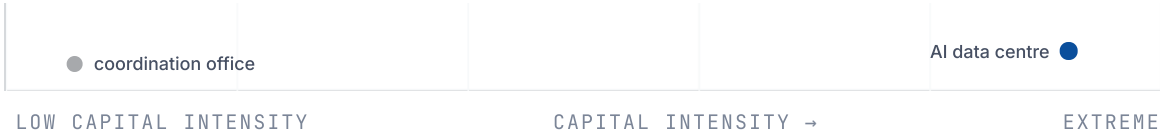
| | | |
|---|---|---|
| **Amb. Romualdez**<br>26 Jul 2026 | | 300,000 |
| **Labor Sec. Tolentino**<br>22 Jul 2026 | | "nearly one million" |
| **Subic Freeport (4,744 locators)**<br>2025 actual | | 171,653 |
| **Intel Philippines at peak**<br>1996–2009 | | ~3,000 |

The only bottom-up figure on the record is the Finance Secretary's own "thousands of jobs" from the named anchor. Against it, DTI-BOI's national target is to *produce* 128,000 engineers and technicians for the whole Philippine semiconductor and electronics industry by 2033, a talent-pipeline target rather than an employment ceiling. (That deadline is corrected from 2028 in v2.46: BOI published 2028 in August 2024 and has repeatedly published 2033 since, without an identified explanation of the change.) The site-jobs figure and national skills target are comparable in scale, not interchangeable populations: not every site job requires an engineer or technician. The bars use 5,000 for “thousands” and 950,000 for “nearly one million” solely as illustrative plotting proxies, not verified headcounts.

EXHIBIT 04 · THE CENTRAL CONTRADICTION

## capital-intensive, or job-intensive. unreconciled on any published information.






Pairing US$40–70bn with 130,000–190,000 direct jobs implies 134–196 jobs per developable hectare, a labour-intensive light-manufacturing density. This points toward labour-intensive activities but does not establish the final activity mix. The scatter positions and shaded band are schematic, not sourced jobs-per-dollar coordinates. The BCDA interval is an arithmetic callout, not a calibrated vertical scale; the named anchor's broad manufacturing description does not fix its position quantitatively.

EXHIBIT 05 · THE PARCEL

## 1,618.74 ha inside new clark city




| | |
|---|---|
| Parcel | 1,618.74 ha |
| Share of New Clark City | 17.1% |
| Municipalities | Capas & Bamban, Tarlac |
| Rent, years 1–2 | PHP 0 |
| Rent from year 3 | "To be discussed" |

EXHIBIT 06 · IMPLEMENTATION

## fourteen of sixteen gates are open

| | | |
|---|---|---|
| ✓ | Political declaration signed | 16 Apr 2026 |
| ✓ | Land offered | offer 9 Apr 2026; US conditional acceptance in principle 16 Apr 2026, unexecuted |
| ☐ | Framework agreement | draft exchanged; target Nov 2026 |
| ☐ | Supplemental Agreement (boundaries and terms) | no executed version located in the reviewed public record |
| ☐ | Parcel legally defined; Annex A published | referenced, absent; FOI request refused 10 Jun 2026 |
| ☐ | Master plan for the parcel published | none |
| ☐ | Project-specific | DENR: "will be required"; on 26 Aug 2026 DENR reported no Pax Silica EIA application or project description had reached the EMB. A zone- |

| | |
|---|---|
| Lease term | Not stated |
| Annex A map | Referenced, absent |

Schematic only. The parcel's metes and bounds have never been published, Annex A of the BCDA letter is referenced in the document and absent from it. Every substantive question about this project is downstream of a map that does not exist publicly.

| | | |
|---|---|---|
| ☐ | EIS / ECC | level 2019 land-development ECC exists (ECC-OL-R03-2019-0304) but names none of the announced activities |
| ☐ | Cumulative impact assessment | none |
| ☐ | Water balance study published | none |
| ☐ | Water permit / abstraction volume set | NWRB opined without publishing |
| ☐ | Grid interconnection study or agreement | none |
| ☐ | Lease rate from Year 3 set | "To be discussed" |
| ☐ | Lease term set | no term stated |
| ☐ | Binding investor commitment | Foxconn a prospect; ~30 letters |
| ☐ | Financing committed | DFC funded a feasibility study only |
| ☐ | Procurement / construction | target Q1 2028 |

EXHIBIT 07 · SCENARIOS

## five futures and their assessed likelihoods

**35%**

PLAUSIBLY 25–45%

## proceeds, but narrower, slower and less capital-intensive

The most likely single outcome. A framework is signed, but what gets built is a conventional advanced-electronics and logistics park with an assembly-test-and-packaging core, a modest data-centre component, and a coordination office. Perhaps US$5–15bn over a decade; 15,000–40,000 direct jobs. Economically this is likely positive, a good outcome for the Philippines, if the activity mix, utility costs and incentive terms hold up, which no published model yet shows, and water and power demand need not fall in proportion. Politically it is damaging, because the gap will be measured against 190,000 jobs and US$70bn. This is a good outcome that is likely to be reported as a failure, which is the strongest argument for setting honest expectations now.

TRIGGERS

- Investors decline the power and water risk
- The AI capex cycle cools
- The Philippines fails to resolve electricity costs
- Foxconn proceeds at ordinary scale, its own described activity points here

EARLY WARNING

- Binding locator agreements tracking US$5–15bn and 15,000–40,000 direct jobs, concentrated in ATP, electronics and logistics
- A published activity plan assigning most land and capital to those uses, with a quantified modest data-centre share
- Headline ranges formally replaced with lower phased targets tied to named locators

EXHIBIT 08 · PRECONDITIONS

# is signing warranted yet?

- [ ] **Parcel legally defined and Annex A published**
  Maps, metes and bounds, cadastral references, land classification and current land use. No cost or completion time is established.
- [ ] **Draft framework published with a public comment period**
  Full disclosure of transactions involving public interest is a constitutional state policy, not a courtesy.
- [ ] **Independent water balance and grid adequacy studies published**
  Procured competitively, published in full, including dry-season yield and storage design.
- [ ] **Year-3 rent and lease term determined**
  Against an independent valuation of serviced industrial land with airport and port access. Do not sign an instrument whose consideration is "to be discussed."
- [ ] **DFA-OLA and OSG legal opinions published**
  On treaty status, BCDA's authority to bind the Republic, and whether the exclusive-use clause permits private locators.
- [ ] **NCIP certification precondition process formally initiated**
  Regardless of BCDA's view that no CADT exists. The single cheapest de-risking action available.

0 OF 7 MET

## no substantive rights before conditions

If any one of the seven is unmet, the Philippines should not sign anything binding. A strictly non-binding framework remains available, but only if its text expressly creates no lease, no land right, no entitlement and no funding commitment. Every express safeguard in §23.3 must also hold for the non-binding branch; no completion-time guarantee for the studies or statutory processes is established.

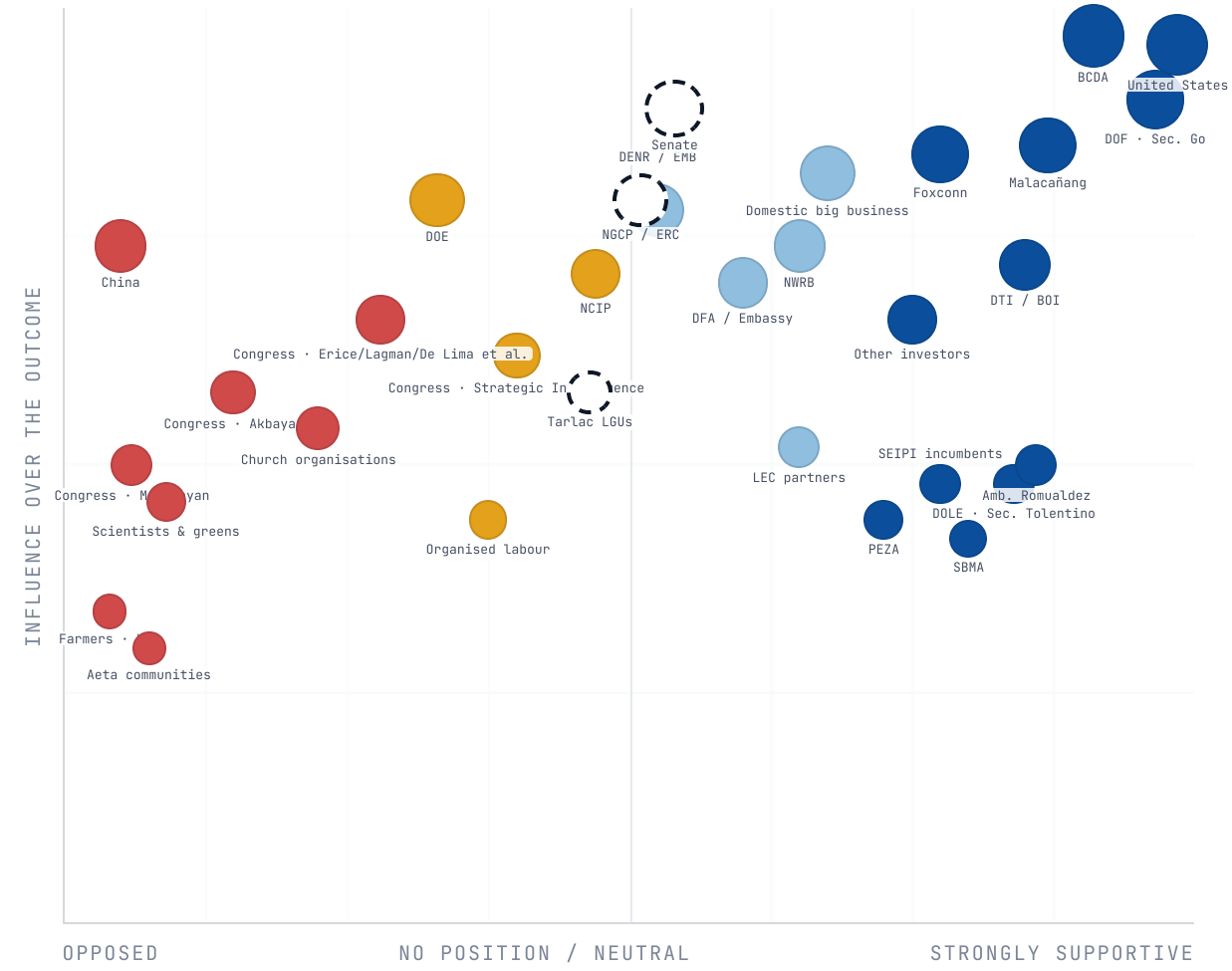
status at 14 october 2026,
latest verification: 0 of 7

- [ ] **Activity mix and all underlying economic studies published**
  Including the tax-expenditure estimate. If the studies do not exist, say so and withdraw the figures.

EXHIBIT 09 · STAKEHOLDERS

# who has taken a position

Thirty-two actors placed by influence against the position they have taken publicly. Circle size is influence. Dashed circles identify actors for which no institutional position on the project's merits or terms has been identified; they do not denote total inactivity. The Senate remains dashed because its reported inquiry pushes, the 14 August Environment Committee hearing, and the chamber's 8 September constitution of a Committee of the Whole establish active scrutiny but not a substantive institutional position.




no institutional position on the merits identified · supportive · broadly positive

sceptical · opposed

Click any circle for its position, and for this assessment's unconfirmed judgement of what it stands to gain and what it bears.

Three dashed circles sit near the centre line because no institutional position on the project's merits or terms has been identified for them; the dashed border does not mean inactivity. NGCP and the ERC have not addressed project-specific interconnection or cost allocation. The Senate held an Environment Committee hearing on 14 August and constituted a Committee of the Whole on 8 September, but neither action supplies a substantive chamber position. Tarlac local officials and BCDA held a provincial consultation on 19 August, Capas has conditionally withheld support pending meaningful consultation, Bamban has sought a public hearing, and the governor has welcomed the project; no Sanggunian resolution or local-government determination on the merits has been identified. NCIP is not dashed: it has engaged with communities, although no certification-precondition process is indicated. The church point aggregates distinct organisations: Caritas opposition and CWS critical, conditional engagement are not the same position. Its unchanged red category is not a separate CWS merits verdict.

EXHIBIT 10 · LEASE STRUCTURE

## three layers, one of them published

The lease has three distinct layers and they have been persistently conflated. Only the first is documented. Which structure the second layer takes is, on this report's assessment, the single most consequential undisclosed structural fact in the entire file.

| | | | |
|---|---|---|---|
| LAYER 1<br>**government to government** | Republic of the Philippines, via BCDA, to the United States<br>BCDA letter and the Supplemental Agreement | PUBLISHED |
| LAYER 2<br>**investor lease** | BCDA, or a master lessee, to foreign investors<br>RA 7652 as amended by RA 12252, if applicable; otherwise the relevant BCDA authority and final lease terms remain to be established | NOT EXECUTED |

| | | | |
|---|---|---|---|
| LAYER 3<br>**locator operations** | PEZA or BCDA to registered business enterprises<br>RA 7916 ecozone registration plus CREATE MORE incentives | NOT EXECUTED |

LAYER 2, THE QUESTION NOBODY HAS BEEN ASKED

## the united states as master lessee

Illustrative master-lessee structure: if law and the final instrument permit, BCDA could lease the parcel to a US counterparty for development and locator subleasing. No published contract establishes the counterparty, 99-year term, transfer, security or sublease rights; each would depend on applicable law and approvals.

- One counterparty could hold leasehold rights over the parcel
- Security rights depend on the executed lease, law and approvals
- Locator selection powers remain to be established in the instrument
- Termination and reversion depend on the final conditions; sovereignty does not transfer

The difference is not technical. If the United States ultimately received a 99-year master lease over the 1,618.74 hectares — no published contractual instrument establishes the final structure, term, counterparty or legal basis — the arrangement could, depending on the lease terms, applicable Philippine law and required BCDA and other governmental approvals, permit subleasing to locators or the use of leasehold rights as financing security. That would concentrate a materially different degree of long-term leasehold control in a foreign state than a structure in which BCDA grants separate leases directly to individual locators, which would be an agency-to-locator leasing structure of the kind used in economic-zone development; any such rights would remain subject to the lease's conditions and remaining term, and it would not transfer Philippine ownership or sovereignty. The published project-specific contractual documents address only layer 1 and do not settle which of the two is intended. In April, BCDA's president was reported describing the US as master lessee — developing the hub's infrastructure and utilities while BCDA retains ownership (Manila Bulletin, 24 April 2026) — an attributed official description, not a contractual commitment; later BCDA remarks referred more broadly to foreign-investor leases of up to 99 years. On 12 August, Sen. Imee Marcos separately questioned why a joint venture or foreign-controlled vehicle should hold rights over the land, citing an alleged draft whose provenance and provisions remain unverified. No official reconciliation of those accounts was identified in the public record reviewed.

EXHIBIT 11 · THE SYSTEM THIS BELONGS TO

# the chokepoint map

Pax Silica is not a Philippine project with foreign investors. It is the demand-anchoring layer of a deliberate American reorganisation of technology supply chains, and its logic is complementarity, not symmetry: each member holds something the AI ecosystem cannot function without. The question for the Philippines is which of these it is bringing, and what it gets for it.

| | | | |
|---|---|---|---|
| **EUV lithography** | Netherlands · ASML | share of EUV supply; ~90% of DUV overall — a different denominator | 100% |
| **CPU architecture** | United Kingdom · Arm | of smartphones, though ~87% SoftBank-owned and Nasdaq-listed | >99% |
| **Primary low-purity gallium** | China | share of primary low-purity gallium production; USGS MCS 2025 | 98–99% |
| **Rare-earth magnets** | China | share of rare-earth magnet output; IEA 2024 | ~94% |
| **Rare-earth refining** | China | of refined output, 2024 | ~91% |
| **High-bandwidth memory** | South Korea · SK Hynix, Samsung | share of HBM supply; was ~95% in 2024; not a share of all semiconductors | ~80% |
| **Germanium** | China | estimated germanium supply share; USGS declines a precise share | ~60% |

| | | | |
|---|---|---|---|
| **Assembly, test & packaging** | Southeast Asia | DIFFERENT DENOMINATOR: electronics share of Philippine national exports, not Southeast Asian ATP market share | 54% |
| **Leading-edge fabrication** | Taiwan · TSMC | Width 88 is schematic, not a measured share. At the frontier, which is why Taiwan endorses without signing, through a joint statement of 27 January 2026 signed by AIT and TECRO rather than by Taiwan as a state | dominant |
| **GPUs, EDA, frontier models, capital** | United States | Width 96 is schematic, not a measured share. Design costs run US$42.8m at 28nm to ~US$725m at 2nm | the kernel |

STAGE 1 · PROJECT VAULT 2 feb 2026

### upstream: stabilising the floor

EXIM board approves a direct loan of up to US$10bn, the largest in the agency's 92-year history, plus ~US$2bn of private capital from GE Vernova, Boeing, GM, Western Digital and Clarios, to create the U.S. Strategic Critical Minerals Reserve across all 60 USGS critical minerals. CSIS calls it "a Costco for critical minerals."

STAGE 2 · FORGE 4 feb 2026

### midstream: organising the allied market

The Forum on Resource Geostrategic Engagement supersedes the 2022 Minerals Security Partnership, with Korea as first chair. Its distinguishing feature is a preferential trade-and-investment bloc with coordinated price floors, enforced through adjustable tariffs. This is managed trade, stated openly.

STAGE 3 · PAX SILICA 12 dec 2025

**downstream: anchoring demand**

The declaration network assessed throughout this report, linking secured minerals to AI and semiconductor production inside a protected allied market, "capable of competing with, and ultimately displacing, the concentrated supply chains on which the world currently depends."

---

The Philippine connection runs through all three stages, and has been under-appreciated. The 4 February 2026 Ministerial that launched FORGE is the same event at which DENR Secretary Lotilla signed the US–Philippines Critical Minerals MOU. The first listed function of the proposed Coordination Office at New Clark City is "coordination of critical mineral supply chain security initiatives." The Philippines signed that bilateral critical-minerals MOU at the Ministerial; the reviewed record does not establish Philippine participation in Project Vault or FORGE, or that the proposed zone framework determines whether Philippine minerals are exported raw or processed. Added 24 August 2026, updated 28 August: the Philippines has since acted domestically. Executive Order No. 122, executed 18 August 2026, sets a national critical-minerals policy framework: it promotes downstream processing through investment incentives and priority access for domestic processors at a fair, market-based price, and reorganises the Mining Industry Coordinating Council. We now hold the certified text, retrieved from the Official Gazette on 28 August and read page by page — superseding our earlier record that it was not located, and correcting the 21 August signing date we had carried. The order imposes no export prohibition, quota, levy or licensing requirement on ore, though it leaves supplemental guidelines to be written. It does not mention Pax Silica, the United States or New Clark City. It does not change this footer's conclusion. Membership is not the prize. Position within the membership is the prize.

EXHIBIT 12 · THE PUBLIC CONVERSATION

## the conversation, 1 jan 2026 to 17 oct 2026

One running analysis, two collections behind it: a sampled social-listening export to late July, relabelled by the same software that labels the current near-complete collection, which counts from early August with reposts excluded. Neither volumes nor shares are like-for-like across that seam. Shares describe each collection; changes can reflect selection, repost and platform differences as well as discourse. Section 17

mapped who the stakeholders are; this measures what they are actually saying, refreshed daily.

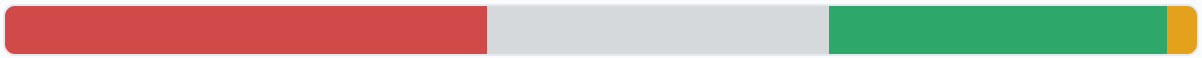
SENTIMENT TOWARD THE PROJECT · SINCE 7 AUG 2026 · 50,424 LABELLED MENTIONS

**40.5%** NEGATIVE

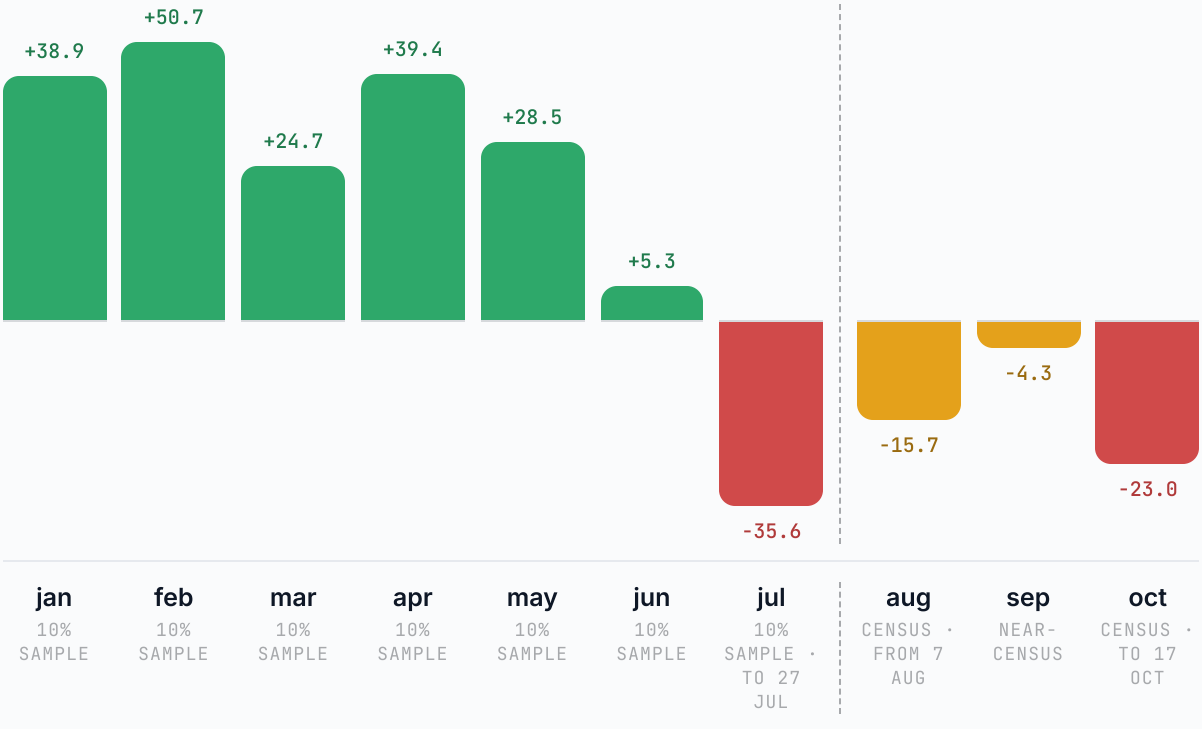
**28.6%** NEUTRAL

**28.4%** POSITIVE

**2.5%** MIXED OR UNCLEAR



All percentages shown are software labels; collection-wide accuracy has not been established. The historical segment through late July remains previously published, uncorrected output and was not audited. The report has withdrawn its explanation of the positive early-month levels as successful separation of tone and target, and its use of the classifier-labelled April–May decline as evidence against the provider-labelled May recovery. No series has been rerun. A selected-sample audit of the later daily collection on 17 September 2026 found substantial disagreement over neutral reporting; details below. Percentages cover mentions the software judged relevant. 72 days is a starting point, not an established trend.




The counting basis changes at the dashed seam: to 27 jul 2026 a one-in-ten historical sample (the original export is recorded as reshare-filtered; a later exhibit note says otherwise, an unresolved provenance discrepancy); from 7 aug 2026 a near-complete collection excluding them. The days

between were not collected on either basis. Counts are not like-for-like across the seam; shares and net sentiment are descriptive of different collection bases, not evidence of a like-for-like opinion change.

## WHERE IT HAPPENS, WHAT IT IS ABOUT, WHO IS SPEAKING

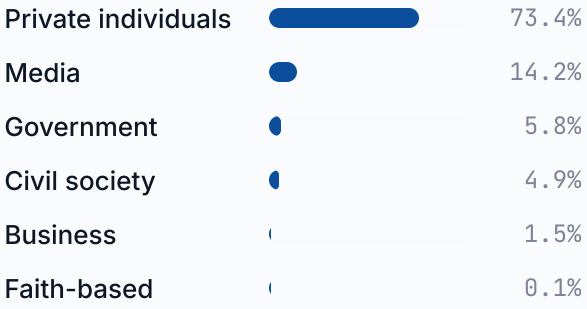
### WHERE THE CONVERSATION HAPPENS




### WHAT IT IS ABOUT · SHARE AND NET SENTIMENT

| | | |
|---|---|---|
| Governance | 30.8% | -33.0 |
| Investment | 20.2% | +53.3 |
| Environment | 19.8% | -64.1 |
| Semiconductors | 18.4% | +45.0 |
| AI infrastructure | 14.4% | +8.0 |
| Security | 12.8% | -0.4 |
| Foreign policy | 12.3% | +1.4 |
| Sovereignty | 11.4% | -41.1 |
| no category matched | 27.5% | |

### WHO IS SPEAKING




Current collection only, regardless of selected chart segment: Government accounts for 5.8% of the conversation and business for 1.5%. The central open question is what the Philippine state has actually committed to. Yet almost all the public discussion is coming from private individuals, not from the institutions that would have to sign.

source · social listening, query `("pax silica" OR hashtags:paxsilica) NOT engagementType:RETWEET`, English and Tagalog, worldwide · window 1 jan 2026 – 17 oct 2026 · refreshed daily

method · every post was labelled by software and **none of it was reviewed by a person** · a post can fall under more than one topic, so topic figures add to more than 100%

basis · Counted from a near-complete collection with reposts excluded; earlier figures

use a different collection basis. Neither counts nor shares are like-for-like measures across that change. Source corpus: 6 December 2025 to 27 July 2026; plotted subset: 1 January to 27 July 2026. The original export is documented as reshare-filtered, and the export is consistent with that: none of its 1,579 X rows is a native retweet. An earlier note describing it as repost-inclusive is corrected. Relabelling harmonises labels, not populations. Counts, shares and net sentiment are not like-for-like with the later collection.
Current collection only, regardless of selected chart segment: Software struggles with irony in Filipino and Taglish. In this data it labelled a plainly critical Taglish post as positive, so treat the levels as rough. An audit on 17 September 2026 found substantial disagreement over sentiment and stance labels for reporting about protests, arrests and statements. On the 233 audited mentions with a sentiment reference, the software assigned higher negative and positive shares and a lower neutral share than the audit reference. Within that audit, 43 mentions were selected because the software labelled them positive or negative while two other models labelled them neutral; this report's author read them unmarked among other rows, blind to all model output, and labelled 41 neutral, one positive and one negative. The audit measures disagreement within a selected sample whose only human reader was this report's author. It does not establish how much, or in which direction, the shares shown here are wrong. No corrected method or figure is established, and no series has been rerun. The way this is measured changed on 7 August: the sample became near-complete and reposts are now excluded. Figures from before that date are not directly comparable with these, and the shares did move when the basis changed — Facebook rose and every other platform fell — this does not establish that the earlier sample understated Facebook's share of the same underlying population. 27.5% of mentions match no named topic category and are omitted from the displayed named-topic rows, but remain in the denominator of the topic shares. No TikTok in this export; Facebook is limited to public content.

04

## claim checker

Exhibit 13. The public claims located in the record, with each claimant, its status, and the evidence that contradicts it. Filter by status or by who said it.

VERIFIED

SCOPE

### Project area is 4,000 acres (1,618.74 ha)

US State Dept · BCDA

Verified as a stated figure. 4,000 ac × 0.404686 = 1,618.74 ha.

PARTIAL

SCOPE

### Area equals 1,600 / 1,610 / 1,618 / 1,619 / 1,620 ha

Various

All but 1,610 are roundings of one US-stated acreage, not an independent Philippine survey. 1,610, on the Luzon Economic Corridor investment portal, is the unexplained exception: it is not a conventional rounding of 4,000 acres (1,618.74 ha). That does not show the parcel is a different size.

FALSE

SCOPE

### The parcel boundaries are defined

no claimant, assessed finding

The BCDA letter says boundaries "shall be determined by mutual agreement... set forth in a Supplemental Agreement". Annex A maps are referenced and absent from the published PDF. No mutually agreed parcel definition was located in the published instrument; this is a public-record finding, not proof that no internal map exists.

FALSE

SCOPE

### The site is at the former Clark Air Base, Pampanga

Local and international outlets

New Clark City is in Capas and Bamban, Tarlac. A recurring media error.

UNKNOWN

SCOPE

### "First AI-native industrial acceleration hub"

US State Dept · Helberg

An official designation with undefined content. Neither government has published a technical definition of "AI-native".

PARTIAL

SCOPE

### No AI data centres will be located at New Clark City

DTI-BOI (Usec. Rodolfo) · BCDA

Verified as a repeated official statement, not as a land-use fact. Rodolfo told the House appropriations committee on 24 August 2026 "what's clear is, in Clark, there is no data center", and that data centres "may happen in another location". But BCDA's president said on 7 August that locators' own-use data centres may be established "if ever", with only major ones outside the site; and BCDA's own July 2025 bidder information lists a 47.0-hectare "Hyperscale Data Center" among New Clark City's industrial locators. No instrument located sets the line between a permissible own-use facility and an excluded major one. On 1 September 2026 Palace Press Officer Claire Castro, attributing the position to the DTI, said "On the Clark Advanced Manufacturing Park, there will be no data centers" and that no proposal yet exists for another location outside New Clark City: the most categorical official assurance yet, and still not an instrument.

VERIFIED

SCOPE

### The site is 17.1% of New Clark City

Derived

1,618.74 ÷ 9,450 ha. Verified arithmetic.

PROJECTION

MONEY

### US$40–70bn of investment at full development

BCDA (Bingcang)

"Based on scientific studies, not speculation." The studies are unpublished and no investor is bound.

PROJECTION

MONEY

### Initial investment requirement of US$10bn

BCDA

Funding source unstated, public, private, or which party.

VERIFIED

MONEY

### Around 30 firms have expressed interest

BCDA

Verified as a statement of interest, not of commitment. None is named; BCDA says "we cannot entertain them yet fully".

UNVERIFIED

MONEY

### 50+ firms including "trillion-dollar tech giants"

Reported

Inconsistent with BCDA's own figure of around 30.

PROJECTION

MONEY

### Foxconn will anchor the hub

Finance Sec. Frederick Go

A named prospect, not a commitment. Go: "if Foxconn proceeds"; nothing is signed.

PROJECTION

JOBS

### Foxconn would invest billions and generate "thousands of jobs"

Finance Sec. Go

The anchor's unquantified "thousands" is far below the aggregate employment claim; no exact anchor headcount establishes a precise order-of-magnitude gap.

VERIFIED

SCOPE

### The project is still at the planning stage and it is premature to release official information

BCDA

BCDA's own words, refusing a Freedom of Information request for the project pipeline on 12 May 2026 under the pre-decisional and premature-disclosure exceptions. A second denial on 10 June 2026 withheld the site map, and a third, on 1 September 2026, withheld the official boundary, the corner-point coordinates, the cadastral parcels and the barangay boundaries under the Prejudicial Premature Disclosure exception. Tier-1 confirmation, by the proponent, of the report's pre-decisional finding and of the Annex A vacuum.

FALSE

MONEY

### A binding investment commitment exists

no claimant, assessed finding

None found as at the latest verification. BCDA states the framework must be finalised first.

UNVERIFIED

MONEY

### AWS is discussing a US$5bn regional investment

Reported

Not corroborated; regional, not site-specific.

PROJECTION

JOBS

### Over 130,000 high-quality jobs

BCDA

Official projection, 22 Jul 2026.

PROJECTION

JOBS

### 130,000–190,000 direct and 500,000–800,000 indirect jobs

BCDA (Bingcang)

Pairing low indirect with low direct employment and high with high gives an indirect-to-direct ratio of 3.8×–4.2×, not a total-employment multiplier or all possible endpoint combinations. The underlying model and pairing assumptions are unpublished.

PROJECTION

JOBS

### "Nearly one million jobs"

Labor Sec. Francis Tolentino

Basis given as a comparison to "Taiwan's industrial growth model". No labour standards, wage scales or training commitments stated.

PROJECTION

JOBS

### Up to 300,000 jobs "as early as 2027"

Amb. Jose Manuel Romualdez

Timeframe irreconcilable with BCDA's own Q1 2028 construction start.

UNVERIFIED

JOBS

### "Endless jobs"

US Amb. Lee Lipton

Stakeholder claim.

PROJECTION

FISCAL

### PHP 180bn/yr in total government income at full operation

BCDA

Composition unpublished.

MISLEADING

FISCAL

### PHP 68–75bn/yr in withholding tax

BCDA

BCDA specified the composition at the Palace briefing of 23 July 2026: tax contributed by the workers, i.e. payroll withholding. That forecloses the non-payroll explanation. At an assumed 20% effective rate and 160,000 workers, it implies average worker compensation of about PHP 2.13m, 2.4× a Philippine semiconductor engineer (PHP 870,938) and 8.1× an operator (PHP 263,118). As published, the tax and employment figures are therefore not reconciled at current wage benchmarks; which figure or assumption fails, only the unpublished model can say.

PROJECTION

FISCAL

### PHP 60bn in lease income over 25 years

BCDA

Equals PHP 148.26/m²/yr. Present value at 8% real is about PHP 25.6bn, or 0.59%–1.03% of the projected investment. No independent land valuation has been published.

PROJECTION

FISCAL

### US$200bn of exports associated with full build-out

BCDA

CORRECTION, 10 Aug 2026 — earlier versions described this as annual. New reporting places full development on an approximately 30-year horizon but does not consistently establish whether the figure is annual, cumulative over that horizon, or measured on another basis. The 2.37× comparison with the Philippines' US$84.48bn of 2025 merchandise exports is therefore a non-period-equivalent comparison of nominal magnitudes, not like-for-like annual flows.

PROJECTION

FISCAL

### "About 10% of GDP"

BCDA

The domestic value-added assumption reconciling this with US$200bn of gross exports is unpublished, and it is the single most important number in any value-chain argument. Philippine electronics has historically captured a modest slice of gross flows because it imports most inputs and performs a narrow part of the process. JC Punongbayan of the UP School of Economics warns of exactly that outcome: the Philippines supplying "the land, minerals, power, water, and low-cost labor" while technology, patents, profits and strategic control remain abroad.

UNKNOWN

FISCAL

### The cost of the fiscal incentive package

no claimant, assessed finding

No published estimate. CREATE MORE provides 5% SCIT or 20% CIT with enhanced deductions including a 100% additional deduction on power expenses, for up to 17–27 years. A material omission.

PROJECTION

WATER & POWER

### Water demand 65–90 MLD; design capacity 120 MLD, expandable to as much as 300 MLD

BCDA

Technically unsubstantiated. No water balance has been published. The 300 MLD expansion path, described at the 23 July Palace briefing, scales the required catchment to roughly 4,900–10,400 hectares, which is three to six times the entire parcel.

MISLEADING

WATER & POWER

### Water comes from rainwater harvesting, not community supply

BCDA

The required catchment is 90–193% of the site, so at 90 MLD this is watershed water rather than site water. Stated precisely: the on-parcel framing fails at the upper end of BCDA's own demand estimate; what the appropriation does to downstream users is undetermined pending a catchment-level water balance, and the burden of proof sits with the proponent.

UNVERIFIED

WATER & POWER

### Water within the project area is sufficient

NWRB Exec. Dir. Sevilla D. David Jr.

No technical data, model or independent verification published.

MISLEADING

WATER & POWER

### The 60 million litres a day should not alarm the public: it equals one second of the combined discharge of all Zambales rivers, "only 60,000 cubic meters, which is one Panamax"

Rep. Jose "Pepito" Alvarez, vice chair, House appropriations committee

Said at the environment department's 2027 budget briefing on 26 August 2026 — the first defence of the water requirement from the legislature. The unit conversion is right: 60 million litres is 60,000 cubic metres. Nothing else about the comparison is. It sets a daily demand against an instantaneous flow; a combined discharge of 60,000 cubic metres every second is an order no Philippine river system approaches, and no hydrological data was offered to the hearing or published after it; and it

invokes the wrong catchment, since New Clark City sits in Capas, Tarlac and drains the Sacobia–Bamban system, not the western-draining rivers of Zambales. “Panamax” is a class of ship, not a unit of volume. The 60 million litre figure is also below BCDA’s own published range of 65 to 90 million. Kabataan Representative Renee Co replied at the same hearing that the concerns are not confined to water but extend to power and land. None of this changes the catchment arithmetic on this page.

PROJECTION

WATER & POWER

### Energy demand of about 3 GW at full development

BCDA

Independent technical commentary cites 5+ GW. Against the DOE’s official projection of 15,600 MW for 2026 Luzon peak demand, 3 GW is 19.2%; against the 14,534 MW actually recorded by mid-2026, it is 20.6%.

MISLEADING

WATER & POWER

### Power will be renewable; the project aims to avoid fossil fuels

BCDA

The US DFC is funding a feasibility study for a ≥1,200 MW LNG terminal and plant at the site. Solar equivalent to 3 GW would need about 15,000 ha, which is 9.3× the parcel.

MISLEADING

WATER & POWER

### The project "will not cut into current power supplies in the area"

BCDA

Supporting the assurance requires phase-specific supply, transmission and reserve adequacy before the actual load energises; full-build demand is not the initial phase, and nameplate capacity alone is not sufficient proof. BCDA’s president reiterated the assurance on 9 August 2026, saying proponents were studying a dedicated power plant; a study does not establish that capacity. Presented as unconditional.

PARTIAL

WATER & POWER

### 40% of the site is reserved as open or green space

BCDA · NCC master plan

Applies to the NCC master plan generally; not shown to bind the Pax Silica parcel, and incompatible with maximal rainwater capture.

PARTIAL

ENVIRONMENT

### All investments require an Environmental Compliance Certificate

BCDA · DENR

Overstated as put. ECCs attach to Category A and B projects, not to all investments (DAO 2003-30 §§4.1, 4.4, 4.6; a Certificate of Non-Coverage covers Category D). Correction (v2.38): this note previously said the estate "unambiguously requires an ECC with a full EIS" and that "None is on the public record". Both are withdrawn. BCDA has published ECC-OL-R03-2019-0304 (24 Jun 2019), in which EMB classified the 9,450-hectare New Clark City Land Development Project under EMB MC 2014-005 item 3.6.5 — "Industrial Parks (horizontal development) with critical slopes", requiring an EIS at 5 hectares and above — and issued an ECC after an EIS was submitted. What survives: the certificate enumerates no manufacturing, semiconductor, data-centre or mineral-processing component; its Restriction 25 subjects any expansion or modification of approved components to new EIA requirements and requires individual locator ECCs; DENR reported on 26 Aug 2026 that no Pax Silica-specific EIA application and no clear project description had reached the EMB; and no cumulative impact assessment was located in the reviewed record.

VERIFIED

ENVIRONMENT

### There will be no mining inside the project area

BCDA

Verified as to extraction on site; incomplete as to consequences. The US fact sheet cites "enhanced access to the Philippines'… mineral endowments" and refining is a listed on-site activity.

MISLEADING

ENVIRONMENT

### Pax Silica will drive rare-earth and nickel plunder

Kalikasan PNE · AGHAM · CPU · KMP

Substantially overstated as applied to semiconductors. Silicon is ~95% of semiconductor material demand and the Philippines is not a silicon producer; per-mineral end uses: nickel is ~65–70% stainless steel with batteries ~10–15% and rising; cobalt was 76% lithium-ion batteries in 2024, of which EVs ~43% and portable electronics ~30%, with stainless nil; chromite is ~90–96% metallurgical and ferrochrome, over 80% of that to stainless. Semiconductor demand for these

minerals is negligible, confirmed against USGS, INSG, Cobalt Institute and ICDA breakdowns. A narrower minerals concern survives.

MISLEADING

ENVIRONMENT

### Data centres will cause light pollution disrupting wildlife

Advocacy groups

Substantially overstated, but a legitimate and mitigable EIA screening item. Data centre interiors are essentially unlit; exterior lighting is not. 24/7 perimeter security, parking, roads and the construction phase are a documented ecological disruptor per US DOE Solid-State Lighting guidance and DarkSky International's statement specifically on data-centre light pollution, and readily mitigated with full-cutoff fixtures, lamps at 3000K or below, and curfew dimming. Campaigners would be better served narrowing this point than dropping it.

UNVERIFIED

LEGAL & SOCIAL

### Clark Freeport exceeds 30,000 ha, of which 15,000+ ha are already allocated to indigenous groups

BCDA

Offered by BCDA in support of its no-displacement position. Not independently verified in this review, and it concerns the wider Clark Freeport rather than the Pax Silica parcel.

DISPUTED

LEGAL & SOCIAL

### No indigenous community will be displaced

BCDA · Malacañang

Turns on titled versus claimed domain. Aeta CADT applications over Capas were filed in 1999, 2014 and May 2019. Under IPRA, native title and FPIC obligations do not depend on a CADT having issued. Section 59 goes further: it bars any government agency or government-owned corporation from issuing a lease or concession without NCIP certification that the area is not overlapped, and its proviso covers pending applications, so a new BCDA lease would be barred outright if the parcel overlaps the Aeta claims filed in 1999, 2014 and 2019. At the Senate hearing of 14 August 2026, materially different population figures were put on the record: BCDA's expressed in households, NCIP's at 75 households, and about 1,000 people reported by a community witness as Sitio Sapang Kawayan's own census. The hearing's auto-generated transcript adds the provenance: NCIP told the committee it has no exact validated count and that the 75 came through an IP community source covering one sitio within the proposed area, while BCDA described about 14 houses seen on an

earlier visit and speculated it might now be 30. A separate affected population also emerged — two preliminary farmer lists for a first phase of about 580 hectares, 182 associated with BCDA and 266 in the municipality's own records, with financial assistance and no designated relocation site for that group; the hearing's auto-generated transcript states the assistance rate inconsistently, and earlier BCDA and news records identify the package as ₱30 per square metre. The first phase's own extent is stated inconsistently: at a New Clark City briefing on 7 August 2026 BCDA president Joshua Bingcang described it as "around 500 hectares". Both figures are approximate and the record does not establish whether they share a boundary, a scope or a reference date, and no published phase-boundary document was located — so the variation is recorded, not resolved, since the farmer counts are keyed to a phase extent. On 30 September 2026 BusinessMirror reported the Agriculture Secretary confirming that some 266 farmers tilling 410 hectares will be adversely affected, attributing the figures to the DA's "official assessment"; no such assessment or second carrier was located, the equality with the municipal 266 does not establish a shared source, and the 410 hectares is unreconciled with the phase figures. They are not directly comparable — two count households, one counts people, and the reporting does not establish that they cover the same area or the 1,618.74-hectare parcel — so none is a verified count. What the exchange does show is that no current, published, parcel-specific enumeration was located, which is also what a categorical assurance of no displacement would need. On-site reporting published 18 August 2026 adds the residents' own account: Ralph Gelmar Lozano said he and other residents were told their houses would be affected and that they could be required to leave by December, and Antero Capiz separately recalled being told they had only until Christmas; residents said they had not been told where they would be relocated or what assistance would be provided, and that payment would cover their houses but apparently not the land. This is reported testimony, not an agency record — no BCDA notice, valuation schedule, relocation plan or demolition order corresponding to a December date has been published, and the reporting does not identify by name or institutional affiliation who communicated those dates. Correction (v2.32): this report previously read the clearest discrepancy as lying between BCDA's lower household estimate and NCIP's 75-household figure. That characterisation is withdrawn. The same 18 August ABS-CBN report attributes the approximately 1,000-person figure to chieftain Petronila Capiz-Munoz by name, and reports NCIP Chairperson Nancy Catamco saying the chieftain had initially reported 75 households or families — so the 75 may not be independent of the community evidence behind the 1,000. The attribution v2.26 withdrew is reintroduced solely as an ABS-CBN-reported claim, not from the hearing transcript; that earlier withdrawal remains accurately recorded as a correction made on the evidence then available. The report does not conclude the two community-associated figures are comparable: no common reference date, geographic scope, population definition or counting unit is established, and "households or families" is itself ambiguous. The NCIP announced on 20 August 2026 that it had conducted or begun a census and validation of Aeta Hungey households at Sitio Sapang Kawayan, reported by the Daily Tribune on 21 August and carried by Rappler, Brigada Balita, NET25 and News5, several expressly crediting that announcement; no household, family or person total from it has been identified, and nothing published identifies it as a Section 59 field-based investigation, a Certification Precondition process or an FPIC proceeding, nor places it outside them. On 4 September 2026 BCDA published its own account of the work for the first time — a press release describing an updated census at Sitio Sapang Kawayan led by NCIP Secretary Nancy A. Catamco and BCDA officer-in-charge senior vice president Mark P. Torres — and told reporters the same day that the exercise is "an update and validation of the existing community census, rather than a new enumeration" and that "we are still consolidating and validating the final figures

with the NCIP, and we will provide the official numbers once the process is completed". That is the proponent itself saying the numbers are not ready. No final official total resulting from the update was located as at 5 September 2026, and whether this is the same field exercise NCIP announced on 20 August, a continuation of it, or a related validation is not established. As at 5 September 2026 no current, published, parcel-specific enumeration reporting households and persons on a common reference date has been identified, and until one is, none of the reported figures can be treated as independently verified. This report elsewhere carries the GMA spelling Petroniza Capriz-Muñoz; both source-specific spellings are preserved and neither is resolved. New in v2.60, the FPIC question was put directly during the House Bill 10858 plenary deliberations of 18–19 September 2026 and answered by BCDA's budget sponsor, according to ABS-CBN: Rep. Maria Angela Garcia said the CAMP area contains no ancestral domain and that, in BCDA's view, FPIC is therefore not required, and Rep. Antonio Tinio answered that the Aeta Hungey community has a pending CADT application affecting relevant barangays and that NCIP rules require consultations where an application remains active — his legal position, not an adopted House or NCIP conclusion. This is the first located express statement of the proponent-side FPIC position during a legislative proceeding, and it does not determine the statutory question: Section 59 requires an NCIP certification process where an affected area may overlap ancestral domain, and separately restricts new leases while a relevant CADT application is pending, so whether a particular pending application covers the site remains a factual question — one the BCDA FOI denial of 1 September 2026 leaves unanswerable from the located public materials. ABS-CBN alone reports Tinio's 2021 refiling date; it is not adopted here and remains unreconciled with this report's record of applications in 1999, 2014 and May 2019. Also new in v2.60, AFP reported on 20 September 2026 that about 1,000 Aetas received a BCDA letter in July warning the project "could affect your occupied lands". No copy was located, and AFP's account does not establish the letter's date, complete addressee list, legal character, parcels covered or any deadline. AFP attributes to community leader Petronila Munoz the statements that BCDA offered ₱30 per square metre, that all recipients declined, and that BCDA had not yet held talks with her community, while reporting that BCDA has conducted public consultations in Tarlac and nearby provinces. Every substantive proposition there is single-carrier AFP reporting. It adds reported evidence that BCDA sent some form of written communication in July; it does not place the letter in the record, and the standing finding that no published BCDA notice, valuation schedule, relocation plan or demolition order corresponding to a December date was located stands unchanged. Added in v2.64, the same dispatch also reports Muñoz saying visiting BCDA employees told residents to leave by December and to relocate to an area "about 16 kilometres (10 miles) from their current home". The figure surfaced through a Filipino-language carrier on 23 September 2026, but it originates with AFP, and its republications are one interview rather than independent corroboration. Neither the destination nor the method of measuring the distance is identified, so it cannot be determined whether that distance is compatible with remaining within Barangay Aranguren, or with BCDA's "same community" characterisation of 21 September 2026; it is not evidence that BCDA has contradicted itself. No publicly accessible BCDA relocation plan or site designation corresponding to the reported distance was located, and the allegation is not treated as established. No count, Key Judgment, confidence level, scenario weight or precondition moves on either addition, and displacement remains disputed. New in v2.62, BCDA put a sub-site estimate on the record orally, and the two published accounts of it do not agree: at the Foreign Correspondents Association of the Philippines forum in Bonifacio Global City, Taguig on 21 September 2026, ABS-CBN reports BCDA president Joshua Bingcang saying the structures are concentrated in a roughly 10-hectare portion rather than

across the whole site, putting the initial number at around 40 structures and deriving about 200 people from an assumption of five people per household, while Radio Free Asia reports the affected area as sitting within roughly 10 hectares and relocations affecting “an estimated 200 people in 40 households”. Structures are not households, and “concentrated in” is not “affected area”; no recording or transcript of the remarks was located, and the two reports resolve neither discrepancy. Deriving 200 people from 40 structures requires two assumptions — five persons per household, and one household per counted structure — of which only the first is attributed in the reporting. Bingcang denied that this constitutes displacement while describing residents as moved: “They will not be displaced. They will just be pushed a little bit but they will still be in the same barangay, the same community, the same BCDA land”, and said BCDA could provide additional agricultural land to till in Barangay Aranguren, Capas. Ten hectares is an area estimate, not an identified parcel, and with the boundary and geospatial data withheld since 1 September 2026 the estimate cannot be independently located or overlaid against the official project boundary — the same geographic-comparability problem affecting the 75-household figure, the community census and the July letter recipients, none of which is thereby shown to be erroneous. The operative finding is unchanged; displacement remains disputed. Added v2.64: AFP’s dispatch of 20 September 2026 also reports Muñoz saying visiting BCDA employees told residents to leave by December and to relocate to an area “about 16 kilometres (10 miles) from their current home”. That figure originates with AFP and its republications are one interview, not independent corroboration; neither the destination nor the method of measuring the distance is identified, so it cannot be determined whether it is compatible with remaining within Barangay Aranguren or with the “same community” characterisation above, and it is not evidence that BCDA has contradicted itself. No publicly accessible BCDA relocation plan or site designation corresponding to the distance was located.

DISPUTED

LEGAL & SOCIAL

### Only about 10 farmers are affected

BCDA

Campaigners cite ~20,000 Aeta and farmers; historical NCC-wide figures cite 65,000 people in 12 villages including ~18,000 Aeta. On 30 September 2026 BusinessMirror reported the Agriculture Secretary confirming some 266 farmers tilling 410 hectares will be adversely affected, attributed to the DA’s “official assessment”; no assessment or second carrier was located and the boundary is unstated. Unresolvable without Annex A.

VERIFIED

LEGAL & SOCIAL

### A two-year rent-free grace period is offered

BCDA letter

The letter’s lease table lists "In-kind Contribution of the Philippines" as the Annual Lease Rate for the Lease Period "Years 1-2 (Grace Period)", and its text says: "The grace period of two (2) years on

lease payments shall be considered as a tangible offer of in-kind contribution of the Philippines for the development of the two countries' bilateral economic security." Worth roughly PHP 4.8bn at the rent implied by BCDA's own figures.

UNKNOWN

LEGAL & SOCIAL

### The Year-3 lease rate

BCDA letter

Verified that it is undetermined. The published table reads "To be discussed."

UNKNOWN

LEGAL & SOCIAL

### The lease term

BCDA letter

No term is stated anywhere in the document. BCDA separately cites the 99-year ceiling under RA 12252.

PROJECTION

FISCAL

### If a hub is built at New Clark City there is "no budget requirement from us" — "they will pay us rent", making it revenue-enhancing

DOF Secretary Frederick Go

The published instrument setting out the proposed land terms provides a two-year rent-free period and does not quantify the rent from Year 3 or state a lease term. The published record therefore does not establish the rent stream the characterisation depends on. "No budget requirement from us" appears to refer to cash budget requirements and does not account for the non-cash economic value of the two-year rent-free period, which the proposal identifies as the Philippines' in-kind contribution.

PARTIAL

LEGAL & SOCIAL

### Investors may lease for up to 99 years under RA 12252

BCDA

Verified as to the law, unverified as to this project, and narrower than the citation implies. The 99-year regime under RA 7652 as amended covers private lands leased by qualifying foreign investors

with approved and registered investments. New Clark City land is held by BCDA, but its classification for purposes of RA 7652 and RA 12252 has not been established in the public record, which raises a threshold question about whether the regime applies at all; the statute alone does not establish authority for a master lease to a foreign-government entity.

DISPUTED

LEGAL & SOCIAL

### The US sought diplomatic immunity and US jurisdiction

BCDA (Bingcang)

Helberg: "We never said our goal was to maintain diplomatic immunity... patently untrue." The State Department declined to answer the direct question on 26 May 2026.

DISPUTED

LEGAL & SOCIAL

### The project is purely commercial, with no defence function

Helberg · BCDA

Not sustainable as stated. Amb. Romualdez links Pax Silica revenue to the country becoming "more militarily equipped"; the US fact sheet frames the network as displacing rival supply chains. That is a strategic-security and revenue linkage, not evidence of an on-site military or defence-production function, which is not established. No dual-use exclusion clause is published.

VERIFIED

SCOPE

### Pax Silica has 25 signatories

US State Dept

CORRECTION, 1 Aug 2026 — this site previously published "24 signatories" as verified. That was accurate when checked on 26 June 2026; Italy signed the Declaration at Brindisi on 31 July 2026 as the 25th signatory, and the count is now 25. Still widely miscounted as 13, 14, 15, 23 or "about 30". One signatory, the EU, is not a country. Saudi Arabia has been wrongly listed.

FALSE

SCOPE

### "More than 30 countries" have joined Pax Silica

BCDA · Palace briefing, 23 Jul 2026

Stated twice to national media. The State Department count on that date was 24 signatories, unchanged since the Second Summit four weeks earlier, and one of the 24 is the EU rather than a country. The 35-economy figure belongs to the separate Joint Statement on AI Opportunity. An overstatement of roughly 25%, uncorrected.

FALSE

SCOPE

### Pax Silica is "23-member strong"

President Marcos · State of the Nation Address, 27 Jul 2026

Stated in the annual address to Congress. The State Department count that day was 24. The figure is not random: on that date the State Department's own Pax Silica page listed 23 signatories and omitted the United States from its own roster, so counting the page yielded 23. Two outlets repeated it within the week. CORRECTION, 21 Aug 2026 — this note previously described the page in the present tense. Checked directly on 21 August 2026 the page lists 24 signatories, Italy now among them, and still omits the United States, so counting it now yields 24 against a standing count of 25. The roster defect this note identifies survives the update. The same government produced an overstatement of roughly 25% and an understatement of one within four days, neither corrected publicly.

PROJECTION

LEGAL & SOCIAL

### Previously reported BCDA target: signing of the framework agreement by November 2026, potentially during the ASEAN Summit

BCDA

Finance Sec. Go, 7 July 2026: "I hope we can get something signed within the year" — Manila Bulletin reports the remark as referring to the framework agreement for the hub, with Foxconn described separately as a possible anchor locator; no transcript was located, so the scope rests on the outlet's framing. On 19 August 2026 BusinessWorld and GMA News reported BCDA president Joshua M. Bingcang saying BCDA was still aiming for November but that negotiations could take longer, rendering his description of the target as "not set in stone" (BusinessWorld) and "not cast in stone" (GMA News). Those are the same remarks by the same official on the same day and are not independent corroboration; the two outlets name the forum differently and this report asserts no venue, and no transcript or recording was located to resolve the wording. Correction (v2.32): this note previously read "Other statements point to 2027 finalisation". That was mis-scoped — the Presidential Communications Office release of 23 July 2026 places planning in 2027, with contract negotiations expected during 2026 and construction expected to begin in early 2028, not framework finalisation. The sequence is retained in the timeline and withdrawn from here. The verdict is an official target that the proponent has publicly described as subject to negotiation and possible delay. On 14–15 September, several outlets carrying remarks from the same press

encounter with Trade Undersecretary Ceferino Rodolfo reported continued government optimism about a November signature, subject to continuing consultation and safeguards. These reports are not independent corroboration, no primary transcript was located, and they do not convert the target into a confirmed signing date. On 13 October 2026 the Palace Press Officer read BCDA's reply at a Malacañang briefing (PCO transcript): BCDA had submitted to the President "through proper channels" the legal framework governing the use of the 1,620-hectare advanced manufacturing park and, as discussions with its "US Development partner" continue, "the expected signing of the agreement is before the end of 2026". The reply gives a broader window than the previously reported November target: it does not reaffirm November or the ASEAN Summit, but does not expressly withdraw that target or announce a postponement. Castro said she would check whether the President himself had received the draft.

VERIFIED

LEGAL & SOCIAL

### The USTR imposed a 12.5% forced-labour tariff on Philippine exports

Office of the US Trade Representative

Published 23 July and effective 24 July 2026, finding the Philippines "has failed to impose and effectively enforce a forced-labor import prohibition." Verified against the Federal Register notice, the measure carries exemptions, semiconductors and other Section 232-covered articles, donations, informational materials, and an excluded-products annex expanded by 471 HTS subheadings, and it replaced a Section 122 surcharge of 10%, documented to Federal Register doc. 2026-03824, which expired at the same minute the new action began. For goods covered by both, the net increment is roughly +2.5 percentage points. For the exempt goods, which include semiconductors, coconuts, pineapples, bananas and nickel ores, the change was a decrease of about 10 points. The signal stands even as the magnitude shrinks.

54 OF 54 CLAIMS SHOWN

05

## the full assessment

Twenty-nine sections. Each opens in place; the complete report downloads as a PDF.

download the full report · pdf ↓

ARCHIVAL FIRST EDITION · 26 JULY 2026 ↗

01

## Prefatory note on timing and currency

Why the timing matters, and the conventions used throughout.

This report’s first edition was completed one day before President Marcos’ fifth State of the Nation Address of 27 July 2026, which Malacañang trailed as containing an "earth-shaking" announcement. As of v2.8 the SONA is incorporated from the Official Gazette transcript and no longer sits outside the evidence base; project facts move forward as developments are verified.

Four developments in the fortnight before cutoff are material enough to drive specific conclusions. The anchor tenant has been named: Foxconn, the same company whose Wisconsin project delivered a fraction of its announced investment, which converts the "announced versus delivered" comparison from an analogy into a direct precedent involving the same counterparty. Official job claims have escalated to five mutually inconsistent figures issued by four arms of government within a fortnight. The United States imposed a forced-labour tariff on Philippine exports on 24 July 2026. And a signed ACWA Power lease provides a hard land-per-megawatt benchmark that permits a rigorous test of the renewable-power claim, a test the claim fails by a wide margin.

All conversions use PHP 61.85 per US$1, from US$1 = PHP 61.847, the peso’s record-low close of 24 July 2026. Where a source gives a peso figure it is reported as given and converted; where a source gives dollars, the peso equivalent is calculated.

This is a living document. Project facts are verified to 14 October 2026 and move forward as material developments are verified. Comparator, legal and technical sources were verified through 27 July 2026 and move only when those are re-verified.

SOURCES DRAWN ON T3-21 · T1-05

02

## Backgrounder: Pax Silica and the world that produced it

The transaction cannot be judged without the system it belongs to.

For roughly three decades the semiconductor supply chain was organised by cost alone: designed in the United States, printed on Dutch machines, fabricated in Taiwan and Korea, assembled and tested in the Philippines and Malaysia, from minerals refined wherever it was cheapest, increasingly China. Geopolitical disruption was a tail risk, not a design constraint. What ended that arrangement was a decade-long exchange of blows: China's 2010 rare-earth halt against Japan; the Huawei entity-listing; the October 2022 export controls; the CHIPS Act and the European Chips Act; gallium and germanium licensing in 2023 escalating to an outright ban in 2024; the H20 ban and China's seven-rare-earth restriction in 2025; and extraterritorial rare-earth controls in late 2025, suspended for a year under a trade truce. Both superpowers have now repeatedly demonstrated willingness to weaponise their chokepoints, and every economy in the chain is being asked to buy an insurance policy.

The alliance's logic is complementarity, not symmetry. ASML holds a true 100% monopoly on EUV lithography; Arm sits under more than 99% of smartphones; SK Hynix and Samsung hold roughly 80% of high-bandwidth memory; TSMC dominates the frontier. Against them China holds 98–99% of primary low-purity gallium, about 91% of refined rare earths and about 94% of magnets. Southeast Asia holds assembly, test and packaging, which is the Philippine seat at the table, with electronics at more than 54% of national exports.

The least visible chokepoint is capital. Design costs run from about US$42.8m at 28nm to US$89.8m at 16nm, US$249m at 7nm, US$449m at 5nm, US$581m at 3nm and roughly US$725m at 2nm. Geology is not enough and neither is labour: a country holding minerals or assembly capacity but standing outside the allied capital and licensing umbrella is structurally marginalised. That is the coercive underside of the positive-sum language, and it is why membership grew from 7 to 25 signatories in eight months.

Compute has also turned electricity into a membership qualification. Qatar signed on 12 January 2026 and the UAE on 14 January; the physical anchor is the 5 GW UAE–US AI campus in Abu Dhabi, the largest AI infrastructure project

outside the United States. This is the same energy-for-compute logic that makes the 3 GW question at New Clark City the decisive Philippine feasibility issue. In this system, electricity is the entry ticket.

The architecture was built in a single week of February 2026. Project Vault, announced 2 February, is EXIM's largest financing in 92 years, up to US$10bn plus about US$2bn of private capital, creating a U.S. Strategic Critical Minerals Reserve across all 60 USGS critical minerals. FORGE, announced 4 February, supersedes the Minerals Security Partnership with a preferential bloc built on coordinated price floors enforced through adjustable tariffs. Pax Silica is the third stage: the demand anchor. The 4 February Ministerial that launched FORGE is the same event at which the Philippines signed its Critical Minerals MOU.

This sharpens rather than changes the assessment. Standing wholly outside carries documented exclusion risks that fall hardest on an economy whose exports are 54.3% electronics. But the system is explicitly tiered, explicitly US-arbitered and explicitly designed around revocable access. Membership is therefore not the prize; position within the membership is the prize, and position is determined by exactly the instruments this report finds undetermined: the lease terms, the processing obligations, the technology-transfer covenants, the governing law.

SOURCES DRAWN ON T1-01 · T1-06 · T2-01 · T1-41

03

## Executive summary

Nothing is legally binding, financed, contracted or permitted at the project level.

The Philippines has joined a United States-led political initiative and has publicly offered approximately 1,618.74 hectares of BCDA-owned land in New Clark City, Capas, Tarlac, to host its first Economic Security Zone. As at the latest verification, nothing about the project is legally binding, financed, contracted, or permitted at the project level.

What exists is a non-binding declaration signed on 16 April 2026 by a Department of Trade and Industry undersecretary; a four-page proposal letter from the Bases Conversion and Development Authority dated 9 April 2026; a

named but uncommitted anchor tenant; roughly thirty unnamed letters of interest; and a contemplated framework or master agreement involving BCDA and an unnamed US counterpart, for which Philippine officials previously identified November 2026 — potentially during an ASEAN Summit that President Trump is expected to attend — as a possible signing target. In a reply relayed by the Palace on 13 October 2026, BCDA said partnership details remained under discussion and signing was expected before the end of 2026, without reaffirming November or the ASEAN Summit.

The published BCDA offer does not describe the project the government is marketing. The headline economic figures are unreconciled: no published activity mix reconciles the capital and job figures, and the tax figure is not reconciled with the employment figure at current wage benchmarks. The two binding physical constraints, water and power, have not been shown to be soluble on the published parameters. The counterparty relationship is markedly less favourable than the framing suggests. And, in fairness, the strategic case is genuine and some of the criticism is wrong.

The recommendation is neither endorsement nor rejection. It is that the Philippines should not sign an instrument creating substantive rights before the required conditions are met; a strictly non-binding framework is acceptable only with every express safeguard of the two-branch rule. Legal leverage continues until substantive rights are created; political lock-in may increase around the November target.

SOURCES DRAWN ON T1-02 · T1-03 · T1-05 · T1-14 · T1-42

04

## Key judgments

Sixteen judgments on a five-point confidence scale. Structured analytical judgments, not calibrated probabilities.

The Pax Silica Declaration is a non-binding political declaration, not a treaty and not a legally enforceable executive agreement. It imposes no obligation and confers no entitlement. Every benefit invoked in Manila (investment, technology

transfer, upskilling, market access) is unsecured by the instrument actually signed. Confidence: high.

No investor has made a binding, disclosed commitment. The published BCDA proposal describes a bilateral government coordination facility with an exclusive-use clause covering the entire 4,000 acres, not a multi-tenant industrial park. The US$40–70bn investment figure and the 130,000–190,000 jobs figure are unreconciled and jointly implausible. A mixed-use configuration delivering both is arithmetically constructible, but the one illustrative configuration this report constructed would require more back-end employment inside this one site than the entire national industry supports today, and no published activity mix reconciles the two. The impossibility claim is withdrawn; the disclosure demand stands. Official employment claims are inflating without new evidence.

On-site rainwater harvesting alone has not been demonstrated as sufficient at the stated 90 MLD demand. A 3 GW load cannot be served by solar on the site or elsewhere in New Clark City, though whether an off-site renewables-plus-firming configuration could work is unmodelled by anyone, and marked as such. The immunity and jurisdiction question is unresolved, not closed. BCDA's claim that no indigenous community is affected rests on the absence of a titled ancestral domain, not the absence of a claim.

The "resource plunder" critique is substantially overstated as applied to semiconductor demand, though a narrower minerals concern remains legitimate. The claim that the project is purely commercial with no defence dimension is not sustainable as stated, though an on-site defence function is expressly not established: what is established is a strategic-security linkage and a gap between framing and statements by Philippine officials. The distributional profile below is a structured risk hypothesis pending the undisclosed instruments, not a finding. And the project is pre-decisional rather than underway: fourteen of sixteen implementation gates are open, a status BCDA itself confirmed in a formal FOI denial of 12 May 2026 and again, on a later date and a wider request, when it withheld the site's own boundary and geospatial data on 1 September 2026 as prejudicially premature. How much leverage the Philippines loses on signature depends on what the instrument actually creates, which is why the decision rule below turns on the rights a text confers rather than on its label.

SOURCES DRAWN ON T1-05 · T1-03 · T3-03 · T3-06

plus arithmetic derived in the calculation reference

05

## What is known, claimed, disputed and still unknown

The claim-verification matrix: fifty-four claims adjudicated.

Known and verified: the Declaration text and its 25 signatories; that the Philippines signed on 16 April 2026 through a DTI undersecretary; the complete text of the BCDA letter including the two-year grace period, the undefined Year-3 rate and term, the reversion clause, the exclusive-use clause and the statutory miscitation; the US fact sheet's "joint governance" language; the US-Philippines Critical Minerals MOU of 4 February 2026; the ACWA Power 500-hectare solar lease; and the USTR tariff of 24 July 2026.

Claimed but unverified: every economic figure in circulation, investment, jobs, taxes, exports, GDP share, originates with the Philippine government and rests on studies that have not been published.

Disputed: immunity and jurisdiction; the number of affected farmers and indigenous households; whether the project is renewably powered; whether it has a defence dimension; the scale of the minerals linkage.

Unknown: the framework text; the identity of all interested firms; the identity of the "US-based company" described by BCDA as project proponent; the Year-3 rent; the lease term; the metes and bounds; the water balance; the grid interconnection plan; the incentive package and its fiscal cost; the domestic value-added assumption; and whether Senate concurrence will be sought.

SOURCES DRAWN ON T1-01 · T1-02 · T1-03 · T1-05 · T1-14 · T1-15 · T4-01 · T1-41

06

## Definitions and boundaries of the project

Public debate conflates at least eight distinct things.

Separating them is the single most important analytical step in this file. The Pax Silica initiative is a US State Department programme with no legal personality.

The Declaration is a short non-binding political text with 25 signatories. Philippine accession was a political act with no domestic legal effect. The proposed Economic Security Zone is a proposal only. The Pax Silica Coordination Office is what the BCDA letter actually proposes. The Luzon Economic Corridor is a separate initiative, announced April 2024 as a US–Japan–Philippines corridor and expanded on 11 May 2026 to add Australia, Canada, Denmark, France, Italy, Korea, Sweden and the United Kingdom, with its own steering committee. The Critical Minerals Framework is a separate non-binding MOU. And New Clark City's pre-existing projects have their own permits and disputes predating all of it.

Two boundary errors recur. New Clark City is in Capas and Bamban, Tarlac, not at the former Clark Air Base in Pampanga, and not in Pampanga at all. And "Pax Silica" is used interchangeably for the global initiative and the Philippine site; they have different memberships, legal statuses and risk profiles.

The core analytical error is bundling. BCDA has described the site as integrating semiconductor packaging, electronics, AI computing, R&D and mineral processing, activities that differ by an order of magnitude or more on every parameter that matters: capital intensity, jobs per dollar, water, power, hazardous waste. A single impact estimate spanning all of them is not an estimate; it is a category error. The activity mix has not been published, so every figure in circulation is unfalsifiable. BCDA's own account has moved: on 23 July its president said the agency "may invite data centers, but it's not all about data centers", and that one or two of at least 30 interested firms are data-centre operators. On 6 August he said the project "is not data centers". On 19 August BusinessWorld reported him saying the hub is "purely commercial", will have no defence-related activities, and that no hyperscale data centres would be built for it; the Inquirer, publishing the following day, separately reported him linking that to New Clark City's current power infrastructure being unable to sustain hyperscale facilities. Those two reports carry remarks from the same forum and are not independent corroboration. The published description in the state news agency has also changed: on 19 June PNA described the development as expected to host hyperscale data centres among other facilities, in the agency's own descriptive wording; on 7 August it reported the BCDA president saying any data centres would serve semiconductor firms and not hyperscalers, and that

major data centres would sit outside the initiative. This report records the change in the published description and does not assert that the underlying official position changed, nor whether the later statement is a clarification or a change of plan. No hyperscale restriction was found in the published project materials reviewed, including BCDA's April proposal — a search result, not proof of absence, and no instrument yet restricts locator activity in this way.

On 24 August the account widened again, and this time from a second agency. At the House appropriations hearing on the DTI's 2027 budget, Trade Undersecretary and BOI Vice Chairman and Managing Head Ceferino S. Rodolfo said New Clark City "is just one of the projects, and it will be focused on advanced manufacturing" and that "the whole stack of AI, we will still discuss to determine other locations for those other areas" (Manila Bulletin); pressed by ACT Teachers Rep. Antonio Tinio, that "what's clear is, in Clark, there is no data center"; answering Akbayan Rep. Percival Cendaña, that data centres "may happen in another location" where water and electricity are more available; and that talks were held "just last week" with an unidentified Metro Manila local government about a national IC-design hub, with a Pax Silica partner that is not the United States (Inquirer). ABS-CBN renders the exclusion as "the AI data centers themselves will not be in New Clark City". Asked whether the electricity, water and environmental concerns are valid, he answered "yes, that is why we are taking inputs from everyone". No official transcript or recording of the hearing was retrieved, so each quotation is carried as its outlet's account.

On 1 September the Palace restated the exclusion and answered the question 24 August had left open. At a Malacañang press briefing, Palace Press Officer Claire Castro said, attributing the position to the DTI, that "On the Clark Advanced Manufacturing Park, there will be no data centers", and that any investment project "whether data center or not, or whether under the Pax Silica or not, will have to undergo strict compliance with government regulations, for example, and most critically on environmental impact". Addressing possible locations elsewhere, she said "If there is talk of another location outside New Clark City, there is no proposal yet regarding this, according to DTI" (Philippine News Agency, whose rendering the English follows; the exchange was in Filipino). This materially strengthens the evidence for the government's present stated intention that the proposed parcel will contain no data centres. It does not establish that

exclusion as a formally adopted or enforceable land-use rule. The exact name Clark Advanced Manufacturing Park was not located in any proclamation, published board resolution, master plan or bid document reviewed here, although official reporting uses it for the proposed roughly 1,600-hectare development — and from 4 September 2026 so does BCDA itself, which used it throughout its own press release on the community census and, in a statement to reporters the same day, drew the distinction in its own words: CAMP is the physical development platform, while Pax Silica is the broader international partnership. That resolves whose usage the name is; it does not make it an adopted designation, and BCDA's own release calls the park proposed throughout. So Castro's statement does concern the proposed parcel — it simply is not an instrument establishing its legally adopted permitted uses or boundaries, and it sets no data-centre threshold, no own-use boundary, no decision-maker and no change-control rule. The 24 August and 1 September statements are compatible but address different questions: Rodolfo described a possible future location outside Clark, while Castro reported that no such proposal presently existed. Both remain in unresolved tension with the 23 July invitation statement and the 7 August own-use allowance, because no published rule defines the categories or shows whether the policy changed. Neither carrying outlet's headline is on this site's news rail: BusinessWorld's substituted "outside Clark" for Castro's narrower "outside New Clark City", and BusinessMirror's added "formal" to "no proposal yet" while its lede read that as no company having formally applied. The finding is unchanged: the formally adopted activity mix of the parcel remains undeclared.

Where the assurance stops is now visible in BCDA's own paperwork. Its July 2025 bidder information for the New Clark City ICT corridor — Annex F to Bid Bulletin No. 5 of the NCC ICT Passive Infrastructure Project — lists among the city's industrial locators a "Hyperscale Data Center", 47.0 hectares, "construction to start on Q4 2025". PNA reported the underlying transaction in June 2024: a lease contract agreement signed alongside Tarlac Governor Susan Yap for a 47-hectare New Clark City site, for a 300 MW hyperscale facility in three 100 MW phases at about US$890 million each, US$2.7 billion in total. This review found no authoritative 2026 confirmation of that project's construction, schedule, cancellation or current status, and nothing establishes whether the parcel lies inside or outside the proposed Pax Silica parcel; no inference is drawn either

way. What it does show is that the assurance is narrower than its headline in both directions. Officials have said small locator-operated facilities for a firm's own use may be established inside, while major ones would sit outside — and no instrument located in this review sets the threshold that separates the two, names who decides it, or says what happens if a locator's facility grows past it. The finding is unchanged: the formally adopted activity mix of the parcel remains undeclared.

The named anchor sharpens this considerably. Foxconn's described activity is "computer parts and electronic components manufacturing", conventional electronics assembly. Not wafer fabrication, not hyperscale compute. If the anchor sets the character of the zone, this is an electronics manufacturing park with an AI-branded name, which is a legitimate and useful thing to build but is not what the prospectus describes.

SOURCES DRAWN ON

T1-05 · A-01 · A-02 · T1-37 · T1-38 · T1-39 · T1-40 · T1-44 · T3-53 · T3-54 · T3-56

07

## Research methodology and limitations

A triangulated, mixed-method design, and the things it cannot see.

The design combines a systematic scoping search; a four-tier source hierarchy with explicit adjudication of conflicts; process tracing against a ten-step implementation ladder; a claim-evidence audit; parametric techno-economic appraisal with disclosed formulas; legal-textual analysis; environmental and social risk screening under Philippine law; stakeholder and distributional mapping; comparative case analysis; and scenario and sensitivity analysis.

This review is not PRISMA-compliant and is not described as such. No protocol was pre-registered, no dual independent screening was performed, and no formal risk-of-bias instrument was applied. Wikipedia was consulted only to cross-check dates; several of its details conflicted with State Department primary sources and were discarded.

Four adjudication rules are visible throughout. Primary text beats characterisation. Official statistical series beat industry association claims. A party's admission against interest carries extra weight, the Finance Secretary's "thousands of jobs" is treated as more probative than aggregate promotional figures. Silence from a party with an interest in speaking is weak corroboration only, and never bears weight alone. And technical claims are tested against arithmetic, not against the credibility of the claimant.

Known limitations: the public record includes the core offer/Declaration/BOI-published reply and additional official instruments, but Annex A and an executed zone framework remain unlocated. No independent fieldwork was conducted. Direct community statements carried by media and advocacy-mediated accounts are distinguished; neither supplies a validated parcel baseline. Conditional Capas/Bamban positions, provincial remarks and August consultation are recorded. Formal municipal correspondence, consultation minutes/submissions, Sanggunian resolutions and parcel/FPIC records remain the specific gaps.

SOURCES DRAWN ON T1-01 · T2-01 · T3-14

08

## Detailed timeline

Nine months from initial discussion to a published unilateral offer and a conditional US acceptance in principle, with no executed zone agreement located.

The enabling statutes come first: RA 7227 created BCDA in 1992; CREATE MORE was signed in November 2024; RA 12252 replaced the 50+25-year foreign investor lease with a single term of up to 99 years in September 2025. Aeta Hungey groups filed CADT applications over Capas in 1999, 2014 and May 2019. New Clark City construction began in 2018.

The initiative itself moved quickly. The inaugural Pax Silica Summit was held in Washington on 12 December 2025, with seven founding signatories, the US, Japan, Israel, Australia, Singapore, Korea and the UK, and the Netherlands, Taiwan, Canada, the EU and OECD attending as guests. The Netherlands associated as a non-signing partner five days later; Qatar and the UAE signed in

mid-January, India on 20 February, Sweden in March, Finland in April and Norway in May. On 2 February 2026 the US launched Project Vault, and on 4 February Secretary Rubio launched FORGE at the inaugural Critical Minerals Ministerial, the same event at which DENR Secretary Lotilla signed the US-Philippines Critical Minerals MOU. On 9 April 2026 BCDA President Joshua Bingcang signed the proposal letter offering roughly 4,000 acres rent-free for two years. On 16 April 2026 the Philippine Embassy transmitted it by Note Verbale, DTI Usec. Rodolfo signed the Declaration, and the State Department announced the Zone, "joint governance," and an intent to "fuse American expertise in institutions and legal regimes."

Then contestation. On 18 May 2026 Bingcang stated the Philippines had refused a US request to place the zone under American law; on 25 May Helberg called that "patently untrue"; on 26 May the State Department declined to say what governing law would apply. On 17 June Reps. Tinio, Elago and Co filed House Resolution 1128, calling for an investigation in aid of legislation into Philippine participation and the establishment of the Economic Security Zone; it was read on 28 July and has been pending with the Committee on Economic Affairs since 11 August. Three more followed in a week: Akbayan's House Resolution 1227 on 28 July, Rep. Pimentel's House Resolution 1231 the same day, directing the Special Committee on Strategic Intelligence to hold a briefing with the defence and security agencies, and House Resolution 1247 on 29 July from Reps. Erice, Lagman, San Fernando, De Jesus and De Lima, putting eleven questions including the legal authority under which the agreement was executed. All four were read by 3 August and all four remain pending in committee. At the Second Summit in late June, the Under Secretary's opening remarks of 25 June previewed the Zone in a dedicated section, and the outcomes document published the following day did not mention it.

The final fortnight compressed everything. Foxconn was named on 7 July. The DFC approved LNG feasibility funding on 16 July. Scientists and farmers marched to the US Embassy on 13 July. Job claims escalated across four agencies between 22 and 26 July. And on 24 July the USTR imposed a 12.5% tariff and the peso closed at a record low. The signed or enacted legal measures identified in the retrieved record include Philippine enabling statutes, a separate ACWA Power solar lease, the US–Philippine Philippines Energy Threshold

Program grant instrument signed on 10 September 2026, and a US tariff applicable to Philippine exports. The tariff is an external trade measure, not an instrument of this project. This report previously presented its list of binding instruments as exhaustive and omitted the signed threshold-program instrument; that is corrected here.

What comes next is dated. The inaugural Luzon Economic Corridor Investment Forum opened in Taguig on 10 September 2026, scheduled for 10 and 11 September, co-hosted by the governments of the United States, the Philippines and Japan and sponsored by USTDA. Two PCO accounts of the President's keynote located in this review contain no occurrence of "Pax Silica"; that is a bounded statement about those published pages, not every forum session or untranscribed remark. One PCO account names Australia, Canada, Denmark, France, Italy, the Republic of Korea, Sweden and the UK as partner countries; INQUIRER.net quotes the President on moving further into semiconductor design, research and engineering and developing the critical-minerals sector responsibly and strategically. The host governments' release, as reproduced by SunStar, announced Spain and the European Union as additions to the corridor partnership, although USTDA had already listed the EU as a partner in August and the sources retrieved do not say whether September marked formal admission or establish either addition's legal form. GMA News quoted US Ambassador Lee Lipton referring to US–Philippine work in New Clark City on semiconductors, AI and trusted technologies; the PCO's account of his remarks used similar sectoral language without naming New Clark City. Although Ambassador Lipton linked New Clark City to prospective investment in semiconductors, AI and trusted technologies, no retrieved host-government release identifies the forum itself, or any agreement announced or signed there, as a Pax Silica event or proposed-zone instrument. The two governments also signed the US$60 million Philippines Energy Threshold Program, which the Department of Finance calls a Millennium Challenge Corporation Threshold Program Grant Agreement, and USTDA-funded corridor activities were announced; none was identified in the releases retrieved as a Pax Silica or proposed-zone instrument, and the agreement text was not located, so its obligations have not been reviewed here. Outside, a protest directed by its organisers against Pax Silica and the LEC forum became a physical confrontation with police: later reports placed arrests at five, with differing rosters; a later

Philstar report narrows but does not resolve the discrepancy. Manila Bulletin reported on 11 September that the Southern Police District initially reported 43 police officers and five activists injured; SunStar had separately attributed the same figures to SPD deputy director Col. Robert Baesa on 10 September. Manila Bulletin further reported that the National Capital Region Police Office later said its "latest validation" showed 16 PNP personnel with minor injuries. No underlying SPD or NCRPO record was located. The 43 is therefore retained only as an initial SPD figure reported by those outlets and is not adopted; 16 is carried as NCRPO's subsequently reported figure, not as an independently verified medical total. Philstar attributed 16 injured officers to the same official, and why the figures attributed to him differ is not established. The PNA copy gives 16 officers and five activists; organisations reported 23 to at least 27 injured protesters. The same-population protester counts remain unreconciled. The PNP said its officers exercised maximum tolerance; the organisations present condemned what they called a violent dispersal. A PNA report available through one republishing outlet, Republika News, quoted SPD chief Brig. Gen. Rodel Pastor as saying police intended to file cases against those arrested, organisers and Bayan Muna chairperson Teddy Casiño. No primary SPD recording or transcript, independent carrier, complaint, prosecutor's filing or court record was located in the reviewed evidence. This establishes only the police official's reported announcement as to Casiño and other organisers. Manila Bulletin subsequently reported an inquest and bail recommendation concerning the five arrested respondents, but no retrieved record establishes that a complaint was filed against Casiño or that any offence occurred. On 12 September Manila Bulletin reported that, following inquest proceedings, the Taguig City Office of the Prosecutor issued what the outlet described as a certification recommending bail of ₱60,000 for each of the five people arrested on 10 September—₱300,000 in total—in relation to alleged violations of Articles 148, 151, 153 and 155 of the Revised Penal Code. The underlying certification, complaints, inquest resolution and any court information were not located, and when this passage was first written, on 13 September, no second carrier had been found. A reported bail recommendation after inquest is a procedural development, not a finding that an offence occurred, proof that an information was filed in court, or evidence that bail was posted or the respondents released. No retrieved record shows a complaint filed against Teddy Casiño. RMN, attributing the arrests to the PNP's

public information office, reported only that inquest proceedings were under way on 11 September. On 14 September Philstar reported, expressly attributing its account to the human-rights group Karapatan, that the five—whom it described as paralegals—had each posted ₱60,000 bail on 12 September and had been released from detention; it said three were arrested during the protest outside the hotel and two after going to the Tuktukan police station in Taguig. Philstar's description of bail posted "before the Taguig City prosecutor's office" does not identify a court, a judicial approval, a bail receipt or a release order, and no police, prosecutor's-office or court confirmation was located, so the posting and the release remain Karapatan's account as carried by one outlet; the ₱60,000 amount agrees with Manila Bulletin's earlier report of the recommendation. Posting bail is not an admission or a finding that an offence occurred, and it does not by itself establish whether an information was filed in court. Philstar's 14 September roster—Mara Peralta, Jona Yang, Kenneth Castor, RC Placido and Daya Juliano—agrees with TV5's Karapatan-attributed roster except for Castor/Castro and differs from Philstar's own earlier list; because the two agreeing lists derive from Karapatan, their agreement is not independent corroboration, and the discrepancy is narrowed, not resolved. On 11 September Palace Press Officer Claire Castro, speaking at a briefing in New Delhi, urged opponents to take their objections to the appropriate agencies and criticised conduct she associated with violence. "Proper protest uses reason and intelligence. Please engage with the appropriate agencies so they can understand what you are advocating for," she said, according to Inquirer. Philippine News Agency independently reported the New Delhi briefing and characterised her appeal as one for peaceful dialogue rather than violence. On 11 September protesters opposing Pax Silica and the LEC assembled at Bayanihan Park in Angeles City and marched toward the Clark Freeport Zone's main gate, where they held a program; participants later travelled by vehicle to Capas, Tarlac (Inquirer; Punto Central Luzon). Inquirer and a separate photo report described attendance as several hundred, but no documented count was located. The same day in Iloilo City, youth groups led by the League of Filipino Students–Panay picketed outside the University of the Philippines Visayas Iloilo City campus, calling for rejection of Pax Silica and Executive Order No. 122 on the mining and critical-minerals sector, among other demands (Daily Guardian). Panay News described an 11 September LFS-led protest at the nearby Infante

flyover involving youth, farmers, women and other progressive groups. The matching date, organiser, subject and adjacent locations make it likely that the two reports concern the same mobilisation, but neither report expressly establishes that identity. Participants also invoked the proposed private AI data centre in Oton, Iloilo, which its proponent withdrew in August; no official document located designates that proposal as part of Pax Silica. Iloilo Governor Arthur Defensor Jr. had separately floated an "Iloilo version" of Pax Silica on 12 August, but no retrieved government decision, project instrument or site designation establishes an approved Pax Silica project on Panay. Neither report supplied a documented attendance count or estimate. At what Context.ph reported as a press conference on Thursday, 10 September, Ambassador Heather Variava, the US Senior Advisor for Economic, Energy, and Business Affairs, said: "The Luzon Economic Corridor...is an initiative that is separate from Pax Silica, although they are indeed connected" (Context.ph). At what The Manila Times reported as a virtual briefing on Friday, 11 September, she said that "any agreements that we come to meet the legal requirements of both—in this case, both the United States and the Philippines" (The Manila Times). No recording or transcript was located for either quotation; because the two outlets' accounts overlap in some reported remarks, the retrieved record does not establish whether they describe one appearance or two, and the quotations are kept separately attributed. Neither report establishes which sense of "Pax Silica" she meant: the name is that of the international State Department initiative, but Context.ph placed the remark amid concerns about Pax Silica projects around New Clark City. Either way, an official's reported remark does not legally delineate the proposed New Clark City zone or hub, which Philippine official communications have also called "Pax Silica" and described as "under the Luzon Economic Corridor"; if her referent was the proposed hub, the remark stands in unresolved tension with that description. The second is a prospective official assurance, not an agreement or legal analysis; it establishes neither the legal form nor the present compliance of any project-level instrument. Daily Tribune reported that, at an afternoon press conference during the 10 September forum, Finance Undersecretary Angela Ignacio said: "For now, it may be premature to be talking about Pax Silica because it's really a work in progress." It separately reported Ambassador Variava as saying: "This is an agreement that's under deliberation, so it's premature to comment on the details." Both quotations were

located only in Daily Tribune's reporting; Context.ph independently places Variava at a Thursday press conference but does not carry those words. Ignacio expressly referred to Pax Silica, but neither report identifies the particular unfinished instrument, arrangements or project details under discussion, and the antecedent of Variava's "this agreement" is not established by a transcript. The Philippines had already signed the non-binding Pax Silica Declaration on 16 April 2026. The remarks therefore provide single-carrier evidence that further Pax Silica-related details or arrangements remained under deliberation; they do not identify the legal form or status of a project-level instrument, independently establish KJ-16, or confirm, move or abandon the reported November target. As of 12 September, November remained an official target under consideration rather than a confirmed signing date: BCDA President Bingcang said on 19 August that it was not set in stone, and DTI Undersecretary Rodolfo reportedly reiterated on 28 August that the timetable could change if negotiations were not ready. Reports published on 14 and 15 September appear to draw on the same press encounter with Trade Undersecretary Rodolfo associated with the 10–11 September Luzon Economic Corridor Investment Forum; the exact date of his remarks was not established. BusinessMirror reports him describing the contemplated instrument as a master agreement between BCDA and an unnamed US counterpart, rather than one signed directly by the Philippine and US governments. Manila Bulletin, The Manila Times and Philstar report continued optimism about signing in November, subject to safeguards or continuing consultation. The carriers differ on the contemplated structure: BusinessMirror places the US counterpart on "the development side"; The Manila Times calls it a "co-developer and partner"; and Manila Bulletin alone reports that the agreement covers a lease of the property to a US agency. No instrument text, draft, term sheet, transcript, DTI or BCDA release identifying the master agreement, or US confirmation was located, so its legal form, parties and legal effects at signature remain unestablished. New in v2.60: on the night of 18–19 September 2026, at the plenary deliberations on House Bill 10858, the proposed FY2027 General Appropriations Bill, the House deferred consideration of BCDA's proposed approximately ₱1.983-billion budget on the motion of Deputy Minority Leader Rep. Antonio Tinio, with questions about Pax Silica and the situation of indigenous peoples in Clark reported by the government broadcaster Radyo Pilipinas as the principal considerations. This is the first located occasion on

which consideration of a Philippine budget item was deferred with Pax Silica expressly among the reported considerations. The sum is BCDA's proposed budget and not a Pax Silica appropriation — DBM Secretary Kim Robert de Leon told the appropriations committee on 17 August 2026 that the FY2027 programme contains no allocation intended for Pax Silica — and the action deferred consideration rather than rejecting the allocation. Manila Bulletin carries Akbayan Rep. Dadah Kiram Ismula's question about BCDA having notified indigenous peoples and residents who could be displaced while no concrete agreement exists; ABS-CBN carries BCDA budget sponsor Rep. Maria Angela Garcia's answer that nothing is final yet, and reports that consideration was suspended pending requested documents, including historical technology-transfer data and official DENR environmental clearances. No published House journal entry or verbatim transcript memorialising the motion's precise terms was located.

New in v2.74: on 13 October 2026, in a reply read by Palace Press Officer Claire Castro and recorded in the PCO transcript, BCDA said it had submitted to the President "through proper channels" the legal framework governing the use of the 1,620-hectare advanced manufacturing park, that it and its "US Development partner" continue to discuss the details of the partnership agreement, and that signing is expected "before the end of 2026". The question put to Castro described the signing as expected next month; the reply gives a broader window than the previously reported November target without reaffirming or expressly withdrawing it. Castro said she would check whether the President himself had received the draft. No public text of either document was located in the material reviewed, and the US partner is not named. The same day President Marcos said he could not see how the project would endanger local livelihood and, responding to what The Manila Times describes as a question about possible displacement and disturbance of ancestral burial grounds, that cultural concerns were "very much part of the discussions" and would not be allowed "to be put at risk". That is an assurance, not a demonstrated safeguard; displacement remains Disputed.

SOURCES DRAWN ON

T1-10 · T1-11 · T1-02 · T1-05 · T1-07 · T1-06 · T3-06 · T3-03 · T1-26 · T1-35 · T1-36 · T1-37 · T1-38 · T1-39 · T1-40 · T1-43 · T1-44 · T3-35 · T3-36 · T3-37 · T3-38 · T3-39 · T3-40 · T3-41 · T3-42 · T3-43 · T1-41 · T3-44 · T3-45 · T3-46 · T3-47 · T3-48 · T3-49 · T3-50 · T3-51 · T3-52 · T3-53 · T3-54 · T3-55 · T3-56 ·

T3-76 · T3-77 · T3-78 · T3-79 · T3-80 · T3-81 · T3-83 · T3-84 · T3-85 · T3-86 · T3-87 · T3-88 · T1-57 · T3-90 · T3-91

09

## Global Pax Silica structure and objectives

A State Department programme, not an international organisation.

Pax Silica has no secretariat with legal personality, no founding treaty, no published shared budget, no dispute-resolution mechanism, no accession criteria and no exit provisions. Coordination runs through the Office of the Under Secretary for Economic Affairs, held by Jacob Helberg, previously Senior Advisor to the CEO of Palantir, Google's global lead for foreign-interference product policy, and a Commissioner on the US-China Economic and Security Review Commission. This is not a neutral trade-facilitation background, and Pax Silica is best understood as an instrument of technology-bloc formation, which is exactly how its own fact sheets describe it.

The Declaration's operative language is uniformly hortatory: affirm, recognize, believe, encourage, seek, support, understand, and at its strongest, intend. "Intend" is the standard marker of a deliberately non-binding instrument. There is no "shall," no obligation, no entry-into-force provision, no termination clause and no dispute settlement. The legal reading cuts both ways: the Philippines has not surrendered sovereignty by signing, but equally none of the benefits invoked in Manila is secured by it. A second government has now put the same reading on the record: on 2 September 2026 the Lithuanian government approved joining the Declaration, and its foreign ministry said in doing so that the instrument is not an international treaty and would create no legal obligations for Lithuania under international or national law. That is an interested characterisation, since it is also what lets an executive join without ratification, and it is carried here as corroboration of the reading above rather than as its foundation.

There were 24 signatories as of 26 June 2026, the 23 listed on the State Department's own Pax Silica page plus the United States, which the page omits from its own list. Italy signed at Brindisi on 31 July 2026 as the 25th signatory, bringing the standing count to 25. Taiwan endorses the principles without signing, through a separate joint statement. Thirty-five countries signed the separate Joint Statement on AI Opportunity Partnership at the June summit,

several of them not Pax Silica signatories; State records 54 endorsers as of September 2026, including new endorsers Malaysia and Vietnam, neither listed on the Declaration roster checked on 7 October. Lithuania, one of that group, approved joining the Declaration itself on 2 September 2026, but that is an approval to join and not an accession: no executed instrument, Lithuanian signature announcement or State Department welcome note had been located as at 3 September 2026, so the standing count stays at 25. The Board of Investments publishes the signed declaration recording that the Philippines and the United States signed that statement at Washington on 25 June 2026; its signature blocks are redacted, so the signatories cannot be identified from it. Media have variously reported 13, 14, 15, 23, 24, "close to three dozen" and "about 30," and at least one Philippine outlet has listed Saudi Arabia, which the State Department list does not support. One signatory, the European Union, is not a country. Officials should stop using "member countries" without qualification.

In nine months the initiative has delivered four things: the Declaration; the Joint Statement; a funding opportunity for an AI supply-chain provenance platform, described in earlier reporting as piloted in Panama; and the Stanford Foundry School.

CORRECTION, 16 Aug 2026. This section called that funding opportunity planned until today. It was not. This site’s own news rail carried the State Department’s notice on 13 August 2026, verified and published, three days before this section was updated — two surfaces of the same document disagreeing for three days. Two things the rail item said are also restated here: US$50m is the register’s award maximum, not an established programme total, and the posted synopsis does not mention Panama.

The funding notice, now posted. It is the Pax Silica Artificial Intelligence Assistance Project, number DFOP0019193, from the State Department’s Bureau of Economic and Business Affairs under Assistance Listing 19.322, Economic Statecraft. State listed it on 12 August 2026; the federal grants register shows version 2 posted 14 August, with applications closing 20 August. An earlier version exists whose posting date this report could not retrieve, so nothing should be inferred about the length of the application window. The instrument is

a cooperative agreement, with three expected awards between US$1m and US$50m and a blank total-award field, so the register establishes no programme total; no cost sharing, open only to for-profit organisations other than small businesses. Its object is a trusted supply-chain credentialing and provenance platform and a "Silicon Highway", a digital-physical corridor with cryptographic cargo verification, and it describes itself as leveraging foreign assistance from the "Pax Fund", a name for which no published State Department authority, appropriation, size or governance document could be located. Only the public synopsis was read, not the full announcement, so no conclusion is drawn about which partner economies it names. One of the four deliverables is therefore no longer purely informational. But a solicitation is not a facility, no award has been located, and an award of US$1–50m sits roughly three to five orders of magnitude below the US$40–70bn BCDA says the New Clark City project could attract once fully developed.

CORRECTION, 2 Aug 2026. This site previously called the Zone's absence from the Second Summit outcomes document analytically significant, and offered two explanations, that it was not ready to be reported as a deliverable or that it is less central in Washington than in Manila. Both are withdrawn. A cross-model adversarial review established that the Under Secretary's opening remarks of 25 June contain a dedicated Economic Security Zone section stating that the United States will announce the first Zone in the Philippines, so the Summit was not silent about it, and that neither explanation is supported by the two documents. What the record establishes is narrower, a future-tense preview on 25 June followed by omission from the formal outcomes summary on 26 June, with the documents not explaining the difference.

SOURCES DRAWN ON T1-01 · T1-06 · T1-18 · T1-41

10

## What the Philippines has signed, offered and obtained

One political declaration, one unilateral offer, and no enforceable zone commitment in return.

The signed Pax Silica participation instrument discussed here is the non-binding Pax Silica Declaration, on 16 April 2026, by a DTI Undersecretary. Not the

President, not the Secretary of Foreign Affairs, not ratified, not transmitted to the Senate. That signature level is consistent with a non-binding instrument. It does not erase subsequent Senate scrutiny: the August hearing and September Committee-of-the-Whole decision are recorded. No Senate merits approval or concurrence, Cabinet paper or NEDA Board disposition was located in the reviewed record. If the November framework carries materially greater legal weight, it cannot properly be executed by the same route.

The BCDA letter of 9 April 2026 is a unilateral offer. It proposes a Pax Silica Coordination Office on approximately 4,000 acres under a lease-free arrangement for two years as the Philippines' in-kind contribution. Section I lists five coordination functions, minerals supply-chain security, joint strategic industrial planning, allied investment mobilisation, workforce development and technology transfer, and such other activities as the two governments may determine. Section II.3 restricts the entire 4,000 acres to those purposes exclusively.

The United States replied, and the reply is now in the record. A letter published by the Philippine Board of Investments, dated 16 April 2026 and bearing Jacob S. Helberg's typed name beneath a redacted signature, records a conditional acceptance in principle of the two-year rent-free lease — subject to confirmation of the site and boundaries, and to conclusion of an appropriate lease agreement. Funding, construction and operations are deferred to separate arrangements, subject to US law and the availability of funds, so the letter itself records no US funding commitment. Two cautions belong with it. Its US authorship and execution are not independently authenticated: the signature is redacted, and no State Department copy, release or archived contemporaneous copy was located. And later statements from both governments show the long-term framework and final contract still under negotiation, so this is an acceptance in principle rather than a concluded arrangement. The letter also describes the land as a Coordination Office, while Philippine announcements frame the same acreage as an industrial acceleration hub; no inference is drawn that the United States excluded the wider hub, only that the documents do not describe it consistently.

Seven problems appear on the face of the offer. The exclusive-use clause contradicts the public project. Annex A is missing. No lease term is stated. The

Year-3 rate is "to be discussed." Section III rests the offer on RA 7916, the Special Economic Zone Act of 1995, and then miscites the BCDA charter as Republic Act No. 7277, the Magna Carta for Disabled Persons, rather than RA 7227; US acceptance is to be effected under 22 U.S.C. §2697 and the Foreign Affairs Manual. The letter reserves consultations on "the status of personnel" and "internal security", and "status of personnel" is the standard formulation in status-of-forces and status-of-mission instruments, so it was the Philippine document itself that placed the subject on the table. And BCDA proposes to enter the Supplemental Agreement "on behalf of the Philippine Government," which is a government-owned corporation acting as the state's treaty-adjacent agent.

No enforceable commitment to implement the proposed zone was located in the reviewed record. The separate signed MCC energy threshold grant is acknowledged in the wider bilateral record, with its text and obligations unreviewed and no identified zone-financing link. There is no investment commitment, no technology-transfer obligation, no local-content requirement, no employment floor, no wage standard, no market access, no financing facility and no trade-treatment commitment, while the same counterparty raised tariffs on Philippine goods.

SOURCES DRAWN ON T1-05 · T1-03 · T1-04 · T3-01 · T3-02 · T1-35 · T1-36 · T3-57

11

## New Clark City scope and implementation status

Seventeen per cent of a 9,450-hectare development, and no published map.

New Clark City is a 9,450-hectare BCDA development in Capas and Bamban, Tarlac, begun in 2018 as a disaster-resilient government and industrial centre. The Pax Silica parcel is approximately 1,618.74 hectares within it, or 17.1% of the whole. Every hectare figure in circulation but one — 1,600, 1,618, 1,619, 1,620, 1,621 — is a rounding of that single conversion of 4,000 acres, and none is an independent Philippine measurement. One is not: the Luzon Economic Corridor investment portal, which names BCDA as proponent and gives a BCDA official as contact but is not shown to be a BCDA-authored publication, describes a "1,610 ha Pax Silica Economic Security Zone" — 8.74 hectares below the conversion,

where the conversion rounds to 1,620 at the nearest ten. Whether that is a transcription, an approximation, or a differently delineated zone distinct from the 4,000 acres BCDA offered for lease cannot be determined from the published record, and no BCDA document reconciling the two was located. It is not evidence that the parcel is a different size.

Every substantive question about this project is downstream of a map that has not been released. Without metes and bounds, it cannot be determined from the published record which households are affected, which watercourses are enclosed, what the catchment actually is, whether the parcel overlaps areas subject to Aeta CADT applications, or what the land is currently used for.

BCDA has confirmed this status in its own official records. On 12 May 2026, refusing a citizen's Freedom of Information request for the project pipeline, it stated that "the project is still on the planning stage and it is premature for BCDA to release any official information," invoking the pre-decisional and premature-disclosure exceptions. On 10 June 2026 it refused a request for the site map, on the ground that records involving ongoing state negotiations and strategic master plans are not final until they are. On 1 September 2026 it refused a third and wider request — for the official boundary or perimeter, the latitude and longitude of the corner points, the cadastral or parcel map identifying affected parcels, and the applicable barangay boundaries — under the Prejudicial Premature Disclosure exception, saying the information is withheld temporarily until the official action is finalized or published. Those three denials are the proponent's own formal confirmation of both findings in this section: the project is pre-decisional, and the Annex A vacuum is unexplained. Because no equivalent official boundary data was located elsewhere in the public record, the overlay of the parcel against NCIP ancestral-domain records could not be completed from the located public materials. The May response is visibly a template, generically signed, rather than a considered policy statement. fourteen of sixteen implementation gates are open. Public discussion, including by officials, has consistently treated the project as further advanced than the record supports. The single most common category error is treating a letter of interest, a site visit, a named prospect, or a feasibility study as an investment commitment.

SOURCES DRAWN ON T1-07 · T1-15 · T3-03 · T3-08 · T1-64

12

## Governance, ownership, financing and lease structure

Joint governance is asserted; its content is undefined.

The US fact sheet describes an intent to "fuse American expertise in institutions and legal regimes" with Philippine assets under "joint governance." Neither government has published what joint governance means concretely, what body, what powers, what decision rules, what dispute mechanism, and what happens when the two legal regimes conflict. "Shared upside" is likewise undefined: there is no published equity structure, revenue-share mechanism, royalty or profit participation.

The immunity dispute is unresolved, not closed. The Wall Street Journal reported the hub would operate under US common law with embassy-equivalent protections; BCDA says it refused that request, citing RA 7652 and RA 7227 and calling it "a regular business development contract"; Under Secretary Helberg says immunity was never sought; the State Department declined to answer the direct question. The accounts reconcile if the ask was framed as "operational certainty" and the Philippine side correctly read its substance. What is not in dispute: the governing-law question is open, and the published Philippine letter expressly reserves consultations on the status of personnel and on internal security.

Land ownership is not transferred, and the reversion clause returns the property and permanently affixed improvements to the Republic on expiry. But a 99-year master lease over 1,618.74 hectares held by a foreign government, which depending on its terms, Philippine law and the required approvals could permit subleasing or the use of the leasehold as financing security, would be a materially different proposition from thirty direct locator leases with the Philippine state, and which of the two is intended has not been disclosed.

On proposed-zone financing, no binding implementation commitment was located. The wider bilateral record separately includes the signed MCC energy threshold grant; its agreement text remains unreviewed and it is not identified as

zone financing. The following older examples are technical assistance and facilities rather than zone capital: USTDA US$3.8m, raised from US$2.5m; Sweden PHP 74m; a UK export-finance capacity of PHP 411bn, which is a facility and not a project commitment; and a DFC-funded feasibility study. The one committed equity figure in the file, ACWA Power at roughly US$200m, belongs to a different project on different land. On the record searched — the State Department's Pax Silica pages and releases, and the federal grants register — the Pax Silica Fund initiative was announced on 26 March 2026 as an intention to allocate US$250 million while working with Congress, but no appropriation, obligation, award, Philippine recipient or zone-specific financing commitment was located. CORRECTION, 16 Aug 2026. This site previously stated flatly that no such facility "exists"; that overstated what the record can show, and the finding is now scoped to the sources searched. The August 2026 funding notice does name a "Pax Fund" as its source of foreign assistance, but a name in a synopsis does not by itself establish that a constituted fund exists.

SOURCES DRAWN ON T1-05 · T3-03 · A-02 · A-03 · T1-35 · T1-36

13

## Technical and infrastructure feasibility

Water and power are the binding constraints, and neither has been shown soluble.

At 90 MLD, harvesting from rainfall requires a catchment of roughly 1,460–3,129 hectares depending on rainfall and runoff assumptions, between 90% and 193% of the entire site, before allowing for the 40% reserved as open space. Even under the most favourable assumptions this means capturing essentially all rainfall over essentially the whole site, which is incompatible with the stated 40% green and open space and would leave little or no parcel rainfall for groundwater recharge or for runoff to downstream flows; whether that would impair basin-wide recharge or environmental flows cannot be established by this arithmetic. At 90 MLD the proposal depends on a shared watershed resource; whether capture would reduce existing community or irrigation supply is undetermined without a basin water balance and environmental-flow analysis.

Sustaining supply through roughly 180 dry days requires 11.7–16.2 million cubic metres of storage, a major dam that appears in no published plan or cost

estimate. And the 65–90 MLD figure appears to cover direct site cooling and process water only; applying a data-centre benchmark of about 1.2 gallons per kWh including indirect use to an assumed continuous 3 GW load gives an illustrative 327 MLD, some 3.6 times the disclosed figure; the project's whole-system water footprint is undetermined without its activity mix, cooling design and generation mix.

On 28 August 2026 the water question acquired a bidder. The BCDA Board granted original proponent status to a consortium of Maynilad Water Services Inc. and the Korea Water Resources Corporation (K-water), the operator of Angat Dam, for an unsolicited proposal reported at ₱14.8 billion to provide long-term water supply and wastewater management at New Clark City. It must still clear the public–private partnership approval process and a Swiss challenge. BCDA opened that challenge in late September 2026: its indicative timetable takes proposals to 28 December 2026 and targets the award for 26 February 2027 — replacing the December 2026 target reported in August as its current published schedule — with a twenty-five-year concession, subject to extension, and BCDA says the schedule may change at any time. Original proponent status is not a contract award, a construction commitment or evidence that the water exists. Three BCDA figures came with it, all attributed and none verified: New Clark City's existing capacity is an estimated 20–30 MLD; estate capacity could rise to as much as 150 MLD, with the initial system designed for up to 135 MLD; and contemporaneous reporting repeated BCDA's earlier estimate that Pax Silica could eventually require 65–90 MLD. So this one project wants between 2.2 and 4.5 times everything New Clark City can supply today, and roughly half to two-thirds of the initial designed capacity of an estate-wide system that must also serve every other user in it — offered as scale, not as an allocation, and nothing establishes that the 135 MLD would be available here. What the procurement step does not supply is the thing this section has asked for throughout. As at 1 September 2026 no water balance, catchment delineation, dry-season yield analysis, flow-duration curve, dependable drought yield, withdrawal inventory or environmental-flow reservation for this system was located in publicly available BCDA, Maynilad, K-water, NWRB or DENR-EMB material, and the announcement identifies no selected catchment. That is a publication finding rather than a claim that no such work exists — and it is precisely the point, because an award on a proposal whose water balance has never been published would put the contract

ahead of the evidence. The challenge documents, issued on 25 and 28 September 2026, do not change that: they set qualification rules, not a design, and neither states a source mix, catchment or water balance. What they do show is the experience BCDA requires challengers or their nominated entities to demonstrate: deep wells totalling at least 32 MLD, and an underground dam of at least 50 MLD or an equivalent subsurface technology, with surface dams and weirs expressly excluded. These are thresholds on past projects, not capacities planned here, and they do not establish which technologies or water sources will be used; the documents concern the estate, not the parcel. No public document explains how these requirements relate, if at all, to the surface-water harvesting BCDA described in August — an open question, not an established inconsistency. The catchment arithmetic above is unaffected.

BCDA's own documents put deep wells inside New Clark City's supply history, and that matters for an assurance this report has flagged. BCDA disclaims community groundwater use for the hub — its president told a Tarlac consultation on 19 August 2026 that it would bypass community groundwater through rainwater harvesting, river systems and wastewater recycling. Five BCDA documents, retrieved and read in full on 18 September 2026, record what the estate has actually done. Its 2018 invitation for the New Clark City water and wastewater concession states that supply "will be sourced from deep wells within the vicinity and surface water", and makes design and construction experience of "20 no. wells to a depth of more than 100 m" a pass or fail eligibility criterion. Its 2019 annual report dates the resulting joint venture with a PrimeWater-led consortium to 17 December 2018. And BAC-I Resolution No. 2025-006 of 23 March 2025 records that Phase 1 developments were being supplied by two deep-well pumping stations in place since 2019, that the designated operator's contract was terminated on 7 October 2024, and that the committee recommended — and the head of the procuring entity approved — resort to emergency negotiated procurement for further deep-well pump stations capped at 2.6 MLD. None of this contradicts the disclaimer: all of it concerns the estate rather than the proposed parcel, and the 2018 document predates Pax Silica. What it establishes is that deep-well abstraction is documented here rather than hypothetical, which is why the disclaimer needs to become an enforceable, project-specific prohibition with source tracing rather than a statement of intent. It proves nothing about abundance, sustainable yield,

recharge, catchment independence or drought reliability, and nothing about capacity at this project's scale: the hub's 65–90 MLD requirement is 25 to 34.6 times the approved 2.6 MLD procurement scope, and 32.5 to 45 times the 2 MLD of the single well the resolution proposes. The 2018 document's roughly 200 MLD end-of-concession estate projection is flagged against the 20–30, 135 and 150 MLD figures above, not reconciled with them.

The legislature returned to the water question on 17 September 2026. At the plenary deliberations on House Bill No. 10858, the proposed 2027 appropriations bill, the environment department's budget sponsor — Rep. Jose Alvarez, whose 26 August comparison of the requirement to one second of Zambales river discharge this page records as advocacy — said that, "if I were the government, I will not allow this kind of project to extract water from the underground aquifer, Madam Speaker, because the underground aquifer is not an infinite source", and that Pax Silica "will have to bring their own power. They will have to bring their own water." It is a hypothetical personal position, not an instrument: no regulatory condition, lease term or House measure implementing it was found. It is not recorded as a repudiation of his August stance but as a qualification of it. And providing your own supply is not the same as sourcing it outside the affected catchment.

On power, 3,000 MW is 19.2% of the DOE's official 15,600 MW projection for 2026 Luzon peak demand, and 20.6% of the 14,534 MW peak actually recorded by mid-2026, on a grid that ran a 373 MW deficit under red alert on 15 May 2026 with 4,106 MW unavailable to the grid, including 30 plants on forced outage. BCDA's own signed ACWA lease sets the benchmark: 500 hectares for up to 500 MW, one hectare per megawatt. Supplying the energy of a 3,000 MW continuous load from solar needs roughly 15,000 MW of nameplate and therefore about 15,000 hectares: 9.3 times the parcel and 1.6 times the whole of New Clark City. The renewables claim is not a matter of ambition or cost; on the land available it is geometrically impossible. That impossibility is established for solar on the site and elsewhere in New Clark City at the ACWA benchmark; whether an off-site renewables-plus-firming configuration could be engineered is unknown, because no one has modelled it, including this report.

On 27 July 2026 this finding stopped resting on this report's arithmetic alone. Energy Secretary Sharon Garin told Rappler that connecting the full 3 GW load is "too dangerous," that the grid "will just shut down" if a load that size is lost, that 100–200 MW is the manageable ceiling, and that beyond it the project will need its own power plant. The regulator that would have to approve the connection reached a consistent conclusion on grid connection independently, and went further than this report had; that is not a finding on solar land or on the eventual generation mix.

The DFC has funded a feasibility study for a ≥1,200 MW LNG terminal and plant. A US development finance institution does not fund a gas feasibility study for a project it expects to run on sunshine. Stated precisely: the LNG study is the only firm-generation option with reported feasibility funding, beside a dedicated plant of unspecified fuel that proponents said on 9 August 2026 they were studying; neither is a committed plan. Three consequences go unacknowledged: BCDA's "avoid fossil fuels" framing should be corrected; a 1,200 MW combined-cycle plant at high load factor emits on the order of 3–4 million tonnes of $CO_2$ a year with no published carbon accounting; and LNG is imported and dollar-denominated, creating a structural currency exposure for Philippine industrial power costs.

Positive factors, fairly stated: Clark International Airport is adjacent and handles the air freight by which semiconductors actually move. Subic Bay provides deep-water port capacity and now holds a formal, qualified role: an MOU signed on 20 July and described in BCDA's 4 August release designates it as Pax Silica's preferred maritime gateway, with joint studies and assessments still to follow. The agreement text is unpublished and the designation is not operational capacity. The Subic–Clark–Manila–Batangas rail corridor is progressing; New Clark City has existing trunk infrastructure. This is a genuinely well-located site. But the estate's own digital layer has no private partner after three attempts. BCDA has been seeking an incorporated joint-venture partner since 2023 to commercialise and, as necessary, expand, repair and maintain its existing passive ICT assets at New Clark City — conduits, fibre optic cables, chambers, colocation facilities. The first process was advertised on 16 October 2023; four prospective participants bought the eligibility documents, only one submitted, and on 6 May 2024 BCDA's selection committee rated it "Failed" on legal

capacity and technical capability and recommended declaring a failure of the competitive selection. A second, posted on 14 February 2025, was suspended and cancelled to align the project with the PPP Code — not for want of interest. The third ran from May 2025 to 25 June 2026 and drew no bids at all. BCDA now seeks unsolicited proposals, which the Luzon Economic Corridor investment pipeline states in its own words, giving an opportunity value of US$20 million; the ₱2.5 billion reported alongside it is the bid documents' preliminary estimated total project cost over the 25-year joint-venture term, not a construction budget, and nothing located reconciles the two. This is an estate-wide New Clark City project rather than a Pax Silica procurement — its record begins before the initiative — and no published record establishes that it has delayed the hub or that the hub depends on its completion; no ICT dependency schedule was located. What it bears on is readiness: the enabling connectivity for the estate that would host the zone has been to market three times in under three years without a taker in the latest round. But Philippine industrial electricity at roughly 15 US cents per kWh, about 50% above Indonesia and Vietnam, and logistics at about a quarter of sales are national competitiveness problems. A zone designation does not solve them; it concentrates their consequences.

SOURCES DRAWN ON

T3-12 · T3-17 · T3-26 · T2-04 · T3-06 · T1-22 · T1-23 · T1-59 · T1-60 · T1-61 · T1-62 · T1-63 · T1-64 · T1-69 · T1-70 · T3-27 · A-05 · A-06 · A-08

plus arithmetic derived in the calculation reference

14

## Economic, employment, fiscal and industrial-policy assessment

Announced: US$40–70bn and up to a million jobs. Legally committed: zero.

Pairing US$40–70bn of capital with 130,000–190,000 direct jobs implies 134–196 jobs per developable hectare, a labour-intensive light-manufacturing density. That is not a data-centre density, not a wafer-fab density and not a refinery density. Run it in both directions: if the project is genuinely AI-native, permanent employment lands in the low tens of thousands at most; if it genuinely creates 130,000–190,000 jobs, most of that employment would have to come from assembly, test and packaging or similar labour-intensive work; if that dominated, perhaps US$15–30bn of capital would suffice, a very large conventional back-

end electronics park, which is a respectable thing to build but is not what is being sold. A mixed configuration could in principle produce both figures; none has been published.

BCDA's low-end figure of 130,000 total jobs for one 1,618.74-hectare parcel is comparable in scale to DTI-BOI's national target of 128,000 engineers and technicians to be produced for the whole semiconductor and electronics industry by 2033 — a deadline corrected from 2028 in v2.46, BOI having published 2028 in August 2024 and 2033 repeatedly since, with no identified explanation of the change. The comparison is one of scale, not of like quantities: the target is a flow of specific occupations into the whole industry, not an employment ceiling, and not every site job requires an engineer or technician. Its high-end figure exceeds total employment across all 4,744 Subic Bay Freeport locators. The Labor Secretary's figure would exceed the combined workforce of Subic and Clark roughly three times over. The only bottom-up figure on the record is "thousands," from the Finance Secretary, about the named anchor.

On the fiscal side, PHP 60bn of lease income over 25 years equals PHP 148.26 per square metre per year, with a present value of about PHP 25.6bn, 0.59% to 1.03% of the capital it is meant to host. No independent land valuation has been published, which is a governance failure independent of whether the rent is adequate. At an assumed 20% effective rate and the 160,000-job midpoint, the lower end of the PHP 68–75bn withholding tax claim implies average compensation of about PHP 2.13m per worker: 2.4 times a Philippine semiconductor engineer's salary and 8.1 times an operator's. The implied figure rises at a lower assumed rate and falls at a higher one, so these are explicit scenarios, not a unique implication. BCDA closed the one remaining escape route itself on 23 July 2026, describing the figure as the tax contributed by the workers, with other shares bringing the total to PHP 180bn. On that stated composition the conclusion is no longer that the fiscal case cannot be assessed, but that the tax and employment figures, as published, are not reconciled at current Philippine wage benchmarks. That does not show which figure, if either, is overstated: at fixed wages and rates fewer jobs would widen the gap, and BCDA's under-10% foreign-worker share does not rule out a high-pay minority raising the average. Only the unpublished model can say.

Correction, 10 August 2026: earlier versions described BCDA's US$200bn export projection as annual. New reporting places full development on an approximately 30-year horizon but does not consistently establish whether the figure is annual, cumulative over that horizon, or measured on another basis. The 2.37× comparison with one year of Philippine merchandise exports survives only as a non-period-equivalent comparison of nominal magnitudes; the projection and its temporal basis remain unsupported without the underlying study.

No published estimate exists of the cost of fiscal incentives. Under CREATE MORE, registered enterprises may take 5% SCIT or 20% CIT with enhanced deductions including a 100% additional deduction on power expenses, for up to 17 or 27 years. For a project defined by extreme electricity intensity, that is a very large tax expenditure. A project that leads with gross tax revenue while omitting tax expenditure is presenting half a ledger. Public cost per permanent job cannot presently be computed, and that it cannot be computed is itself the finding.

The genuine industrial-policy case should not be caricatured. The manufacturing gap is real and widening. The allied advantage, comparative non-entanglement with Chinese capital, is genuine and time-limited. BPO vulnerability at 7.4% of GDP makes an alternative growth engine urgent. And the country's back-end semiconductor base is a real asset, with electronics at US$45.89bn, or 54.3%, of a US$84.48bn export book in 2025 on PSA figures; SEIPI's broader electronics measure grew 16.11% year on year. But this case argues for negotiating hard, not for accepting the current terms.

SOURCES DRAWN ON

T3-09 · T3-19 · T3-23 · T3-28 · T3-29 · T1-17 · T1-19 · T2-03 · A-04 · A-07

plus arithmetic derived in the calculation reference

15

## Legal and regulatory assessment

Executive agreement or treaty? The question has not been answered.

The Declaration is non-binding and creates no domestic legal effect. The framework agreement is the instrument that matters, and no public text of it was located in the material reviewed. The threshold in Article XVIII, Section 25 of the 1987 Constitution is military character, so the exposure is contingent

rather than established. The substance-over-form analysis rests on Saguisag v. Ochoa (G.R. No. 212426, 2016) and its three standards, independence from foreign control, sovereignty and applicable law, and national security, which track precisely the clauses in the published BCDA letter. Long-term exclusive foreign use, restricted access, a distinct internal security regime or dual-use functions would not by themselves make the arrangement military; Section 25 could be engaged if the framework also brought in United States military or security personnel or defence-industrial functions. As a policy recommendation, stricter than any demonstrated constitutional trigger, a framework containing those clauses should not proceed as a bare executive agreement. There is also an independent route to Senate concurrence under Article VII, Section 21.

Several statutory questions are open. Whether the Section II.3 exclusive-use clause permits private industrial locators. Whether BCDA may enter a Supplemental Agreement "on behalf of the Philippine Government." RA 7227 §5(c) does confer power to contract "with foreign government entities," but that is commercial capacity only; the Act nowhere confers power to bind the Republic as a foreign-relations act, so the open question narrows to exactly that. BCDA's own charter term runs fifty years to about 2042 (RA 7227 §3), which sharpens rather than settles the succession question under a 99-year lease. And classification of the instrument follows substance "regardless of nomenclature" (EO 459, s. 1997, §2(a)), calling it an arrangement rather than an agreement decides nothing either way. Whether RA 12252's 99-year lease ceiling applies at all. The regime it amends covers private lands leased by qualifying foreign investors with approved and registered investments. Although BCDA says the site will remain under BCDA ownership and Philippine jurisdiction, the land's classification for purposes of RA 7652/RA 12252 has not been established in the public record, and the statute alone does not establish authority for a master lease to an unidentified foreign-government entity. Both points are threshold questions rather than details. Whether IPRA certification precondition and FPIC processes are engaged notwithstanding the absence of a titled CADT, under the native-title doctrine, they do not depend on a CADT having issued.

Reporting of 14–15 September attributes to Trade Undersecretary Rodolfo a description of the contemplated instrument as a master agreement between

BCDA and an unnamed US counterpart, possibly a government corporation. BusinessMirror reports him saying that it would not be signed directly between the Philippine and US governments. That reported description does not answer the open questions. An agreement signed by BCDA solely in its own corporate capacity could draw on its contracting power under RA 7227 §5(c), whereas the BCDA letter proposes that the Supplemental Agreement be entered "on behalf of the Philippine Government"; only the instrument text, parties, recitals, signature block and evidence of authority could establish the capacity in which BCDA would act. Manila Bulletin alone reports that the contemplated agreement covers a lease of the property to a US agency. If the signed instrument grants that lease —or independently grants exclusive use or another substantive land right—§23.3 requires the assessment to classify it under branch one for precautionary purposes, whatever its title. RA 12252, which applies to leases of private land by qualifying investors with approved and registered investments, would not by itself establish authority for a lease to an unidentified US government entity. No instrument text or US confirmation was located, and the counterparty and its juridical status remain unidentified.

New in v2.74: BCDA's reply, read at the Palace briefing on 13 October 2026 and recorded in the PCO transcript, refers both to a "partnership agreement" under discussion with an unnamed "US Development partner" and to "the legal framework governing the use of the 1,620 hectare advanced manufacturing park", reportedly submitted to the President "through proper channels". It does not establish whether these references concern the same document or different documents. It is consistent with the reported description of a BCDA-level arrangement with a US counterpart, but it does not name the partner, does not say whether the legal framework is the text of the partnership agreement, a Philippine instrument governing the use of the land, or another document, and does not settle the capacity in which BCDA would sign. No public text corresponding to either reference was located in the material reviewed.

No formal legal opinion from the DFA Office of Legal Affairs or the Office of the Solicitor General has been published on any of these questions. Obtaining and publishing them is within the executive's control, though no completion time for obtaining them is established.

SOURCES DRAWN ON

T1-12 · T1-13 · T1-05 · T3-01 · T3-02 · T1-66 · T3-83 · T3-84 · T3-88

16

## Environmental and social assessment

No project-specific EIS, water balance, energy plan, biodiversity survey or social baseline was identified in the reviewed public record.

The threshold finding is an absence. No project-specific Environmental Impact Statement, water balance study, energy plan, biodiversity survey, cumulative impact assessment or social impact assessment for the Pax Silica parcel is on the public record. DENR has stated that an EIS and Environmental Management Plan will be required, with Multipartite Monitoring Teams. None was located as a published project-specific study in the reviewed record.

The cumulative dimension is the one most likely to be missed. An assessment scoped to the parcel boundary would exclude the ACWA solar site, the LEC rail corridor, the LNG terminal and plant, the proposed Subic–Clark jet-fuel pipeline, and any upstream mining expansion, which together are the actual footprint.

On indigenous rights, BCDA's position that no ancestral domain is affected rests on the absence of a titled domain, not the absence of a claim. Aeta Hungey CADT applications over Capas were filed in 1999, 2014 and May 2019, and displacement disputes at New Clark City have run since 2018. The dispute over affected households, BCDA's "about 10 farmers" against campaigners' ~20,000 Aeta and farmers, is unresolvable without Annex A; the two figures are almost certainly describing different footprints. On-site reporting published 18 August 2026 adds a departure account the hearing record did not contain: two residents of Sitio Sapang Kawayan said they were told they could be required to leave by December, one recalling only until Christmas, with no relocation destination or assistance communicated to them and payment said to cover their houses but apparently not the land. That is reported testimony, not an agency record — no corresponding BCDA notice, valuation schedule, relocation plan or demolition order has been published. The commission announced on 20 August 2026 that it had conducted or begun a census and validation of Aeta Hungey households at that sitio, following its chairperson's stated intention at the 14 August Senate

hearing to obtain an exact validated count; the reporting carrying that announcement appears largely derivative of it, and no household, family or person total, boundary, method or reference date has been published.

Three later BCDA-side developments refine the count but do not resolve it. On 4 September 2026 BCDA published its own release on the updated community census at Sitio Sapang Kawayan, conducted with the NCIP, and said it was still consolidating and validating the final figures with the commission; no official total had been released, and nothing in the release identifies the activity as a Section 59, certification-precondition or FPIC process. AFP reported on 20 September 2026 that about 1,000 Aetas had received a letter from BCDA in July warning that the project could affect their occupied lands, and that community leader Petronila Capiz-Muñoz said BCDA employees told residents to leave by December and to relocate about 16 kilometres away; no copy of the letter and no corresponding relocation plan was located, and the account rests on a single AFP interview. On 21 September 2026 BCDA president Joshua Bingcang estimated around 40 structures concentrated in about 10 hectares, and about 200 people, and denied that this constitutes displacement; the two published accounts of the remarks disagree on structures versus households, the area is an estimate rather than an identified parcel, and it cannot be located while BCDA withholds its boundary data. Displacement remains disputed.

On 31 August 2026 the opposition acquired a name and a single structure. The Network Opposed to Pax Silica was launched in Quezon City as a multi-sectoral alliance of civil-society, religious, scientific, farmer, student and environmental organisations seeking to halt the initiative. At the launch Petronila Capiz-Muñoz, identified as chieftain of the Aeta community at Sitio Sapang Kawayan, told reporters that residents had learned of the project through social media, that there had been no consultation, and that they had again been told to leave, this time by December, and said the development threatened their community, livelihood, church and burial ground. This is attributed testimony and nothing more. Its weight is that it carries, from the chieftain herself at a public event and in more than one outlet, the same December-or-Christmas account this report has held since 18 August from two other residents. It establishes no official or documented deadline; the quotations reached English through translation; BCDA's contrary position stands, and displacement remains disputed. It is an

alliance launched by its participating groups, and nothing here establishes registration, membership numbers or representativeness. A school-level position is recorded on the same footing as the church-labour one and is not counted in the coalition (v2.56, added seven weeks late as a correction of a coverage omission rather than as a new development): the Philippine Daily Inquirer reported that St Scholastica's Academy, a Catholic Benedictine school in the City of San Fernando, Pampanga, issued a statement on 25 July 2026 which, while recognising the project's potential to spur economic growth, sought transparency and a moratorium on implementation until environmental, social and governance concerns are adequately addressed, and independent scientific assessments of projected water and energy consumption, saying no publicly available comprehensive Environmental Impact Assessment, no complete disclosure of long-term water and energy requirements and no full accounting of effects on host communities and neighbouring provinces including Pampanga had been published. No primary copy of the statement and no independent carrier was located, so its date, contents and quotations rest on that one report, and 25 July is the article's "On Saturday" read against a Monday publication. It is a school's institutional statement, not a diocesan or bishops'-conference position. Pampanga is a neighbouring, not the host, province, and no claim is made that this was the first institutional position from Pampanga.

On 1 September 2026 a cabinet department said its own assessment is unfinished. At the House budget briefing on the Department of Agriculture's 2027 budget, Gabriela Women's Party Rep. Sarah Elago asked whether the department had assessed the project's effects, citing reports that around 15,000 farmers and up to 20,000 Aeta people could lose their livelihoods and ancestral lands. Agriculture Secretary Francisco P. Tiu Laurel Jr. answered "Right now, we are still thoroughly assessing the full effects of Pax Silica. The initial reports I have seen indicate that not that many people will be affected. But our assessment is not yet finished", added "From what I understand from what I see on TV, within the 1,600-hectare Clark area, it doesn't seem like there are that many directly affected farmers. I really cannot say as of now until our study comes out on what the effects will be on agriculture", and, asked when it would be done, said "Perhaps, in another 30 days". The exchange was in Filipino and the English follows GMA News's rendering; the Inquirer rendered portions differently, puts the farmer figure at approximately 15,200, and does not carry

the Aeta figure. No DA administrative order, terms of reference, scope, method, team, completion date or commitment to publish was located in this review, so the thirty days is a tentative estimate given under questioning and not a written or publicly documented departmental timetable. This preserves the finding that the affected-household count is unknown while adding mixed evidence about the competing claims: the unfinished assessment reinforces the uncertainty, and the Secretary's repeated preliminary impression points directionally toward the lower end of the dispute and away from the campaigners' cited figures, but it verifies no figure because he supplied no count or completed method. Rep. Elago's figures are her characterisation of third-party reports and are not adopted here.

The Agriculture Secretary has since given a count, and no assessment behind it was located. BusinessMirror reported on 30 September 2026 that Secretary Tiu Laurel had "confirmed" to the newspaper that "some 266 farmers tilling 410 hectares will feel the adverse impact of the project's planned development"; that he was citing the DA's "official assessment" is the newspaper's framing, not his quoted words. He is quoted: "We will request that farmers be given an alternate planting area and support them in the first year with seeds and fertilizer." The remarks are undated. As of 1 October 2026 no copy of the assessment, no DA release, scope, methodology, reference date or mapped boundary, and no second carrier of the 266 and 410 figures was located; that does not establish that the assessment does not exist. The number is identical to the 266 farmers the Capas mayor attributed to municipal records at the 14 August Senate hearing for a first phase of about 580 hectares, and the match does not establish whether the figures share records, are independent counts or cover differently bounded areas. The 410 hectares is unreconciled with the 580-hectare and "around 500 hectares" phase figures and the roughly 1,620-hectare parcel, neither equivalent nor contradictory. It counts farmers, not households, and says nothing about the Aeta community. It is numerically much closer to the 182 and 266 first-phase counts than to the approximately 15,000 farmers Rep. Elago said reports indicated, but with no common boundary, definition or reference date the comparison validates no count. It is in direct tension with the Palace's categorical 3 August assurance that the project "will not affect our farmers", and does not by itself resolve which statement rests on the applicable boundary. BusinessMirror separately reports the Secretary expecting BCDA and other agencies to assist,

but supplies no BCDA undertaking. The finding that the number of affected households is unknown stands.

An agriculture-industry group’s reported representative stated conditions rather than opposition. BusinessMirror reported on 14 September 2026 that Jayson Cainglet, executive director of the Samahang Industriya ng Agrikultura (SINAG), said the group was not opposed to investment or economic diversification but that "Pax Silica and other projects must not be pursued by sacrificing the country’s agricultural production capacity and rural livelihoods". According to BusinessMirror, Cainglet called for projects under Pax Silica or similar initiatives to be preceded by an impact assessment, comprehensive mapping of potentially affected farms and agricultural areas, no displacement of agricultural livelihoods, a clear legal guarantee prioritising agricultural and household water requirements over industrial requirements, continuous independent monitoring of groundwater, irrigation water, soil and surrounding agricultural areas, and a legally enforceable mechanism allowing government to reduce, suspend or stop operations causing serious or irreversible harm. When this paragraph was first written, on 14 September, no original SINAG statement, transcript or second carrier had been located. BusinessWorld reported the same day a statement from Cainglet with substantially overlapping content and wording, including "Pax Silica must proceed — but not at the expense of agricultural land, irrigation water, farmers’ livelihoods, environmental quality, and food security", and adding a call to prohibit converting agricultural land for such projects (updated in v2.55). The overlap suggests that both outlets drew on one distributed statement, so the second report corroborates that the statement was issued rather than supplying an independent account; no SINAG original was located, and 14 September remains a publication date, not an established date of the remarks. SINAG is not counted in the opposition coalition: this is recorded as Cainglet’s conditional position as attributed by BusinessMirror, and the concerns are not treated as findings of actual or prospective harm. It does not alter the finding that the number of affected households is unknown. In the same BusinessWorld report, former Agriculture Secretary William D. Dar, speaking to BusinessWorld via Viber, said the project should be powered by renewable energy, build rainwater catchment and water-recycling facilities, and properly resettle affected farmers and communities before development begins, adding: "Without these assurances then this initiative must not go forward"; he also said it would not

affect agricultural production if properly done with mitigation. Dar's remarks rest on BusinessWorld alone; he holds no current office, and his position is recorded as conditional, not counted in the opposition coalition, and not treated as a finding of prospective harm.

The local government record was never as thin as this report said, and one of its own findings was overstated. Between 11 and 19 August 2026 three things entered the record that this report had not carried. Capas Mayor Roseller Rodriguez wrote to President Marcos and to BCDA on 11 August invoking Sections 26 and 27 of the Local Government Code, saying the municipality would withhold support until BCDA held a meaningful public consultation — not supporting, not opposing until one happens. Acting Bamban Vice Mayor Levy Tadeo then named Aeta communities in five sitios of Barangay Anupul — Coop, Gayaman, Malasa, Mabilog and Mainang — as overlapping the project, a second affected-community locus alongside Sitio Sapang Kawayan in Capas, while Governor Christian Tell Yap welcomed the jobs and investment. On 19 August BCDA and the provincial government held a consultation at the Tarlac Convention Center, the most substantial proponent-led local engagement in this record. A correction follows, and it runs against this report: the finding that no project-specific consultation record had been published is withdrawn as overstated, because BCDA has published a dated account of that consultation. What survives is narrower and still true — no minutes, attendance list, submissions, issues-and-responses register, grievance mechanism, compensation framework, livelihood restoration plan or independent monitoring arrangement has been published. And the two published accounts of the same meeting do not record the same meeting: BCDA's names no speaker, objection or demand, while contemporaneous local reporting the next day records the Capas and Concepcion mayors, the acting Bamban vice mayor and Roberto Calara Mallari, Roman Catholic Bishop of Tarlac, pressing unanswered questions on water, power, displacement and ancestral domain. That is a divergence in the published record, not a finding of concealment. None of it is a consent process: no account of 19 August identifies an indigenous representative, NCIP participation or any FPIC step.

On hazardous materials, semiconductor and refining chemistry generates acids, solvents, fluorinated gases, tailings and residues. No treatment, storage and

disposal plan has been published, and the former base lands at Subic and Clark have a documented contamination history. Financial assurance bonds and environmental liability insurance sized to remediation cost are the standard response and are absent.

SOURCES DRAWN ON

T3-16 · T3-17 · T2-06 · T4-05 · T1-20 · A-11 · A-12 · T3-35 · T3-36 · T3-37 · T3-38 · T3-42 · T3-43 · T3-46 · T3-50 · T3-51 · T3-52 · T3-76 · T3-79 · T3-80 · T3-81 · T3-82 · T3-89 · T3-90 · T3-91

17

## Geopolitical, sovereignty and national-security implications

A strategy of displacement, stated by its author, hosted physically by the Philippines.

The US fact sheet is unusually explicit: the Luzon hub is intended as the first Zone in a broader industrial network, and that network is described as capable of competing with, and ultimately displacing, the concentrated supply chains on which the world currently depends. That is the mission statement of the enterprise the Philippines has agreed to host first. It is a source of both leverage and exposure. This is a legitimate strategic choice. It is not a neutral one, and it should not be presented domestically as though it were.

A reported instance, and its limits. Reuters, in a wire carried by CNBC on 15 August 2026 and by GMA News in Manila on 16 August, reported that the State Department has prepared a draft letter to the 35 signatories of the Joint Statement on AI Opportunity, the Philippines among them, warning that they will be excluded from Pax Silica if they also sign up for a competing framework. The draft states that signature of the Declaration "is not merely a membership subscription, but a commitment" and "cannot be held alongside membership in duplicative initiatives whose expectations conflict with our own." Reuters reports the letter does not specifically mention China; the competing framework it identifies is the World Artificial Intelligence Cooperation Organization, whose establishing agreement China’s foreign ministry records as signed by representatives of 29 countries on 16 July 2026. The caveats are load-bearing and are why this moves no judgment here: the draft is undated, and whether it was sent is not established by the reviewed record; Reuters could not determine when or whether it would go out or in what form, the State Department declined

to comment on "purportedly leaked internal documents", and the account rests on one news organisation, one anonymous official and a document this report has not seen; the many republications are the same wire copy, not corroboration. As reported it is an internal draft, not announced United States policy. No express exclusivity or incompatibility clause appears in either instrument the Philippines has signed. The narrow question this raises is answerable in the framework text: whether participation is stated to impose any restriction on the Philippines joining other countries' AI or supply-chain initiatives.

What four governments have since published. Kazakhstan's Ministry of Artificial Intelligence and Digital Development records that on 25 June 2026, in Washington, Deputy Prime Minister and Minister Zhaslan Madiyev signed the Declaration of Accession of the Republic of Kazakhstan to Pax Silica, and that Kazakhstan thereby officially joined. Three weeks later, on 16 July 2026 in Shanghai, Kazakhstan signed the agreement establishing China's World Artificial Intelligence Cooperation Organization: a Xinhua report on China's government portal records representatives of 29 countries including Kazakhstan signing it, making their countries WAICO's founding members, and Indonesia's Coordinating Ministry for Economic Affairs published the list of signatory states the same day. Among the 29 states Indonesia names, Kazakhstan is the only one that also appears on the 25-participant Pax Silica roster this assessment uses; Oman signed the WAICO agreement and is not a Pax Silica signatory. Separately, on 9 September 2026 Singapore's Ministry of Digital Development and Information published a parliamentary reply confirming that Singapore, one of the seven original Declaration signatories, has received a WAICO invitation and will consider it, and that there is no ASEAN position on either WAICO or Pax Silica. What this establishes is a sequence and nothing more: participation in Pax Silica did not prevent Kazakhstan from signing WAICO's establishing agreement before Reuters publicly reported the draft warning. Signature, ratification, entry into force and operative membership are not interchangeable, and this assessment has not seen the WAICO agreement, so Kazakhstan's position there is recorded as signature and a founding-member designation by Chinese official sources, not as accession or established legal membership. The draft letter is undated, so the conduct predates the reporting of it, not demonstrably the draft. Nothing here shows United States knowledge, approval, acquiescence or non-enforcement, nothing corroborates that the draft was authentic, sent or adopted,

and nothing bears on the Philippines: neither case speaks to Manila's invitation status, its policy, or what it would do. No judgment, confidence level or scenario weight moves. Added v2.51.

The counterparty relationship is asymmetric in a way the framing obscures. The Philippines is being asked to grant durable, specific, physical concessions, land and rent forgone, for a project that would also require substantial water and electricity whose sources, allocation, price, infrastructure and cost bearer remain unresolved, in exchange for a non-binding declaration and feasibility studies, by a partner that imposed an additional 12.5% tariff on Philippine exports on 24 July 2026. That is not an argument for refusal. It is an argument for writing everything down.

The claim that the project is purely commercial is not sustainable as stated. The Philippine Ambassador to the United States has publicly linked Pax Silica revenue to the country becoming "more militarily equipped." That establishes a strategic-security linkage, not an on-site defence function. No dual-use exclusion clause is published, and no national security assessment of concentrating strategic assets near Clark and existing EDCA sites has been published either.

China has twice demonstrated willingness to use rare-earth export controls as leverage, and Philippine agricultural exports are a soft and historically used pressure point. Keeping the Zone genuinely multilateral, with Japanese, Korean and European participation, is both a commercial and a geopolitical hedge. Non-alignment is not costless either: if Western sourcing rules increasingly exclude China-linked suppliers, remaining outside the bloc carries its own exclusion risk for an economy whose merchandise exports are 54.3% electronics, and Vietnam, Malaysia and Indonesia are competing for exactly this capital. The realistic question is not whether to participate but on what terms and with what hedges.

---

SOURCES DRAWN ON T1-03 · T3-01 · T3-02 · T1-18 · A-10

18

## Stakeholder and distributional analysis

Gains concentrate; risks distribute.

Gains concentrate in foreign investors, the national government and the construction sector. Risks concentrate in Tarlac's water users, Luzon's electricity consumers, Philippine taxpayers funding enabling infrastructure and incentives, and Aeta and farming households whose numbers remain unpublished. This is not an argument against the project. It is an argument for making the beneficiaries carry the costs contractually.

BCDA and the executive speak frequently and are extensively documented. Affected communities are represented mainly through advocacy intermediaries. NGCP and the ERC remain conspicuously absent on project-specific interconnection and cost allocation. Local government is no longer near-absent from this record: Capas has taken a stated conditional posture — withholding support until a meaningful public consultation, formalised in an 11 August 2026 letter to the President invoking Sections 26 and 27 of the Local Government Code — Bamban's acting vice mayor has named Aeta sitios in Barangay Anupul as overlapping the project, and the province hosted BCDA's 19 August consultation. What is missing is the formal layer: no Sanggunian resolution, no published minutes or issues-and-responses register, and no local-government determination on the merits. That, and the absence of any published response to the Local Government Code letter, is what the record now lacks. The Senate is also active without a merits position: after its 14 August Environment Committee hearing, the chamber on 8 September approved without objection a motion to constitute a Committee of the Whole for extensive discussion. The Philippine Embassy has likewise moved beyond this assessment's former "currently passive" description by attending the Foundry School launch and publicly welcoming it as a collaboration and workforce-preparation opportunity, while identifying no Philippine participation commitment or implementation instrument. NCIP has engaged with communities and announced census work, but nothing in that record indicates initiation of the certification-precondition process.

On the critical side, the Makabayan bloc has the agenda-setting role but Akbayan's is the more consequential critique, transparency, ownership structure,

monopoly safeguards, undue foreign influence and critical-infrastructure risk. That critique is now a filed instrument: House Resolution 1227, filed on 28 July 2026 by Representatives Cendaña, Diokno and Kiram Ismula with Rep. Bag-ao, read on 3 August and referred to the Committee on Economic Affairs, where it has been pending since 11 August. It is one of four. The House's own search index, checked on 6 September 2026, returns four numbered resolutions naming Pax Silica — 1128, 1227, 1231 and 1247 — reaching beyond the progressive blocs to a committee chairman acting on strategic-intelligence grounds and to district, labour, electric-cooperative and liberal party-list members. Filing an inquiry or briefing resolution does not by itself establish opposition, and the two instruments new to this assessment are not counted in the opposition coalition: House Resolution 1231's recitals restate the administration's projections approvingly. All four are pending in committee, and no substantive committee disposition was located in the House records searched. Church organisations, historically decisive in Philippine politics, are critical and have now mobilised: Caritas Philippines formally opposed the hub "in its present form" on 4 August; the Conference of Major Superiors in the Philippines wrote to the President ahead of the SONA, and religious groups joined SONA-day protests police put at around 6,000. Domestic big business, Ayala, the Makati Business Club, AmCham, is mixed rather than unaligned, and this assessment's earlier description of it as "interested and currently unaligned" is withdrawn as to MBC and AmCham. At a Makati media get-together on 3 September 2026, reported on 6–7 September by several outlets apparently covering the same event, MBC chair Edgar O. Chua described Pax Silica and the Luzon Economic Corridor as opportunities for the country while calling for greater transparency, clearer communication and attention to environmental and employment concerns, and MBC trustee Cosette Canilao was quoted by the Manila Times saying it is "like the next revolution". Those are reported remarks by a chair and a trustee, not a located board resolution or position paper, and they do not establish Ayala Corporation's position. AmCham had separately welcomed the President's call for support for the Pax Silica Industrial Hub and the Luzon Economic Corridor on 28 July 2026. No change of position by either organisation is inferred: MBC's own 28 July commentary on the address was already partly favourable, so the date on which it adopted this position is not established here. The Manila Times reported on 11 August that SEIPI now backs the initiative and proposes a higher-value

manufacturing ecosystem with infrastructure, workforce, supplier-development, incentive and environmental measures; the reported position paper was not independently retrieved, and none of its prescriptions is treated here as adopted policy or technical evidence. A new zone with preferential terms still competes with existing firms for talent and investment, which is why a competitive-neutrality review by the Philippine Competition Commission belongs in the process.

SOURCES DRAWN ON

T4-01 · T4-03 · T1-65 · T4-05 · T4-07 · T3-18 · T3-11 · T3-25 · T3-30 · T1-35 · T1-36 · T3-37 · T3-38 · T3-57 · T1-67 · T1-68 · T3-90

19

## The public conversation: a social-listening analysis

6,437 sampled mentions, December 2025 to SONA eve. Sampled sentiment turned sharply negative by July.

Section 17 mapped who the stakeholders are; this section measures what they are actually saying. The source is a social listening export of 6,437 public mentions of "Pax Silica" worldwide from 6 December 2025 to 27 July 2026, stated by the provider to be a 10% sample excluding reshares. The figures describe those sampled mentions only. Corrected: earlier versions multiplied the sample by ten to imply about 64,000 original posts inside roughly 300,000 pieces of total activity; that population and amplification estimate is withdrawn, because the 10% rate is not independently verified and the later query inspection behind the ratio was not a benchmark of this export. The shares here are sample-dependent estimates; movements within this export on its one constant method are more informative than comparisons against figures collected differently, but remain subject to sampling and labelling error. The export is consistent with the provider's description that reposts were excluded: none of its 1,579 X rows is a native retweet, and only 21 X rows share duplicate text. An earlier note describing the basis as repost-inclusive is corrected.

Before the Philippines joined, Pax Silica was covered, not discussed. The 2,286 pre-accession mentions were 60% online news and 28% X, with 75.2% neutral and a net of −1.0, the signature of wire-service copy. Volume moved only when a country signed, and India's accession on 20 February was the single largest day

of the whole record outside July, and net positive. Philippine-related content was 0.7% of that phase.

Accession did not just add the Philippines to the conversation; the Philippines took it over. Post-accession, 46.3% of mentions are Philippine-related and a third are in Filipino. The top channels became Facebook at 31%, X at 23% and Reddit at 23%, while news fell from 60% to 18%. Reddit went from 39 mentions to 943, a 24-fold increase. Net sentiment moved from −1.0 to −24.8.

The monthly trajectory is a structured deterioration punctuated by one recovery. April from the 16th: 181 mentions, net −3.3. May: 495, net +12.1. June: 548, net −11.7. July: 2,927, net −34.8. May's positive spike coincides with the government's most defensive month, the public rejection of the US jurisdiction-and-immunity request on 18 May. The apparent recovery is a temporal association in the vendor-labelled sample, not evidence of public reward or causation. This report earlier added that its own relabelled series did not reproduce it; that use of the relabelled series is withdrawn (see the classifier caveat below), and the withdrawal does not establish that the May increase represents public reward for the refusal.

July was an eruption: 45% of the entire eight-month record, with the final eight days carrying 36.4% of everything ever said. July's five biggest days fall in that window, not the entire record's top five and all are sharply negative, 24 July at 621 mentions and net −43 as the BCDA figures blitz, the 99-year-lease disclosure and the US tariff landed together; 22 July at net −50 during Secretary Rubio's Manila visit amid protests. The opposition has minted its own hashtag: #NoToPaxSilica appears 50 times against #PaxSilica's 105.

Within the sample, on keyword topic categories and vendor labels, the high-volume topics are mixed: AI and technology at 41.8% of mentions sits at net −1.5, geopolitics at 20.1% sits at 0.0, jobs at 17.3% is net +2.6 and minerals at 12.3% is net +2.3. Sampled mentions on the economics run both ways. The low-volume topics are strongly negative: water and environment at net −43.8, land and indigenous rights at −50.3, governance and corruption at −54.4. Those nets describe keyword-matched sampled mentions under unvalidated machine labels, not whether the wider public debates these questions, and cells this small are sensitive to sampling and labelling error. BCDA's July "myths vs facts" campaign

was aimed precisely at the water and displacement claims, and the sampled July data show no rehabilitation of those categories. The corruption category is the smallest and the most negative of all, the theme officials have addressed least.

Four implications. The political-risk register has observed antecedents in the sample: negative mentions rose sharply in July, but the export ends on 27 July and cannot show whether that rise continued toward the November signing window. The vendor series associates February and May with better sentiment than July, but these historical provider-label associations do not establish public reward, punishment or causation, and the report's earlier use of the classifier-labelled April–May decline against a May recovery is withdrawn. Sampled post-accession discussion sits mainly in venues the government does not brief: within the listening platform's coverage, Facebook, Reddit and X carry 77% of it, a third of it in Filipino, while Palace briefings remain optimised for a news channel that has fallen to 18% of sampled mentions. And four new monitoring indicators follow: monthly net sentiment on a constant method, the #NoToPaxSilica-to-#PaxSilica ratio, the channel mix, and the water and land topic share.

Caveats applied throughout: machine sentiment is unreliable on Filipino and Taglish irony, so levels are directional, and month-to-month changes on a constant method are more informative but remain subject to the same labelling error; topic categories are keyword-based and 33.3% of mentions match none; channel coverage reflects the listening platform's access, with no TikTok and only public Facebook content; and Philippine-related and Filipino-language classifications are this report's, not the platform's.

Relabelling note, added v2.30 and revised v2.72. The figures in this section use the listening provider's sentiment labels and are preserved unchanged as the record of that analysis. For the site's running exhibit, the same 6,437 mentions were relabelled by the software that labels the daily collection. That series reads the early months at +24.7 to +50.7 net, May at +28.5 after April's +39.4, and July at −35.6 against the −34.8 here. Classifier caveat, added v2.72. A 17 September 2026 audit of that software, on a selected sample of 245 mentions from the later daily collection, found substantial disagreement over whether reporting itself expressed sentiment or stance toward the project: against the audit reference it labelled 69 of 128 neutral mentions neutral and 25 of 112 informational mentions

informational. In light of this audit, this report withdraws its earlier interpretation that the positive early-month relabelling showed tone and target being successfully separated, and withdraws its use of the relabelled April-to-May decline as evidence against a May recovery. Neither historical interpretation has been directly validated, and the audit did not examine the historical mentions. This withdrawal does not establish that the provider-labelled May increase represents public reward for a refusal. July's −35.6 is retained solely as previously published, uncorrected classifier output: its proximity to the provider's −34.8 is numerical agreement between two labelling schemes, not accuracy, and the audit establishes neither the direction nor the size of any error in it. No corrected method or figure is established and no series has been rerun. Full statement: the assessment's section 17A and Appendix H.

SOURCES DRAWN ON T3-13 · T3-14 · T3-15 · T4-02 · T4-08

20

## International comparisons and lessons

Six comparable cases. Silicon Valley is not one of them.

Foxconn in Wisconsin is not an analogy but a precedent involving the same counterparty. Announced in 2017 as US$10bn and 13,000 jobs with up to US$2.85bn in state credits; renegotiated in 2021 to US$672m and 1,454 jobs with credits cut to US$80m, but those 2021 figures are renegotiated contractual targets for tax-credit eligibility, not delivery. WEDC-verified actual delivery through 31 December 2024 is approximately US$717m invested cumulatively, 1,242 jobs and US$62.9m of credits earned. Against the original announcement that is ~7.2% of investment and ~9.6% of jobs. A November 2025 WEDC-Foxconn amendment plans a further US$569m and 1,374 jobs by 2029. The lesson is not that Foxconn is uniquely unreliable, it is that a wealthy, institutionally strong government with sophisticated counsel could not hold a large manufacturer to a headline announcement, and the only thing that protected its taxpayers was the performance-linked clawback in the contract. The Philippines has no such structure, no contract, and no clawback.

Penang shows that value-chain ascent is real but generational, driven by skills investment and supplier development rather than by zone designations or land

concessions. The Philippine binding constraint is skills depth and supplier capability, not land, and a country that responds to that constraint by offering land is answering a question nobody asked.

Indonesian nickel downstreaming is the most directly transferable case: a host state that controls a scarce input can dictate terms. Indonesia used regulatory leverage over its resource, not land concessions. The Philippines holds the world's fourth-largest copper and fifth-largest nickel and cobalt reserves, and is currently leading with the concession rather than with the lever. The counter-lesson matters too, Indonesia's approach imposed real environmental and social costs.

India shows that even a large domestic market with deep engineering talent could not skip the back-end-first sequence. Vietnam shows that export volume without enforced local content produces thin value capture. And Intel in the Philippines, 1996–2009, is the domestic precedent: the country already hosted a marquee American semiconductor anchor for thirteen years, and neither retained it nor built a domestic chip industry from it. The capital went to Vietnam. The variable that determines whether this time differs is not the size of the announcement but whether binding technology-transfer and supplier-development obligations are written into the contract.

SOURCES DRAWN ON T1-21 · T2-01 · T1-42

21

## Scenario analysis

Five futures, each with a probability band of roughly ±10 points, explicit triggers and early-warning indicators.

Scenario A: proceeds substantially as announced, ~10%. Scenario B: proceeds but narrower, slower and less capital-intensive, ~35%, the most likely single outcome. Scenario C: delayed or stalled, ~30%. Scenario D: external geopolitical or trade shock, ~15%. Scenario E: no project, and an alternative industrial policy counterfactual, ~10%.

Scenario B deserves particular attention because it is both the most likely and politically damaging. What gets built is a conventional advanced-electronics park

with an ATP core, likely positive for the Philippines if its activity mix, utility costs and incentive terms hold up, and likely to be reported as a failure because the gap will be measured against 190,000 jobs and US$70bn. This is the strongest argument for the government to reset expectations now, before the numbers become the benchmark.

The outcome is most sensitive, in order, to: whether a named anchor reaches financial close with disclosed capital; whether firm power is delivered, when, and at what price; whether water storage is built and abstraction capped; whether the framework survives legal challenge; the global AI capex cycle; and US trade policy toward the Philippines. Three of the six turn on Philippine decisions by the executive, regulators and courts, and all three are currently unresolved. That is where policy effort should concentrate, because it is where effort changes outcomes.

SOURCES DRAWN ON T3-06 · T3-05 · T3-20 plus arithmetic derived in the calculation reference

22

## Risk register

Twenty-one risks, with likelihood, impact, exposed parties and early-warning indicators.

The highest-likelihood risks are that investment does not materialise at announced scale; that job numbers are over-delivered on paper and under-delivered in fact; that fossil lock-in contradicts climate commitments; that terms are fixed at a disadvantage because the Year-3 rent and term remain undetermined at signature; that value capture remains thin in an enclave outcome; and that a good outcome is read as a failure.

The highest-impact risks are that water demand is met by reducing community or irrigation supply, an outcome that remains undetermined without a basin water balance; that a constitutional challenge under Article XVIII, Section 25 succeeds; and that concentrating strategic assets near Clark creates a physical targeting exposure.

One risk has already materialised. On 24 July 2026 the USTR imposed a 12.5% forced-labour tariff on Philippine exports, a deterioration in the economic

relationship despite alignment. The Philippines was one of 60 economies investigated and has formed a response panel; its exports to the United States had grown 23.8% to US$6.68bn over January–May. The mitigation is to link framework concessions explicitly to trade-treatment commitments, and not to concede while penalties stand.

Two risks are worth naming because they are absent from official discussion. Corruption and rent-seeking in a large land-and-incentive programme is rated medium-high, against a record that includes 421 ghost projects among 8,000 inspected in flood control, and an unsolicited-proposal route already in use for the fuel pipeline. And data governance and IP leakage is rated medium-high, because no published provision addresses data localisation, lawful access, cross-border transfer, sovereign compute access or IP ownership for work done on Philippine soil. Across the register, the mitigations that recur are the same handful: milestone-based land release in tranches; performance-linked clawbacks; conditions precedent on firm power and financed water storage; published tax-expenditure estimates; NCIP engagement before signature; and a shorter initial term with performance-linked renewal rather than 99 years granted upfront.

SOURCES DRAWN ON T2-04 · T3-17 · T3-07 · T1-16 · T1-42
plus arithmetic derived in the calculation reference

23

## Overall assessment

A serious strategic opportunity attached to a badly documented transaction.

The two things are separable, and almost all of the confusion in Philippine public debate comes from treating them as one. The strategic opportunity is real: an allied-supply-chain position that is genuine and time-limited, a credible upgrade path from back-end assembly into advanced packaging, and an urgent need for a growth engine as BPO faces AI displacement.

The transaction is badly documented. The operative instrument describes a coordination office, not an industrial district. Consideration is undetermined. The term is unstated. The map is missing. The studies behind every headline figure

are unpublished. A published project-specific water balance was not located. DFC funding is for a gas feasibility study, not a committed generation plan; no final mix or off-site renewables-plus-firming design is established here. And no legal opinion has been published on whether the framework requires Senate concurrence.

In fairness, some of the opposition is overstated too: the light-pollution claim exaggerates, the rare-earth-plunder claim is substantially overstated, and the dual-use critique in its strongest form proves too much, since dual-use characteristics are inherent to essentially all modern computing hardware. None of that is an argument against the project. All of it is an argument against signing on this record. No completion-time or negligible-cost guarantee is established for the independent studies, legal opinions and NCIP process. A strictly non-binding framework remains subject to the express safeguards in the two-branch rule.

SOURCES DRAWN ON T1-05 · T1-14 · T1-35 · T1-36 · T1-42
plus arithmetic derived in the calculation reference

24

## Recommendations for the Philippine government

Thirty-nine recommendations, starting with eleven no-regret actions, most of them low-cost.

The immediate no-regret actions are largely within the executive's control and would improve the Philippines' position whether or not the project proceeds: publish Annex A; publish the draft framework with a comment period; correct the miscited charter; publish the underlying studies or withdraw the figures; impose single-source discipline on official statements; obtain and publish DFA-OLA and OSG opinions; formally engage the NCIP; commission independent water and grid studies; require NGCP to state its interconnection and reserve-margin position and the ERC to say who bears the cost of transmission reinforcement, the DOE having answered on 27 July; publish a tax-expenditure estimate; and require a written response to the Capas Local Government Code letter, publish the August consultation's records and obtain Sanggunian resolutions, including

Concepcion alongside Capas, Bamban and the province. Convening already occurred; formal follow-through remains the task.

Before any contract or construction: set the Year-3 rate and term against an independent valuation; resolve the exclusive-use clause; write an express Philippine governing-law and jurisdiction clause; make land handover conditional on financed firm generation and financed water storage, which is now the Energy Secretary's stated position and not only this report's recommendation, and record in the framework a defined on-grid ceiling consistent with the DOE's 100–200 MW figure, with any load above it contingent on commissioned dedicated generation; require a project-specific ECC with a cumulative impact assessment; release land in tranches against verified capital and employment with automatic reversion of undeveloped tranches; write hard water conditions into the instrument; and add a data governance and IP annex including an allocation of sovereign compute for Philippine public and research use.

On medium-term industrial policy: attack the electricity cost gap directly, which is the single highest-return action available and is not contingent on Pax Silica; use minerals leverage instead of land concessions; target advanced packaging rather than fabs; fund supplier development and workforce programmes against the 128,000-worker goal; guarantee competitive neutrality through the PCC; and diversify anchors deliberately, because a zone with one anchor has the Intel-in-Cavite risk profile.

And on contingency: automatic reversion and clawback if milestones are missed; break clauses on defined non-performance; a shorter initial term of 25 years with performance-linked renewal; tenure-linked incentive recapture so a departing anchor repays what it consumed; and a published fallback plan for the 1,618.74 hectares if the project does not proceed.

SOURCES DRAWN ON T1-05 · T2-05 plus arithmetic derived in the calculation reference

## Preconditions, safeguards and negotiating red lines

Seven preconditions before any rights-creating signature, eleven red lines that should not move, and a two-branch decision rule for November.

All seven preconditions must be met: the parcel legally defined and Annex A published; the draft framework published with a public comment period; independent water balance and grid adequacy studies published; the Year-3 rent and lease term determined against an independent valuation; DFA-OLA and OSG legal opinions published; the NCIP certification precondition process formally initiated; and the activity mix and all underlying economic studies published including the tax-expenditure estimate. If any is unmet, do not sign an instrument creating substantive rights. A strictly non-binding framework may be signed only with every express safeguard in the two-branch rule below; there is no established guarantee that all studies and statutory processes can finish within months.

The red lines: no application of foreign law to Philippine territory, and no immunity beyond general law; no restriction on Philippine regulatory jurisdiction inside the Zone; no stabilisation clause freezing environmental or labour standards; no exclusive-use grant to a foreign government at this scale without Senate concurrence; no lease with consideration left undetermined at signature; no 99-year term granted upfront without performance-linked staging; no commitment on mineral supply without a binding domestic processing obligation; no waiver of liability for contamination or worker injury; no classified annex withheld from the Senate; no transfer, sublease or collateralisation of the master lease without government consent on each occasion.

And one that is not a legal term at all: do not sign to meet another country’s summit calendar. If the terms are not ready in November, they are not ready in November.

These resolve into a two-branch decision rule, because the real red line is not the November ceremony but the creation of substantive rights before due diligence is complete. Branch one covers any binding instrument: do not sign anything that grants land possession or exclusive use, fixes a long lease term, leaves rent undetermined, restricts Philippine jurisdiction or regulatory authority,

grants immunity, commits public infrastructure or fiscal incentives, creates mineral-supply obligations, permits subleasing, transfer or collateralisation of a land right, or gives any investor or foreign government preferred rights, unless all seven preconditions are satisfied first and the red lines are respected in the text. Branch two covers a strictly non-binding framework, which is acceptable and may even be tactically useful for the November milestone, but only if the text itself expressly states that it creates no lease or land right, confers no investor entitlement or exclusivity, commits no public funding or incentives, leaves every project subject to ordinary Philippine law and permits, allows either government to withdraw, and subjects every subsequent binding instrument to separate approval and public disclosure. A framework silent on those points should be treated as branch one.

So the question to ask of whatever is tabled in November is not "is it binding?" as a label. Under EO 459's substance-over-nomenclature principle it is: what rights does this text create, and for whom? If the answer is "none, expressly," the signature is legally a photograph, although political lock-in may still follow. If the answer is anything else, the seven preconditions apply in full.

SOURCES DRAWN ON T1-05 · A-03 plus arithmetic derived in the calculation reference

26

## Questions that must be answered publicly

Thirty-three questions to BCDA, the executive, the regulators, the United States and the investors.

To BCDA, the questions begin with the map and end with the open-space covenant, and include reconciliation of the disclosed payroll-withholding figure with wages and jobs, and the remaining components of total revenue, the employment multiplier behind 500,000–800,000 indirect jobs, the assumed domestic value-added share of US$200bn in exports, the identity of the "US-based company serving as project proponent," and, now answered on the recording, what was meant by wanting contracts "immune from any environmental situation."

To the executive, DFA and DOF: whether the framework goes to the Senate and on what legal opinion; what governing law and dispute forum will apply; whether a national security assessment has been conducted; what trade-treatment commitments the Philippines is seeking given the 12.5% tariff; and which body of government has formally approved the Philippine position, and when.

To the regulators: whether NCIP has initiated a certification precondition process and what the status of the Aeta CADT applications is; whether any project-specific ECC exists; on what technical analysis the NWRB sufficiency statement was made; how DOE and NGCP will serve 3 GW and who bears the reserve-margin risk; and whether the PCC will review the incentive package for competitive neutrality.

To the United States: what legal arrangements it considers necessary to operationalise the Zone, the question the State Department declined to answer in May 2026; what "joint governance" means concretely; what, if any, binding financial commitment to implement the proposed zone exists beyond study-stage support; whether it will accept an express dual-use exclusion clause; and how it reconciles designating the Philippines as the site of its flagship Zone with imposing a forced-labour tariff on Philippine exports. And to Foxconn specifically: given Wisconsin, will it accept performance-linked clawbacks tied to verified investment and hiring?

SOURCES DRAWN ON A-01 · A-04 · A-05 · A-06 · A-07 · A-08 · T1-35 · T1-36

27

## Indicators to monitor

What resolves within one year, three years and five years.

Within one year, the decisive period, watch whether a framework is signed in November and whether its text is published; whether Annex A, the water balance and the grid study appear; whether the Year-3 rent and term are fixed at signature, which is the clearest available signal of whether the Philippines negotiated or capitulated; whether the framework contains clawbacks, employment covenants and local-content obligations; whether the Senate asserts a concurrence role; whether any investor is named with a binding

commitment and financial close; and whether Foxconn proceeds beyond due diligence, which is the single most informative signal available.

Within three years: actual capital deployed against the US$10bn initial target; whether site development began in Q1 2028; contracted and commissioned firm generation and water storage, ahead of load or behind it; verified employment against milestones and the foreign-worker share against the stated under-10%; realised tax revenue and published tax expenditure; and resolution or continued non-resolution of the Aeta CADT applications.

Within five years: the domestic value-added share of Zone exports, which is the single most important development metric; the number, revenue and employment of Philippine-owned supplier firms serving the Zone; whether any activity has moved beyond ATP into advanced packaging, design or materials; whether the industrial electricity price gap with Indonesia and Vietnam closed; water availability for Tarlac agriculture and drought performance; the compliance record; and whether the project's emissions are consistent with the Philippines' NDC.

SOURCES DRAWN ON T3-06 · T3-03 · T1-17 plus arithmetic derived in the calculation reference

28

## Research limitations and evidence that could change the conclusions

What would move each judgment, and in which direction.

Publication of Annex A would establish the parcel needed to investigate the affected-household, catchment and CADT-overlap questions; resolving them also requires a mapped social baseline, water balance and relevant title/application records. Appendix G ranks it first among the information gaps: everything downstream depends on it.

Publication of the underlying economic studies would either substantiate the headline figures or confirm that they are unsupported. A published activity mix would make every impact estimate falsifiable for the first time.

A named anchor with a disclosed, binding capital and employment commitment reaching financial close would materially improve the assessment; no anchor with financial close by Q2 2027 is among Scenario C's early-warning signals.

A published water balance showing a financed, permitted storage solution with a hard abstraction cap would substantially reduce the highest-impact risk in the register. A published energy plan reconciling the LNG feasibility study with the renewables framing would resolve a claim the matrix rates misleading or lacking context.

SOURCES DRAWN ON A-01 · A-04 · A-05 · A-06 · T1-42

29

## Appendices

Documents register, calculation reference, discrepancy register, verbatim provisions, sources by tier, glossary, and prioritised information gaps.

Appendix A registers the key documents, distinguishing the publicly available, the Declaration, the US media note and fact sheet, the BCDA letter and Note Verbale, from those that are referenced but absent, chiefly Annex A, the Supplemental Agreement and the framework draft.

Appendix B sets out every calculation with its inputs and assumptions, at PHP 61.85 per US$1: the catchment formula, the storage requirement, the solar land requirement at the ACWA benchmark, the lease income present value, the withholding-tax reconciliation, and the export ratios.

Appendix C is a figure discrepancy register, a single table of every materially inconsistent number encountered, for use by anyone auditing official statements. Appendix D reproduces the operative provisions of the BCDA letter verbatim, since the wording has been widely paraphrased. Appendix E lists sources by evidence tier. Appendix F is a glossary. Appendix G prioritises the open information gaps by decisiveness.

SOURCES DRAWN ON T1-05 · T1-17 · T1-19 · T1-20 · T1-42

plus arithmetic derived in the calculation reference

06

# sources register

The registered sources used by this assessment, numbered and tiered, so any finding can be traced back to what it rests on. Each report section lists the register IDs it draws on; each claim in the checker links here.

180 REGISTERED SOURCES · 12 REFERENCED BUT ABSENT

## tier 1 · primary and authoritative 74 ENTRIES

Official texts, published documents, statutes, statistical releases and FOI responses. Treated as evidence of what was said or recorded, not of whether it is true.

T1-42 25 NOV 2025; OUTCOME CUTOFF 31 DEC 2024

### WEDC, Foxconn announce additional $569 million investment in Racine County

Wisconsin Economic Development Corporation

Primary record states WEDC verified nearly US$717m invested and 1,242 jobs as of 31 December 2024, qualifying for US$62.9m credits. Separately describes 2021 targets and a prospective 2029 amendment; these are not delivered outcomes. Source link retrieved and read 12 September 2026 to repair missing provenance, without changing the comparator figures or general comparator cutoff.

wedc.org →

T1-41 31 JUL 2026

### US welcomes Italy into Pax Silica initiative

US Department of State

Previously recorded accession source for the standing count of 25; not the 26 June list of 24. Later omission in State's roster remains disclosed. No fresh retrieval claimed by this register repair.

www.state.gov →

T1-35 10 SEP 2026

### PH granted US$60-Million to reform energy sector for more affordable, reliable power

Department of Finance

Official signing release, not the agreement text. Supplies signatories, amount, TPGA description and four-year-nine-month implementation period; no identified proposed-zone financing.

www.dof.gov.ph →

T1-36 PROGRAM STATUS CHECKED 12 SEP 2026

### Philippines Energy Threshold Program

Millennium Challenge Corporation

Official program record. Signed US$60m grant; program name and projects, not proof of reviewed entry-into-force provisions or obligations. The executed agreement was not located in the repositories searched.

www.mcc.gov →

T1-37 12 MAY 2026

### Joint Statement on the Luzon Economic Corridor Steering Committee

Governments of the Philippines, Japan and United States; DOF-hosted copy

Statement heading dates the meeting to 12 May and says Today. Digital-connectivity and advanced-manufacturing initiatives complement Pax Silica; no identity of legal instruments or surveyed boundaries implied.

www.dof.gov.ph →

T1-38 12 MAY 2026 MEETING

### 4th Steering Committee of the Luzon Economic Corridor

Embassy of Japan in the Philippines

Official account identifying the fourth Steering Committee meeting in Makati on 12 May, distinct from the expansion announced 11 May.

www.ph.emb-japan.go.jp →

T1-39 12 MAY 2026 RELEASE; 11 MAY ANNOUNCEMENT

### Luzon Economic Corridor Expands Partnership to Accelerate Investment and Regional Prosperity

Embassy of Japan in the Philippines

Expressly says announced May 11. Eight additional partners; used for announcement chronology, not a surveyed corridor boundary.

www.ph.emb-japan.go.jp →

T1-40 23 JUL 2026

### BCDA says Pax Silica project could generate over 130,000 high-quality jobs

Presidential Communications Office

Used for the official programme-level description under the LEC. Its employment and membership assertions are not adopted as verified facts; the document separately adjudicates those claims.

pco.gov.ph →

T1-43 — 10 SEP 2026; RETRIEVED 13 SEP 2026

### PH aims to become a reliable location for long-term investment

Presidential Communications Office

Official PCO account of the President's forum remarks. The located page does not contain 'Pax Silica'; that is a bounded statement about this published account, not every forum session or untranscribed remark.

pco.gov.ph →

T1-44 — 10 SEP 2026; RETRIEVED 13 SEP 2026

### Lumalawak na suporta sa Luzon Economic Corridor patunay ng tiwala sa Pilipinas

Presidential Communications Office

Official PCO account naming Australia, Canada, Denmark, France, Italy, the Republic of Korea, Sweden and the UK as partner countries. It does not establish the effective date or legal form of partnership status.

pco.gov.ph →

T1-01 — DEC 2025 TO PRESENT

### Pax Silica Declaration, full text and signatory list

US Department of State

The founding instrument and its 25 signatories.

www.state.gov →

T1-02 — 16 APR 2026

### Media Note: US and Philippines launch plans for a 4,000-acre Economic Security Zone

US Department of State

Origin of the 4,000-acre figure and the "first AI-native industrial acceleration hub" designation.

www.state.gov →

T1-03 — 16 APR 2026

### Fact Sheet: Economic Security Zone

US Department of State and Embassy Manila

Contains the "joint governance" and "fuse American expertise in institutions and legal regimes" language.

ph.usembassy.gov →

T1-04 16 APR 2026

### Media Note as republished by Embassy Manila

US Embassy Manila

ph.usembassy.gov →

T1-05 9 APR 2026 LETTER, 16 APR 2026 NOTE VERBALE

### Note Verbale JMGR-NV-145-2026 with the BCDA proposal letter

PH Embassy Washington and Board of Investments

Four pages, signature redacted. Annex A is absent from the published version. The operative text behind most scope, term and rent questions.

boi.gov.ph →

T1-06 26 JUN 2026

### Outcomes of the Second Pax Silica Summit

US Department of State

Does not mention the Philippine Zone.

www.state.gov →

T1-07 20 APR 2026

### BCDA announcement: New Clark City to serve as AI hub

BCDA

www.bcda.gov.ph →

T1-08 2026

### Fact Sheet: Luzon Economic Corridor

US Embassy Manila

ph.usembassy.gov →

T1-09 — 11 MAY 2026

### Luzon Economic Corridor partnership expansion

US Embassy Manila and Embassy of Japan

ph.usembassy.gov →

T1-10 — 4 FEB 2026

### PH and US critical minerals MOU announcement

PH Embassy Washington

philippineembassy-dc.org →

T1-11 — FEB 2026

### 2026 Critical Minerals Ministerial

US Department of State

www.state.gov →

T1-12 — 1992

### RA 7227, Bases Conversion and Development Act of 1992

Congress and BCDA

The actual BCDA charter.

www.bcda.gov.ph →

T1-13 — 24 MAR 1992

### RA 7277, Magna Carta for Disabled Persons

Official Gazette

The statute miscited in the BCDA letter as the BCDA charter.

www.officialgazette.gov.ph →

T1-14 — REQUESTED 6 MAY 2026, DENIED 12 MAY 2026

### BCDA FOI denial: Pax Silica project pipeline

eFOI portal, tracking BCDA-709787348964

Source of "the project is still on the planning stage and it is premature for BCDA to release any official information".

www.foi.gov.ph →

T1-15 REQUESTED 8 JUN 2026, ANSWERED 10 JUN 2026

### BCDA FOI denial: Pax Silica hub site map

eFOI portal, tracking BCDA-462421872795

Map withheld; the 1,619-hectare site is confirmed.

www.foi.gov.ph →

T1-58 REQUESTED 31 AUG 2026, DENIED 1 SEP 2026

### BCDA FOI denial: official project site boundary map and geospatial data

eFOI portal, tracking BCDA-705314438995

Boundary, corner-point coordinates, cadastral parcels and barangay boundaries withheld under the EO 2 s. 2016 Prejudicial Premature Disclosure exception: the information is withheld temporarily until the official action is finalized or published.

www.foi.gov.ph →

T1-16 PROCLAIMED 20 FEB 2026, EXPIRED 24 JUL 2026

### Section 122 temporary import surcharge of 10%

Federal Register document 2026-03824

Predecessor 10% surcharge: the stated net change is +2.5 percentage points for goods covered by both measures and −10 points for exempt goods; these are distinct cases.

www.federalregister.gov →

T1-17 26 MAR 2026

### International Merchandise Trade Statistics 2025, final

Philippine Statistics Authority

Exports US$84.48bn, electronics US$45.89bn.

psa.gov.ph →

T1-18

### Jacob Helberg biography

US Department of State

www.state.gov →

T1-19 FEB 2026

### 2025 Philippine Trade in Goods

Congressional Policy and Budget Research Department

cpbrd.congress.gov.ph →

T1-20 2022 EDITION

### The Mineral Industry of the Philippines

USGS Minerals Yearbook

Used to test the resource-plunder critique against production data.

pubs.usgs.gov →

T1-21 20 APR 2021

### Renegotiated Foxconn contract announcement

Office of the Governor of Wisconsin

Primary record of renegotiated 2021 targets, not delivered outcomes. The delivery figures are not supported by this 2021 target announcement; the WEDC outcome record is registered separately as T1-42.

content.govdelivery.com →

T1-22 21 JUL 2026; AGREEMENT SIGNED 20 JUL 2026

### SBMA and BCDA agree to use the Port of Subic Bay as Pax Silica maritime gateway

Subic Bay Metropolitan Authority

Primary account of the preferred-gateway designation; studies and capacity development remain prospective.

www.mysubicbay.com.ph →

T1-23 4 AUG 2026

### BCDA and SBMA seal Port of Subic Bay role in Pax Silica supply chains

BCDA

Later official release describing the signed agreement and qualified gateway role.

bcda.gov.ph →

T1-24 7 AUG 2026

### Secretary Marco Rubio at the American Mining Roundtable

US Department of State

Primary transcript. The roughly US$3bn discussed is aggregate US domestic mining investment, not Pax Silica funding or a Philippine commitment.

www.state.gov →

T1-25 18 AUG 2026

### Executive Order No. 122, s. 2026 — National Policy Framework for Developing the Critical Minerals Industry

Official Gazette (certified copy)

Added v2.40. The certified text, seven pages, retrieved 28 Aug 2026 and read page by page — superseding this report's earlier record that the operative text was not located. Executed 18 August, not the 21 August widely reported; the Department of Finance's own release also gives 21 August and the discrepancy is recorded, not resolved. Image-only, so every reading rests on manual visual review. It does not name Pax Silica, the United States or New Clark City.

www.officialgazette.gov.ph →

T1-26 12 AUG 2026 (FORUM 10–11 SEP 2026)

### 2026 Luzon Economic Corridor Investment Forum — event notice and announcement of the inaugural forum

US Trade and Development Agency

Added v2.41. Establishes the dates, Manila venue, the three co-hosting governments (United States, Philippines, Japan), USTDA sponsorship, a stated 600 participants, programme themes including advanced manufacturing, the partner list, site visits at Subic Bay, Clark and Batangas, and restricted attendance. These advance notices did not name Pax Silica or the proposed hub; that historical notice-only observation is superseded for the event itself by the September forum records, including the GMA-attributed New Clark City remark.

ustda.gov →

T1-27 3 SEP 2026

### Fact Sheet — Trump Administration Launches Foundry School to Build the Workforce Behind America's Manufacturing Comeback

US Department of State, Office of the Spokesperson

Added v2.46. The launch of Foundry School, described by the Department as a flagship initiative of Pax Silica: seventeen sessions across eight US universities, seven regional sessions from September 2026 and a ten-session Stanford core programme from January 2027, each taught by founders and chief executives from advanced manufacturing enterprises. It supplies a programme structure and start months, which is why section 12.4 withdraws two words it had carried since an early version. It supplies no cost, no individual session dates and no training-place allocation. It names the Republic of Korea,

Japan, Taiwan and India among Pax Silica participants; the Philippines is not named, and the wording is illustrative rather than an eligibility list, so no inference of exclusion is drawn. Its figure of 3.8 million is a projection of United States manufacturing positions needing to be filled by 2033, not a Foundry School output target. This page superseded, at the same URL, the media advisory read on 2 September that the news-rail gate refused as prospective.

www.state.gov →

T1-28 4 SEP 2026

### BCDA, NCIP update community census in Capas, Tarlac for proposed Clark Advanced Manufacturing Park

Bases Conversion and Development Authority

Added v2.46. The proponent agency's own account of the updated community census at Sitio Sapang Kawayan, led by NCIP Secretary Nancy A. Catamco and BCDA officer-in-charge senior vice president Mark P. Torres. It is the first BCDA-owned publication located using the name Clark Advanced Manufacturing Park, and it calls the park proposed throughout. It publishes no enumeration result: BCDA told reporters the same day that the exercise is an update and validation of the existing community census rather than a new enumeration, and that final figures are still being consolidated with the NCIP. Nothing in it identifies the activity as a Section 59 field-based investigation, a Certification Precondition process or an FPIC proceeding.

bcda.gov.ph →

T1-29 8 SEP 2026

### Philippine Embassy in Washington welcomes Foundry School launch in support of economic partnerships and Pax Silica

Embassy of the Philippines, Washington, D.C.

Added v2.50. First-party account that the Embassy attended the 3 September launch and that Ambassador Romualdez welcomed Foundry School as an opportunity for collaboration and workforce preparation. It identifies no Philippine participant, reserved place, selection arrangement, funding, implementing measure, workforce-development plan or binding commitment.

philippineembassy-dc.org →

T1-31 26 JUN 2026

### Kazakhstan Joins the Pax Silica Initiative to Develop AI Infrastructure and High-Tech Manufacturing

Ministry of Artificial Intelligence and Digital Development of the Republic of Kazakhstan

Added v2.51. First-party record that Deputy Prime Minister and Minister Zhaslan Madiyev signed the Declaration of Accession of the Republic of Kazakhstan to Pax Silica in Washington on 25 June 2026, and that Kazakhstan thereby officially joined.

www.gov.kz →

T1-32 17 JUL 2026

### 29 countries sign agreement on establishing World AI Cooperation Organization

Xinhua, carried on the State Council of the People's Republic of China portal

Added v2.51. Records representatives of 29 countries, including Kazakhstan, signing the WAICO establishing agreement in Shanghai on 16 July 2026, making their countries its founding members. Used for the fact of signature only; the agreement itself, and its entry-into-force provisions, have not been seen.

english.www.gov.cn →

T1-33 16 JUL 2026

### Indonesia Resmi jadi Founding Member WAICO

Coordinating Ministry for Economic Affairs, Republic of Indonesia

Added v2.51. Publishes the list of states signing the WAICO establishing agreement, used here to compare rosters. The release prints 29 names while its prose refers to "the thirty countries", so it is treated as a published enumeration and not as proof of completeness.

ekon.go.id →

T1-34 9 SEP 2026

### MDDI's Response to PQ on Singapore's Position on the World Artificial Intelligence Cooperation Association

Ministry of Digital Development and Information, Singapore

Added v2.51. First-party record of the parliamentary reply of 9 September 2026 confirming that Singapore has received a WAICO invitation and will consider it, and that there is no ASEAN position on either WAICO or Pax Silica. Records consideration only; no decision.

www.mddi.gov.sg →

T1-45 23 JUL 2026

### Malacañang press briefing on Pax Silica

Palace Press Officer Claire Castro's channel; BCDA President Joshua M. Bingcang and DICT Usec. Leonido Pulido

Recording of the briefing, about 49 minutes in Filipino and English, reviewed in full from the recording and its auto-generated Filipino captions. Original record of what was said, including the "more than 30 countries" statement and the description of the PHP 68–75bn as tax contributed by the workers; not evidence that either statement is true.

youtu.be →

T1-46 27 JUL 2026

### Ferdinand R. Marcos Jr., fifth State of the Nation Address, July 27, 2026 (title as given in the URL)

Office of the President; Official Gazette transcript

Public transcript. Original record that the President named the “Pax Silica Industrial Hub” and called the initiative “23-member strong”; the State Department count that day was 24 (T1-06).

www.officialgazette.gov.ph →

T1-47 2 JUL 2025

### NCC ICT Passive Infrastructure Project, Bid Bulletin No. 5

Bases Conversion and Development Authority

Annex F (PDF p. 35), BCDA’s bidder-information table of New Clark City industrial locators, lists a “Hyperscale Data Center”, 47.0 hectares, “Construction to start on Q4 2025”. Background supplied to bidders; its Q4 2025 status is historical, and it does not establish whether that locator lies inside or outside the proposed Pax Silica parcel.

www.bcda.gov.ph →

T1-59 6 MAY 2024

### JVSC Resolution No. 1, NCC ICT Infrastructure Disposition

Bases Conversion and Development Authority, Joint Venture Selection Committee

Added v2.61. Original record of the first competitive selection: advertised 16 October 2023; four prospective participants purchased the eligibility documents (Infinivan, Innove Communications, PLDT and Philippine Fiber Optic Cable Network Ltd.); only PFOCN submitted; rated “Failed” on legal capacity and technical capability. The resolution RECOMMENDS declaring a failure of the competitive selection; it is not itself the final declaration, and no subsequent BCDA approval instrument was located.

www.bcda.gov.ph →

T1-60 25 OCT 2023

### Commercialization of New Clark City ICT — IPSP Volume 1

Bases Conversion and Development Authority

Added v2.61. Establishes the project scope as the disposition of BCDA’s EXISTING passive ICT infrastructure through commercialisation and, as necessary, expansion, repair and maintenance — conduits, fibre optic cables, chambers, colocation facilities. Twenty-five-year JV term; “preliminary cost estimates place the total cost of the Project over the JV term at approximately PhP 2,500,000,000”. Source for the finding that the ₱2.5 billion is a total-cost-over-term estimate, not a construction budget.

bcda.gov.ph →

T1-61 28 MAY 2025

### Instructions to Bidders, NCC Passive ICT Infrastructure

Bases Conversion and Development Authority

Added v2.61. The PPP Code re-tender. Same scope and the same ₱2.5 billion preliminary total over a 25-year term, extendable by a maximum of a further 25. Confirms the open-access model: the JV collects tariffs from data transmission providers rather than operating telecommunications services.

www.bcda.gov.ph →

T1-62 2025

### Project advisory — selection of JV partner for the New Clark City ICT Passive Infrastructure Project

Public-Private Partnership Center of the Philippines, publishing BCDA's invitation

Added v2.61. Records that the bidding "posted on February 14, 2025 and suspended on March 31, 2025 has been duly cancelled to align the Project with the process and requirements of the [PPP] Code and its IRR" — the reason for the second process ending, which is not a want of bidder interest. Carries BCDA's own description of the project as addressing "the urgent requirements of the NCC locators". Read through the browser lane after HTTP 403 on plain fetch.

ppp.gov.ph →

T1-63 27 FEB 2026

### Bid Bulletin No. 30, s. 2026, New Clark City ICT Passive Infrastructure Project

Public-Private Partnership Center of the Philippines

Added v2.61. Establishes that the re-tender's numbered bulletin series reached 30 and that the process was still running in February 2026.

ppp.gov.ph →

T1-64 READ 21 SEP 2026

### New Clark City ICT Infrastructure — investment pipeline listing

Luzon Economic Corridor investment portal; names BCDA as proponent and a BCDA official as contact

Added v2.61. States "BCDA seeks unsolicited proposals and welcomes private-sector-led initiatives to enter into a Public-Private Partnership (PPP) under the PPP Code"; gives "Opportunity Value US$ 20 Million"; describes "nearly 3,000 ha developable area" within the 9,450-hectare estate; and describes a "1,610 ha Pax Silica Economic Security Zone", the sixth circulating hectare figure and the first that is not a conventional rounding of the 4,000-acre conversion. Registered in tier 1 for what this listing itself states, not for the truth of what it asserts. Treated as a government investment-promotion listing

associated with the proponent, NOT as a BCDA-authored publication, and it is the source the 21 September reporting draws on rather than an independent confirmation of it.

lec.philippines.business →

T1-69 25 SEP 2026

### Invitation for Comparative Proposal — New Clark City Water Supply and Wastewater Infrastructure Project

Bases Conversion and Development Authority, PBAC

Tender record for the comparative (Swiss) challenge to the unsolicited Maynilad/K-water proposal, received 29 January 2026 under a PPP Code JVA scheme: twenty-five-year concession subject to extension; 90-day two-stage comparative challenge with right to match; financial proposals ranked by lowest initial 12-month tariff; ₱1 million participation fee; pre-qualification due 20 October 2026. A 9-page scan, rendered page by page and read in full 29 September 2026. Concerns the estate, not the Pax Silica parcel.

bcda.gov.ph →

T1-70 28 SEP 2026

### Instructions to Prospective Challengers — New Clark City Water Supply and Wastewater PPP Project

Bases Conversion and Development Authority, PBAC

Tender record. Indicative timetable to a 26 February 2027 Notice of Award and 12 March 2027 JVA signing, which BCDA says may change at any time; experience thresholds for challengers or their nominated entities: deep wells totalling at least 32 MLD, an underground dam of at least 50 MLD or an equivalent subsurface technology (surface dams and weirs excluded), WTP 50 MLD and STP 60 MLD. Thresholds on past projects, not a design: it states no source mix, catchment or water balance. 91 pages; scope, timetable, due-diligence, qualification, definitions and key-personnel provisions read 29 September 2026.

bcda.gov.ph →

T1-48 24 JUN 2019

### ECC-OL-R03-2019-0304, New Clark City Land Development Project

DENR-EMB Region III, as published by BCDA in its National Academy of Sports bidding documents

Environmental Compliance Certificate, read in full including Annex A. EMB classified the 9,450-hectare project under MC 2014-005 item 3.6.5 and issued the ECC after an EIS was submitted; it enumerates no manufacturing, semiconductor, data-centre or mineral-processing component. The underlying EIS and any current-validity determination were not obtained (A-12).

www.bcda.gov.ph →

T1-49 ISSUE DATE NOT RECORDED IN THIS REGISTER

### EMB Memorandum Circular 2014-005, coverage-screening and threshold guidelines

DENR Environmental Management Bureau

Page 26 defines items 3.6.5 and 3.6.6, the industrial-park thresholds relevant to the 2019 certificate (T1-48).

eia.emb.gov.ph →

T1-50 PUBLISHED 28 JUL 2026; DUTIES APPLICABLE FROM 12:01 A.M. EDT, 24 JUL 2026

### Notice of Actions in Section 301 Investigations of Acts, Policies, and Practices of Various Economies Related to the Failure of Each Economy To Impose and Effectively Enforce a Prohibition on the Importation of Goods Produced With Forced Labor

Office of the United States Trade Representative, Federal Register document 2026-15181

Operative notice, retrieved 13 Sep 2026. Imposes 12.5 percent tariffs on products of the Philippines, except as provided in Annex I and Annex II, Part A; articles subject to Section 232 tariffs are among the exemptions. The action followed the President's direction of 23 July 2026.

www.federalregister.gov →

T1-51 25 NOV 2025

### Average Monthly Wage Rate of Time-Rated Workers on Full-Time Basis in the Philippines was at PhP 21,544 in 2024

Philippine Statistics Authority, 2024 Occupational Wages Survey, Reference No. 2025-425

Official statistics release, retrieved 13 Sep 2026 through a browser session because the site sits behind an anti-bot challenge. Reports the 2024 average monthly wage rate of time-rated workers on full-time basis at PHP 21,544 (basic pay PHP 20,309 plus allowances PHP 1,235). The survey covers formal establishments employing 10 or more workers only, so it benchmarks formal-sector pay generally, not semiconductor pay; the annual PHP 258,528 is this register's ×12 arithmetic, not a PSA figure.

psa.gov.ph →

T1-52 8 NOV 2024

### Republic Act No. 12066, amending the National Internal Revenue Code of 1997 (CREATE MORE)

Congress of the Philippines; text as published by The Lawphil Project, Arellano Law Foundation

Statute text, retrieved 13 Sep 2026. Dated November 08, 2024, with the signature block "Approved: NOV 08 2024"; the popular name CREATE MORE does not appear in the retrieved title. Confirms the 5% SCIT on gross income for export enterprises, the enhanced deductions regime including a "One hundred percent (100%) additional deduction on power expense", a 20% rate for enterprises under that regime, and incentive periods of up to 14–17 or 24–27 years depending on location and industry priorities. A

legal-database copy, not the Official Gazette, which refused automated retrieval; it contains no estimate of incentive cost.

lawphil.net →

T1-53 3 SEP 2025

### Republic Act No. 12252, An Act Liberalizing the Lease of Private Lands by Foreign Investors, amending Republic Act No. 7652 (Investors' Lease Act)

Congress of the Philippines; text as published by The Lawphil Project, Arellano Law Foundation

Statute text, retrieved 13 Sep 2026; signature block "Approved: SEP 03 2025". Confirms that the aggregate period of the lease contract "shall not exceed ninety-nine (99) years", that the President may impose a shorter period on the recommendation of the FIRB or other agencies, and that the Act concerns the lease of private lands. Says nothing about this project or about land administered by BCDA. A legal-database copy, not the Official Gazette.

lawphil.net →

T1-54 29 OCT 1997

### Republic Act No. 8371, The Indigenous Peoples Rights Act of 1997

Congress of the Philippines (Tenth Congress); text as published by The Lawphil Project, Arellano Law Foundation

Statute text, retrieved 13 Sep 2026. Confirms the definitions of native title and of free and prior informed consent, the recognition of ancestral domain rights "by virtue of Native Title" with a CADT as formal recognition "when solicited" (§11), the rule that no community will be relocated without its free and prior informed consent, and the §59 certification precondition before any concession, license or lease is granted. Establishes the legal standard only, not whether any ancestral domain overlaps the parcel. A legal-database copy, not the Official Gazette.

lawphil.net →

T1-55 11 JUN 1978

### Presidential Decree No. 1586, Establishing an Environmental Impact Statement System, including other environmental management related measures

Office of the President; text as published by The Lawphil Project, Arellano Law Foundation

Decree text, retrieved 13 Sep 2026; "DONE in the City of Manila, this 11th day of June … nineteen hundred and seventy-eight." Section 4 bars undertaking or operating a declared environmentally critical project or area without first securing an Environmental Compliance Certificate. Which projects are covered is set by later issuances (T1-56, T1-49), not by the decree itself. A legal-database copy, not the Official Gazette.

lawphil.net →

T1-56 ISSUE DATE NOT SHOWN IN THE RETRIEVED COPY

### DENR Administrative Order No. 2003-30, Implementing Rules and Regulations for the Philippine Environmental Impact Statement System

Department of Environment and Natural Resources; copy hosted by Osaka University's GreenAccess repository

Full text of the order, retrieved 13 Sep 2026; EMB's own copy at eia.emb.gov.ph returned HTTP 403 and could not be read. §4.1: "only projects that pose potential significant impact to the environment shall be required to secure ECC's"; §4.3 defines Categories A–D; §4.4 requires an ECC for Category A and B projects, with programmatic or locator-specific ECCs for ecozones; §4.6 lets Category D projects secure a Certificate of Non-Coverage. A third-party scan with minor OCR errors, not a DENR-certified copy.

greenaccess.law.osaka-u.ac.jp →

T1-57 13 SEP 2026

### PBBM infrastructure push positions New Clark City for high-value industries, investments

Presidential Communications Office

Added v2.55. BCDA President Bingcang, interviewed by ANC: contract negotiations, planning and regulatory approvals still to come; construction expected in two to three years; BCDA ownership with long-term leases only.

pco.gov.ph →

T1-65 17 JUN 2026

### House Resolution 1128 — filed text and legislative record

House of Representatives

Filed text retrieved and read in full on 6 September 2026; a 4-page scan with no text layer, read as rendered pages. Date filed corrected from 19 to 17 June on the House record and the resolution's own receipt stamp. Tier 1 for the instrument's existence, authorship, operative text, referral and status — not for anything asserted in its recitals.

docs.congress.hrep.online →

T1-66 28 JUL 2026

### House Resolution 1227 — filed text (Akbayan inquiry resolution)

House of Representatives

The House's own record: title, authors, date filed, reading of 3 August, referral to Economic Affairs, pending since 11 August. Tier 1 for that record and the resolution's existence, authorship and operative text; not for its recitals. The filed text was retrieved and read in full on 6 September 2026; its recitals are carried as the resolution's own characterisations, not as established fact.

docs.congress.hrep.online →

T1-67 28 JUL 2026

### House Resolution 1231 — filed text (Pimentel, strategic-intelligence briefing)

House of Representatives

Read in full 6 September 2026. Directs the Special Committee on Strategic Intelligence to brief with the DND, NSC, DICT, DTI, BCDA, DENR and NGCP; pending with the Committee on Rules since 3 August. Its recitals restate the administration's SONA framing and projections approvingly. Tier 1 for the instrument's existence, authorship, operative text, referral and status — not for anything asserted in its recitals.

docs.congress.hrep.online →

T1-71 2018 (ELIGIBILITY TIMETABLE 16 MAY TO 25 JUNE 2018)

### Invitation to Apply for Eligibility and to Submit a Proposal: Water and Wastewater Infrastructure Project, New Clark City

Bases Conversion and Development Authority

Added v2.79. The earlier estate-wide New Clark City water and wastewater procurement: a 30-year concession at an estimated ₱10 billion, naming deep wells and surface water as sources. It predates Pax Silica and concerns the estate, not the proposed parcel.

bcda.gov.ph →

T1-72 23 MAR 2025

### BAC-I Resolution No. 2025-006: Design and Construction of the NCC Water Supply Facilities

BCDA Bids and Awards Committee for Infrastructure Projects

Added v2.79. Records that New Clark City's Phase 1 locators are supplied by two deep-well pumping stations in place since 2019, and that the water distribution operator's contract was terminated on 7 October 2024. Estate infrastructure, not the proposed parcel; it establishes no groundwater yield or capacity at the project's scale.

www.bcda.gov.ph →

T1-73 2019; RETRIEVED 18 SEP 2026

### BCDA 2019 Annual Report

Bases Conversion and Development Authority

Added v2.79. Places the Joint Venture Agreement with the PrimeWater-led consortium at 17 December 2018. The retrieved record does not establish the procedural link between the 2018 invitation and that agreement.

bcda.gov.ph →

T1-74 2019

### BCDA 2019 Accomplishments

Bases Conversion and Development Authority

Added v2.79. Records the NCC Water JV, a joint-venture development of water and wastewater infrastructure services in New Clark City.

bcda.gov.ph →

T1-75 2021

### BCDA 2021 Annual Report

Bases Conversion and Development Authority

Added v2.79. Identifies the PrimeWater Consortium as New Clark City's water service provider. The later operator's legal relationship to that consortium is not established.

bcda.gov.ph →

T1-68 29 JUL 2026

### House Resolution 1247 — filed text (Erice, Lagman, San Fernando, De Jesus, De Lima)

House of Representatives

Read in full 6 September 2026; a 5-page scan with no text layer, read as rendered pages. Directs eight named committees to inquire into the Pax Silica Agreement and all related undertakings, enumerating eleven questions. Pending with Economic Affairs since 11 August. Tier 1 for the instrument's existence, authorship, operative text, referral and status — not for anything asserted in its recitals.

docs.congress.hrep.online →

## tier 2 · high-quality analytical 6 ENTRIES

Named specialists and research institutions with disclosed method. Used for benchmarks and interpretation.

T2-01 12 JUN 2026

### The Philippines has a golden chance to get Pax Silica right

Lowy Institute, Alvin Camba

www.lowyinstitute.org →

T2-02 2026

### In this economy: risks of Pax Silica

JC Punongbayan, UP School of Economics, in Rappler

www.rappler.com →

T2-03 2025 TO 2026

### Philippine electronics export performance

SEIPI

Industry baseline for export and value-added comparisons.

seipi.org.ph →

T2-04 2026

### Philippine power supply for Q2 2026 remains sufficient but thin reserves leave the grid at risk

Institute for Climate and Sustainable Cities

Grid adequacy baseline.

icsc.ngo →

T2-05 25 JUL 2026

### Glass house: evaluating criticisms over PH participation in Pax Silica

Pierre Tito Galla, Newsbytes.ph

Source of the "human first, machine last" safeguard proposal.

newsbytes.ph →

T2-06 13 DEC 2019

### The New Clark City: a government sell-out of IP and peasant land for private interests

IBON International

Prior record of New Clark City land conflict.

iboninternational.org →

## tier 3 · credible journalism 93 ENTRIES

Established Philippine and international outlets. Used for statements attributed to officials and for dated events.

T3-35 11 SEP 2026

### 43 cops, activists hurt during rally vs Pax Silica

The Philippine Star

Body attributes 16 injured officers to SPD and 27 activists to organisers. Matching headline arithmetic does not itself establish how other outlets derived 43 officers; Manila Bulletin and SunStar (T3-44, T3-45) attribute that figure to SPD's initial report. Arrest identities differ from TV5; no roster is adopted as settled.

www.philstar.com →

T3-36 12 SEP 2026 CARRIER; REPORTS 11 SEP RESPONSE

### Teddy Casiño, 7 others face raps after BGC hotel clash

PNA copy via Republika News — one located republisher

Only a reported police intention to file cases. No primary SPD recording/transcript, independent carrier or filing record was located in the reviewed evidence. Does not establish an offence or filed case. Also carries the SPD count of 16 officers and five activists.

republikanews.org →

T3-37 11 SEP 2026

### Bishop Alminaza, nanawagan ng masusing pagsusuri at konsultasyon sa Pax Silica project sa Tarlac

Radio Veritas

Reports a message CWS sent directly to Veritas: critical and constructive engagement, no predetermined rejection or blank check. Not the full original CWS statement; distinct from Caritas and not evidence of coalition membership.

www.veritasph.net →

T3-38 11 SEP 2026

### Church group seeks national dialogue on Pax Silica project

Daily Tribune

Reports the CWS advocacy call, not creation of an official dialogue process. Read with the more precise Veritas critical/conditional formulation.

tribune.net.ph →

T3-39 11 SEP 2026

### Police defend Pax Silica protest handling

Daily Tribune

Police defence is disputed; headline retained as attributed position. The body figure of 43 injured officers and claim that the forum was disrupted are not adopted.

tribune.net.ph →

T3-40 12 SEP 2026

### PNP to activists: You are not above the law

The Philippine Star

Police statements, source-specific injuries and announced intended complaints; not independent adjudication of conduct or guilt.

www.philstar.com →

T3-41 10 SEP 2026

### Protestors, cops clash over Pax Silica outside Marcos event

GMA News

Carrier of Ambassador Lipton's New Clark City quotation. Does not make the LEC forum or every agreement a Pax Silica instrument.

www.gmanetwork.com →

T3-42 10 SEP 2026

### 5 paralegals arrested after anti-Pax Silica protest in BGC

TV5 News

TV5/Karapatan roster differs from Philstar. Article was available to the historical gate through indexed retrieval; direct access was challenged. Neither roster independently authenticated.

news.tv5.com.ph →

T3-43 10 SEP 2026

### Five paralegals arrested, 23 activists injured during anti-Pax Silica protest

NewsWatch Plus

Reports BAYAN's 23 injured-protester count and contested police conduct; source-specific and not reconciled to SPD's five-activist count.

www.newswatchplus.ph →

T3-44 11 SEP 2026

### PNP underscores restraint in Pax Silica protest; prepares for Sept. 21 rallies

Manila Bulletin

Reports SPD's initial 43 officers and five activists and NCRPO's later "latest validation" of 16 PNP personnel. No underlying SPD or NCRPO record located; 16 is not an independently verified medical total.

mb.com.ph →

T3-45 10 SEP 2026

### Anti-Pax Silica protest held amid economic corridor forum

SunStar

Attributes 43 police officers and five activists to SPD deputy director Col. Robert Baesa. Philstar attributes 16 officers to the same official; the difference is unresolved. Neither figure adopted as a verified total.

www.sunstar.com.ph →

T3-46 12 SEP 2026

### P300,000 bail recommended for 5 BGC protesters

Manila Bulletin

Single-source report of a prosecutor's-office bail certification after inquest. Certification, complaints, inquest resolution and court information not located; not evidence of an offence, a court filing, bail posted or release.

mb.com.ph →

T3-47 11 SEP 2026

### 5 indibidwal, arestado matapos ang girian sa isinagawang lightning rally sa tapat ng isang hotel sa BGC

RMN

Citing the PNP public information office, reports inquest proceedings under way. Does not carry the certification or amounts.

rmn.ph →

T3-48 11 SEP 2026

### Palace tells Pax Silica critics: Use proper channels, shun aggression

INQUIRER.net

Carrier of Castro's quoted words at the New Delhi briefing. Headline's "critics" and "shun aggression" are the outlet's paraphrase and are not adopted.

newsinfo.inquirer.net →

T3-49 11 SEP 2026

### Palace calls for peaceful dialogue over Pax Silica concerns

Philippine News Agency

Government wire account of the same briefing. Body returned HTTP 403 to this monitor and was read by the adversarial gate; the title was read through the browser lane.

www.pna.gov.ph →

T3-50 11 SEP 2026

### Groups hold anti-Pax Silica protest in Angeles City

INQUIRER.net

March toward Clark's main gate and later vehicle travel to Capas. Mabalacat dateline does not relocate the event; "several hundred" is an estimate.

newsinfo.inquirer.net →

T3-51 11 SEP 2026

### Militant groups hold caravan protest against Luzon Economic Corridor, Pax Silica

Punto Central Luzon

Independently reports assembly at Salakot Bayanihan Park, the march to Clark's main gate, a program there and onward travel to Capas. No attendance count.

punto.com.ph →

T3-52 11 SEP 2026 PER THE GATE

### Groups stage protest against Pax Silica (title as given in the URL)

Trends and Spots

Photo report carrying a several-hundred estimate. Read by the adversarial gate; not in this monitor's fetch store, and its title and date were not read first-party.

www.trendsandspots.com →

T3-53 11 SEP 2026

### US expects Luzon corridor projects to outlast Marcos

Context.ph

Places Variava's LEC-distinctness quotation at a press conference on Thursday. No recording or transcript located. Which sense of "Pax Silica" she meant is not established; the remark is not a legal classification of the proposed hub.

context.ph →

T3-54 12 SEP 2026

### Pax Silica operated 'within legal measures'—US State Department

The Manila Times

Places the legal-requirements quotation at a virtual briefing on Friday. Headline refuted by gate and not adopted; a prospective assurance about agreements, not evidence of present compliance or instrument form. Its 13 Sep rendering overlaps Context.ph's account.

www.manilatimes.net →

T3-55 10 SEP 2026; RETRIEVED 13 SEP 2026 VIA A PRESERVED READABILITY CAPTURE

### Marcos urges action, results on Luzon Economic Corridor projects

INQUIRER.net

Quotes the President on moving further into semiconductor design, research and engineering and developing the critical-minerals sector responsibly and strategically. It does not mention Pax Silica in the forum account.

newsinfo.inquirer.net →

T3-56 10 SEP 2026; RETRIEVED 13 SEP 2026

### United States, Philippines, Japan host inaugural Luzon Economic Corridor Investment Forum in Manila

SunStar

Reproduces the host governments' release saying the LEC partnership expanded at the forum to include the European Union and Spain. Used as the host governments' terminology, not proof of effective date or legal form.

www.sunstar.com.ph →

T3-01 26 MAY 2026

### US official says immunity for the Clark hub was taken out of context

Philstar

www.philstar.com →

T3-02 19 MAY 2026

### Philippines rejects US request for diplomatic immunity at the planned AI hub

Philstar

www.philstar.com →

T3-03 24 JUL 2026

### Pax Silica investors may lease New Clark land for 99 years

Philstar

Primary reporting on lease term, rent and the PHP 60bn projection.

www.philstar.com →

T3-04 24 JUL 2026

### BCDA: over 30 firms interested in Pax Silica

Philstar

www.philstar.com →

T3-05 11 JUL 2026

### Pax Silica gains pace as the US and Philippines push the AI hub

Philstar

Foxconn and Ambassador Lipton statements.

www.philstar.com →

T3-06 16 JUL 2026

### PHL and US finalise draft framework for the Pax Silica AI hub

BusinessWorld

Draft framework, DFC LNG feasibility study and Stanford MOU.

bworldonline.com →

T3-07 24 JUL 2026

### Trump imposes 12.5% forced-labour tariff on Philippine exports

BusinessWorld

bworldonline.com →

T3-08 JUL 2026

### Myths vs facts: BCDA allays fears on the Pax Silica project

Inquirer

newsinfo.inquirer.net →

T3-09 JUL 2026

### Pax Silica hub to bring PHP 180 billion in government income and 190,000 jobs, BCDA

Inquirer

Source of the headline revenue and employment figures.

newsinfo.inquirer.net →

T3-10 JUL 2026

### SBMA sees revenue and jobs boost with Pax Silica

Inquirer

newsinfo.inquirer.net →

T3-11 JUL 2026

### Pangasinan environmental groups join opposition to Pax Silica

Inquirer

newsinfo.inquirer.net →

T3-12 JUL 2026

### Pax Silica AI hub to consume 3 gigawatts at full development, BCDA

GMA

Source of the 3,000 MW load figure.

www.gmanetwork.com →

T3-13 JUL 2026

### Explainer: Pax Silica, why are people worried

GMA

www.gmanetwork.com →

T3-14 JUL 2026

### Things to know about Pax Silica: Philippine goals and concerns

Rappler

www.rappler.com →

T3-15 JUL 2026

### STOP US War coalition on resource plunder criticism

Rappler

www.rappler.com →

T3-16 20 JUL 2026

### DENR assesses Pax Silica environmental impact

BusinessMirror

businessmirror.com.ph →

T3-17 22 JUL 2026

### Local water source enough to supply Pax Silica operation, water board

BusinessMirror

The NWRB position tested in the water section.

businessmirror.com.ph →

T3-18 19 JUL 2026

### Scientists, environmentalists and farmers hit the Pax Silica AI hub

Manila Times

Record of the 13 July protest at the US Embassy.

www.manilatimes.net →

T3-19 — 22 JUL 2026

**Labour chief backs Pax Silica, eyes nearly one million jobs**

Manila Times

www.manilatimes.net →

T3-20 — 7 JUL 2026

**Foxconn to anchor the first US-led Pax Silica tech hub in Clark**

Manila Bulletin

mb.com.ph →

T3-21 — 24 JUL 2026

**Peso hits an all-time low of 61.84 per US dollar**

Manila Bulletin

The exchange rate used throughout this report.

mb.com.ph →

T3-22 — 25 JUL 2026

**Inside Pax Silica: the project that could reshape the Philippines**

Daily Tribune

tribune.net.ph →

T3-23 — 26 JUL 2026

**Pax Silica could generate up to 300,000 jobs, PH envoy to the US**

Daily Tribune

tribune.net.ph →

T3-24 — JUL 2026

**iPhone maker Foxconn to anchor tech city in the Philippines**

Gulf News

gulfnews.com →

T3-25 — 8 AUG 2026

### NCIP holds dialogue with Aeta community in Tarlac over Pax Silica

GMA News

Reports an NCIP statement and community dialogue; does not evidence initiation of a Section 59 certification or FPIC proceeding.

www.gmanetwork.com →

T3-26 9 AUG 2026

### Pax Silica eyes dedicated power plant to meet energy needs

GMA News

Reports BCDA planning concepts; no approval, financing or construction commitment is established.

www.gmanetwork.com →

T3-27 8 AUG 2026

### Subic port tapped as preferred gateway for Pax Silica

Bilyonaryo News Channel

Reporting on the BCDA-SBMA agreement, checked against the two official accounts.

bnc.bilyonaryo.com →

T3-28 7 AUG 2026

### Pax Silica AI hub expected to yield US$200bn in exports in 30 years

BusinessWorld

Newer reporting links the projection to full development on an approximately 30-year horizon; the underlying study and the projection's precise periodicity remain unpublished.

bworldonline.com →

T3-29 9 AUG 2026

### BCDA sets 30-year development plan for Pax Silica AI hub

Philstar

Corroborates the long-horizon full-development framing, not that US$200bn is an annual flow.

www.philstar.com →

T3-31 21 AUG 2026

### NCIP counts Aeta households amid Pax Silica concerns

Daily Tribune

Reports an NCIP announcement of a census and validation at Sitio Sapang Kawayan. Carried also by Rappler, Brigada Balita, NET25 and News5, several expressly crediting an NCIP social-media post of 20 Aug 2026; the accounts appear substantially derivative of that one announcement. No result published.

tribune.net.ph →

T3-32 23 AUG 2026

### Marcos EO puts focus on PH critical minerals

Philippine Daily Inquirer

Reports Executive Order No. 122, s. 2026 on the critical minerals industry, with reaction from Kalikasan, AGHAM and the Chamber of Mines. The order's certified text was retrieved from the Official Gazette on 28 Aug 2026 (see T1-25), superseding this note's earlier record that it was not located; the government broadcaster PTV carries a corroborating summary. No source reviewed reports that the order mentions Pax Silica.

newsinfo.inquirer.net →

T3-33 23 AUG 2026

### Marcos' EO 122 a 'wholesale surrender' of PH mineral wealth to foreign, big mining firms - Tinio

Politiko

Carries Rep. Antonio Tinio's statement on EO 122 with quotations the Inquirer account does not contain, including the Pax Silica linkage. Used only as attributed reaction; no primary statement from Tinio, ACT Teachers or the House was located, and the two accounts most likely derive from one release.

politiko.com.ph →

T3-34 15 AUG 2026

### Itatayong Pax Silica Project, isang manufacturing hub at hindi AI hub

Radio Mindanao Network

Same-hearing report of the Senate environment committee of 14 Aug 2026, carrying the name "Clark Advanced Manufacturing Park". The sentence carrying it is the reporter's narrative voice, not a quotation of Undersecretary Rodolfo, and the article's own headline calls the project Pax Silica.

rmn.ph →

T3-30 11 AUG 2026

### Seipi: Pax Silica could turn PH into manufacturing hub

Manila Times

Reports a SEIPI position paper and is used only for the association's attributed position; the underlying paper was not independently retrieved.

www.manilatimes.net →

T3-57 8 SEP 2026

### Senate Committee of the Whole to tackle Pax Silica issue

GMA News Online

Added v2.50. Reports plenary approval without objection of the motion to constitute the Committee of the Whole and its chair and vice-chair structure. Institutional procedural action and active scrutiny, not a merits disposition. Filed under Tier 3 as the linked carrier: the Senate's official account is reported to corroborate it but is not itself linked in this register. Previously listed as T1-30.

www.gmanetwork.com →

T3-58 24 AUG 2026

### DTI: Pax Silica tech hub won't just be in New Clark City (title as given in the URL)

Manila Bulletin

Account of the House appropriations hearing on the DTI's 2027 budget: Usec. Ceferino S. Rodolfo reported as saying New Clark City "is just one of the projects" and "will be focused on advanced manufacturing". Second-hand; no official transcript or recording was retrieved.

mb.com.ph →

T3-59 24 AUG 2026

### Govt eyes IC design hub in Metro Manila under Pax Silica (title as given in the URL)

INQUIRER.net

Account of the same 24 August hearing: reports Rodolfo's answer to Rep. Antonio Tinio, "What's clear is, in Clark, there is no data center", and the IC-design-hub talks. Second-hand; not authenticated verbatim testimony.

newsinfo.inquirer.net →

T3-60 24 AUG 2026

### Pax Silica to focus on advanced manufacturing, not AI data centers: DTI (title as given in the URL)

ABS-CBN News

Separate rendering from the same 24 August hearing: "The AI data centers themselves will not be in New Clark City." Second-hand; not authenticated verbatim testimony.

www.abs-cbn.com →

T3-61 7 AUG 2026

### PNA report of the New Clark City briefing of 7 August 2026 (headline not recorded in this register)

Philippine News Agency

Carries BCDA President Bingcang's statement that any data centres established "if ever" would serve the semiconductor firms locating on the site, not hyperscalers, and PNA's own-voice line that major data centres would be outside the site. PNA prints "4-acre site", apparently an error for the 4,000-acre parcel. Government wire account of what was published, not authentication of the propositions.

www.pna.gov.ph →

T3-62 11 AUG 2026

### PNA report on Converge ICT's chief executive (headline not recorded in this register)

Philippine News Agency

Carries PNA's own summary attributed to unnamed "trade officials": no major data centres in the hub, "but small ones that will be operated by the locators or the manufacturers for their own use". A reporter summary, not a named official's statement; prints "four-acre site".

www.pna.gov.ph →

T3-63 1 SEP 2026

### PNA report of the Malacañang briefing of 1 September 2026 (headline not recorded in this register)

Philippine News Agency

Palace Press Officer Claire Castro, attributing the position to the DTI: "On the Clark Advanced Manufacturing Park, there will be no data centers", and no proposal yet for another location outside New Clark City. The exchange was in Filipino; the English follows PNA's rendering. A statement, not an instrument setting permitted uses.

www.pna.gov.ph →

T3-64 26 AUG 2026

### No clear project description, eco assessment yet for Pax Silica: DENR (title as given in the URL)

INQUIRER.net

Independent account of the House appropriations briefing on the DENR's FY2027 budget, including Rep. Jose "Pepito" Alvarez's defence of the 60 MLD water requirement and the absence of a Pax Silica EIA application. Second-hand; no transcript retrieved.

newsinfo.inquirer.net →

T3-65 26 AUG 2026

### Naka-jackpot ang Pinas: Alvarez says Pax Silica presents a once-in-a-lifetime opportunity (title as given in the URL)

Manila Bulletin

Account of Rep. Alvarez's remarks on the water requirement at the 26 August DENR budget briefing. Attributed legislator position; no hydrological data.

mb.com.ph →

T3-66 26 AUG 2026

### 1 second discharge lang ng Zambales rivers: Pax Silica's 60M-liter water requirement not a concern, Pepito Alvarez (title as given in the URL)

Politiko

Account of the 60 MLD exchange between Rep. Alvarez and Rep. Renee Louise Co at the 26 August DENR budget briefing. Attributed positions only.

politiko.com.ph →

T3-67 26 AUG 2026

### Publiko, hindi dapat ikatakot ang Pax Silica project (title as given in the URL)

Radyo Pilipinas

Independent account of the 26 August DENR budget briefing, including Alvarez's water remarks. Attributes the no-application statement to EMB Region 3 Regional Director Martin Jose Despi rather than to EMB Director Matias; the discrepancy is recorded, not resolved.

radyopilipinas.ph →

T3-68 26 AUG 2026

### DENR: No environmental impact assessment yet for Pax Silica hub in Tarlac (title as given in the URL)

GMA News

Account of DENR Secretary Juan Miguel T. Cuna telling the 26 August budget briefing that no Pax Silica EIA had been applied for or processed and no clear project description had reached the EMB, and of an EMB official saying an ECC had been issued for BCDA's development plan. The House's own account of the hearing does not mention the exchange.

www.gmanetwork.com →

T3-69 17 AUG 2026

### DBM, DOF chiefs confirm no allocation for Pax Silica in 2027 budget (title as given in the URL)

ABS-CBN News

Account of the House appropriations hearing on the 2027 NEP, including DOF Secretary Frederick Go's "no budget requirement from us" and "they will pay us rent". Testimony as reported, not a line-by-line reading of the NEP schedules.

www.abs-cbn.com →

T3-70 19 AUG 2026

### BCDA promises to obtain favorable Pax Silica terms (title as given in the URL)

BusinessWorld

Reports BCDA President Bingcang as still aiming for a November signing while negotiations could take longer, the target "not set in stone", and as saying the hub is "purely commercial" with no defence-related activities. Same remarks as T3-71; not independent corroboration.

bworldonline.com →

T3-71 19 AUG 2026

### BCDA to ensure Pax Silica deal to be most beneficial for PH (title as given in the URL)

GMA News

The same 19 August remarks as T3-70, rendered as "not cast in stone". Not independent corroboration; no transcript or recording was located.

www.gmanetwork.com →

T3-72 PUBLICATION DATE NOT RECORDED IN THIS REGISTER; CITED FOR BCDA STATEMENTS OF 22–24 JUL 2026

### Pax Silica project will use rainwater harvesting, not community water supply: BCDA (title as given in the URL)

DZRH

Carries BCDA's position that the project's water will come from rainwater and surface-water harvesting rather than community supply. Attributed proponent position, not a water balance.

www.dzrh.com.ph →

T3-73 18 AUG 2026

### Aetas fear ancestral graves could be destroyed by Pax Silica (title as given in the URL)

ABS-CBN News

On-site reporting from Sitio Sapang Kawayan: attributes the approximately 1,000-person community census figure to chieftain Petronila Capiz-Munoz, reports NCIP Chairperson Nancy Catamco saying the chieftain initially reported 75 households or families, and carries residents' accounts of being told they might have to leave by December. Reported testimony, not an agency record or enumeration.

www.abs-cbn.com →

T3-74 22 JUN 2026

### Expected peak power demand not hit

BusinessMirror (Lenie Lectura)

Reports Energy Undersecretary Mario Marasigan saying the Luzon grid's peak demand "was projected to hit 15,600 megawatts (MW) this year but only 14,534MW was recorded". Carrier of a DOE statement, retrieved 13 Sep 2026 through a browser session; the DOE projection document itself was not obtained, and 14,534 MW is the maximum recorded to the date of the statement, not a full-year peak.

businessmirror.com.ph →

T3-75 15 MAY 2026

### NGCP issues red, yellow alerts for Luzon, Visayas grids for Friday, May 15, 2026

GMA News Online (Ted Cordero)

Reports the NGCP bulletin: Luzon available capacity 13,508 MW against peak demand 13,881 MW, "a deficiency of 373 MW", and "a total of 4,106 MW capacity were unavailable to the grid" with 30 plants on forced outage (the oldest out since 2019) and 14 more running derated; a later same-day update gave 12,075 MW against 12,927 MW. A carrier, not the NGCP record itself, retrieved 13 Sep 2026. The wording does not separate forced-outage from derated capacity, and Philstar's same-day report gives 4,160 MW, so the 4,106 MW is best read as total unavailable capacity as reported.

www.gmanetwork.com →

T3-76 14 SEP 2026

### 5 paralegals held in Taguig rally freed on bail

The Philippine Star (Mark Ernest Villeza)

Added v2.54. Reports, attributing the account to Karapatan, that the five posted ₱60,000 bail on 12 September and were released, and gives a roster matching TV5's Karapatan-attributed list except Castor/Castro. No court, judicial approval, bail receipt, release order or official confirmation located.

www.philstar.com →

T3-77 10 SEP 2026

### Marcos woos investors, draws protests at LEC forum

Daily Tribune

Added v2.54. Carries Finance Undersecretary Angela Ignacio's "work in progress" remark at an afternoon press conference. Same publisher as T3-78; not a second carrier.

tribune.net.ph →

T3-78 13 SEP 2026

### Pax Silica details remain 'work in progress'

Daily Tribune (Toby Magsaysay)

Added v2.54. Carries Ignacio's remark and Ambassador Variava's "under deliberation" remark; neither located in a second carrier or transcript. Body background on April membership and a November signing is the publisher's, not adopted.

tribune.net.ph →

T3-79 14 SEP 2026

### Iloilo youth groups reject Pax Silica, foreign-led initiatives

Daily Guardian

Added v2.54. LFS Panay-led picket outside UP Visayas Iloilo City campus on 11 September, opposing Pax Silica and EO 122. No attendance count.

www.dailyguardian.com.ph →

T3-80 13 SEP 2026

### RESOURCE BACKLASH: Iloilo protesters warn 'Pax Silica' could strain power, water, farms

Panay News (Neljoy N. Galigao)

Added v2.54. Likely the same 11 September mobilisation, at the adjacent Infante flyover. Ties the withdrawn, private Oton data-centre proposal to Pax Silica, which no official document located does; its headline was refused for the news rail.

www.panaynews.net →

T3-81 13 AUG 2026

### Guv eyes Iloilo version of Pax Silica tech hub

Daily Guardian

Added v2.54. Iloilo Governor Arthur Defensor Jr. floated a smaller "Iloilo version" on 12 August. Not a government decision, project instrument or site designation.

old.dailyguardian.com.ph →

T3-82 14 SEP 2026

### Sinag to govt: Make sure Pax Silica doesn't hurt agri

BusinessMirror (Ada Pelonia)

Added v2.54. Carries SINAG executive director Jayson Cainglet's conditional safeguards. No SINAG original or second carrier located; 14 September is the publication date.

businessmirror.com.ph →

T3-83 14 SEP 2026

### BCDA, U.S. counterpart craft master deal on Pax Silica developments

BusinessMirror (Ada Pelonia)

Added v2.55. Rodolfo's remarks after the LEC forum: a master agreement between BCDA and an unnamed US counterpart, not signed directly by the two governments. One of six same-encounter carriers; no transcript located.

businessmirror.com.ph →

T3-84 14 SEP 2026

### Philippines, US to sign master deal for New Clark City Pax Silica industrial hub

Manila Bulletin (Dexter Barro II)

Added v2.55. Alone reports that the agreement covers BCDA leasing the property to a US agency; not corroborated. Its headline was refused for the news rail as too categorical.

mb.com.ph →

T3-85 14 SEP 2026

### BCDA assures Pax Silica framework will comply with Philippine law

BusinessWorld (Beatriz Marie D. Cruz)

Added v2.55. Reports that the DTI had yet to confirm the US agency. Same press encounter as T3-83.

bworldonline.com →

T3-86 14 SEP 2026

### BCDA, US agencies near deals to boost Pax Silica hub in New Clark City

Manila Standard

Added v2.55. Alone reports three agreements with US government agencies, citing possible USTDA and DFC roles.

manilastandard.net →

T3-87 15 SEP 2026

### BCDA to ink Pax Silica AI framework with US

The Philippine Star

Added v2.55. Reports optimism about a November signing. Same press encounter as T3-83.

www.philstar.com →

T3-88 15 SEP 2026

### BCDA, US to sign Pax Silica master agreement

The Manila Times (Giselle P. Jordan)

Added v2.55. Reports anchoring on RA 7844 and RA 7227 and the US counterpart as co-developer and partner; its government-to-government characterisation is the outlet's own and is not adopted.

www.manilatimes.net →

T3-89 14 SEP 2026

### Pax Silica backers urged to tap alternative energy, water sources

BusinessWorld

Added v2.55. Former Agriculture Secretary Dar's conditions (single carrier) and a Cainglet statement overlapping BusinessMirror's (T3-82).

bworldonline.com →

T3-90 27 JUL 2026

### Pampanga school questions Pax Silica project

Philippine Daily Inquirer (Jun A. Malig)

Added v2.56, seven weeks after publication, as a correction of a coverage omission rather than as a new development. The only located account of St Scholastica's Academy Pampanga's 25 July 2026 statement seeking transparency and a conditional moratorium. No primary copy of the statement and no independent carrier was found, so its date, contents and quotations rest on this one report; 25 July is the article's "On Saturday" read against a Monday publication.

newsinfo.inquirer.net →

T3-91 30 SEP 2026

### DA: Pax Silica will affect 266 farmers in Tarlac

BusinessMirror (Ada Pelonia)

Added v2.70. Single carrier: the Agriculture Secretary's reported confirmation of some 266 farmers tilling 410 hectares, attributed by the newspaper to the DA's "official assessment". Retrieved 1 Oct 2026 through the browser lane; no copy of the assessment, DA release or second carrier located.

businessmirror.com.ph →

T3-92 31 AUG 2026

### Maynilad, K-water advance in ₱14.8-B New Clark project

BusinessMirror

Added v2.79. Reports the BCDA Board's grant of original proponent status, on 28 August 2026, to the Maynilad and K-water consortium for long-term water supply and wastewater management at New Clark City, at ₱14.8 billion; the proposal still faces PPP approval and a Swiss challenge.

businessmirror.com.ph →

T3-93 31 AUG 2026

### BCDA grants original proponent status for New Clark City water system

Manila Bulletin

Added v2.79. A second report of the 28 August 2026 original-proponent-status grant.

mb.com.ph →

## tier 4 · stakeholder claims 7 ENTRIES

Government, embassy, corporate and advocacy positions. Used only as evidence of position. Filed House resolutions are registered in tier 1 for each instrument's existence, authorship, operative text, referral and status; their recitals are not evidence of the facts asserted in them.

T4-01 APR TO JUL 2026

### BCDA, DOF, DOLE, Malacanang and embassy statements

Philippine government and US Embassy

Used only as evidence of position, never as evidence of fact.

T4-02 2026

### Under Secretary Jacob Helberg posts on X

US Department of State official, personal account

Used only as evidence of the US framing.

T4-03 2026

### Akbayan to Congress: probe Pax Silica, protect national interest

Akbayan Party

www.akbayan.org.ph →

T4-05 JUL 2026

### KMP, Kalikasan PNE, AGHAM and Computer Professionals Union statements

STOP US War coalition members

Source of the resource-plunder and watershed critiques.

T4-06 JUL 2026

### Propel and International League of Peoples Struggles statements

Advocacy organisations

T4-07 JUL 2026

### Philippine Chamber of Commerce and Industry statements

PCCI

T4-08 2026

### paxsilicaph.org

Wolf Equity, a private publisher

Expressly disclaims official status. Cited as an illustration of an information vacuum being filled by unofficial actors, not as a source of fact.

paxsilicaph.org →

## referenced but not obtained by this assessment

12 DOCUMENTS REFERENCED BUT NOT OBTAINED BY THIS ASSESSMENT

These are cited by the parties or required by the analysis but were not obtained in the documented searches; absence here does not prove non-publication or nonexistence. They are listed so a reader can see exactly where the evidence stops.

A-01 BCDA, DFA, US STATE DEPT

**Annex A, maps of the proposed 4,000-acre site**

Defines the parcel. Every environmental, social, valuation and displacement question depends on it.

A-02 BCDA

**Supplemental Agreement on boundaries, legal description and operating terms**

Would fix location, term and rent; no executed version located in the reviewed public record.

A-03 BCDA, DTI, US STATE DEPT

**Framework agreement, the draft arrangement in exchange since 16 Jul 2026 or earlier**

The operative instrument; previously reported target signature November 2026. BCDA's 13 October 2026 reply expects signing before the end of 2026 without reaffirming November, while neither expressly withdrawing that target nor announcing a postponement.

A-04 BCDA

**The scientific studies behind the US$40 to 70bn, jobs, tax and export figures**

The entire economic case rests on these.

A-05 BCDA

**Water balance and impounding dam design**

The binding physical constraint.

A-06 BCDA, DOE, NGCP

**Grid interconnection and adequacy study**

The second binding constraint.

A-07 DOF, BOI, PEZA

**Tax-expenditure estimate for the incentive package**

The missing half of the fiscal ledger.

A-08 US DFC

**DFC feasibility study, LNG terminal and at least 1,200 MW plant**

Feasibility-study record, not a committed generation plan.

A-10 DOW JONES

**Wall Street Journal report on US jurisdiction**

The origin of the immunity dispute.

A-11 NCIP

**NCIP records on Aeta CADT applications over Capas, 1999, 2014 and May 2019**

Determines FPIC obligations.

A-12 DENR-EMB REGION III

**Underlying EIS and current-validity determination for the obtained 2019 New Clark City land-development ECC**

The certificate, not the missing underlying EIS or current-validity determination named above, was obtained from BCDA's published bidding documents and corrected two things. Correction (v2.38): this entry previously dated the certificate to 2017 and called it a master-plan ECC; it is dated 24 June 2019 and is issued for the "proposed New Clark City Land Development Project", 9,450.00 hectares under four TCTs. Correction (v2.38): EMB classified it under MC 2014-005 item 3.6.5, "Industrial Parks (horizontal development) with critical slopes", and issued it after an EIS was submitted — so the earlier statement that no EIS-backed zone-level ECC existed is withdrawn. What survives on its face: no manufacturing, semiconductor, data-centre or mineral-processing component is enumerated; Restriction 25 subjects any expansion or modification of approved components to new EIA requirements and requires individual locator ECCs; and it states that it does not create any right nor be used as an authorization to implement the project. It predates Pax Silica and so could not have assessed it as the project now announced. Whether the Pax Silica parcel lies within its boundary is not established, in either direction; its current validity was not determined. Still not obtained: the underlying EIS. BCDA said on 23 July 2026 that the DENR assessment need not conclude before the November signing.

A-13 OFFICE OF THE PRESIDENT, NEDA

**Cabinet and NEDA Board records on the Philippine position**

Whether the Republic formally deliberated.

---

What we deliberately did not count as evidence: search-result pages, AI-written summaries, sites that republish without naming a source, and press releases reprinted elsewhere and then counted as independent confirmation. Wikipedia was used only to cross-check dates, and several of its details conflicted with State Department originals.

07

## appendices

Every calculation, every inconsistent figure, and the operative wording of the BCDA letter, so a reader can check the arithmetic rather than take it on trust. Appendices A and E, the documents register and sources by tier, are in the sources register.

All calculations use published figures; assumptions are stated. Exchange rate throughout: PHP 61.85 = US$1, 24 July 2026.

## B.1 AREA

| QUANTITY | FORMULA | RESULT |
|---|---|---|
| Site area | 4,000 ac × 0.404686 ha/ac | 1,618.74 ha |
| Site as share of New Clark City | 1,618.74 ÷ 9,450 | 17.1% |
| Developable area (net of 40% open space) | 1,618.74 × 0.60 | 971.24 ha |
| Site in square metres | 1,618.74 × 10,000 | 16,187,400 m² |

## B.2 INVESTMENT AND EMPLOYMENT

| QUANTITY | FORMULA | RESULT |
|---|---|---|
| Investment per ha | US$40–70bn ÷ 1,618.74 | US$24.7m – US$43.2m/ha |
| Investment per ha (PHP) | × 61.85 | PHP 1.53bn – 2.67bn/ha |
| Capital per direct job (low) | US$40bn ÷ 190,000 | US$210,526 |
| Capital per direct job (high) | US$70bn ÷ 130,000 | US$538,462 |
| Direct jobs per ha | 130,000–190,000 ÷ 1,618.74 | 80.3 – 117.4 |
| Direct jobs per developable ha | ÷ 971.24 | 133.9 – 195.6 |
| Indirect-to-direct ratio; paired endpoints, not total-employment multiplier | 500,000 ÷ 130,000 and 800,000 ÷ 190,000 | 3.8× – 4.2×; low/low and high/high pairing only |
| Foxconn-scale locators needed for 160,000 jobs (at 3,000–5,000 jobs each) | 160,000 ÷ 3,000–5,000 | 32 – 53 anchor-scale locators |

### B.3 WATER

| QUANTITY | FORMULA | RESULT |
|---|---|---|
| Annual volume at 90 MLD | 90,000 $m^3$/d × 365 | 32.85 million $m^3$/yr |
| Annual volume at 65 MLD | 65,000 $m^3$/d × 365 | 23.73 million $m^3$/yr |
| Population-equivalent (domestic use) | 90,000 $m^3$/d ÷ (100–150 L/cap/d) | 600,000 – 900,000 people |
| Catchment required | A = V ÷ (R × C) | 1,460 – 3,129 ha (see §12.1.3) |
| Catchment as % of site | ÷ 1,618.74 | 90% – 193% |
| Dry-season storage (180 days) | 65–90 MLD × 180 | 11.7 – 16.2 million $m^3$ |
| Indirect + direct water at 1.2 gal/kWh for 3 GW continuous | 26.28bn kWh × 1.2 gal ÷ 264.17 gal/$m^3$ ÷ 365 | ≈327 MLD (illustrative; ≈3.6× the disclosed figure) |
| Single advanced fab raw-water demand | 2–10m gal/d UPW × ~1.5 raw:UPW ÷ 264.17 | ≈11 – 57 MLD |

## B.4 ENERGY

| QUANTITY | FORMULA | RESULT |
|---|---|---|
| Project demand as % of Luzon peak | 3,000 ÷ 15,600 (DOE 2026 projection) · 3,000 ÷ 14,534 (actual max by mid-2026) | 19.2% / 20.6% |
| Annual energy at 100% load factor | 3,000 MW × 8,760 h | 26,280 GWh (26.28 TWh) |
| Solar nameplate needed for that energy at 20% CF | 26,280,000 MWh ÷ 1,752 MWh/MW | ≈15,000 MW |
| Land required at ACWA benchmark (500 ha per 500 MW = 1 ha/MW) | 15,000 MW × 1 ha/MW | ≈15,000 ha |
| As multiple of the Pax Silica site | 15,000 ÷ 1,618.74 | 9.3× |
| As multiple of all New Clark City | 15,000 ÷ 9,450 | 1.59× |
| Existing ACWA solar as share of demand (energy basis) | 500 MW × 0.19 CF ÷ 3,000 MW | ≈3.2% |
| DFC LNG plant as share of demand | 1,200 ÷ 3,000 | 40% |
| Indicative generation capex for 3,000 MW firm | 3,000 MW × US$1.0–1.5m/MW | US$3.0 – 4.5bn |
| Indicative annual power bill at 15 US¢/kWh, 100% LF | 26.28bn kWh × US$0.15 | ≈US$3.9bn/yr |

## B.5 FISCAL

| QUANTITY | FORMULA | RESULT |
|---|---|---|
| Annual lease income | PHP 60bn ÷ 25 | PHP 2.4bn/yr = US$38.8m/yr |
| Lease per ha per year | PHP 2.4bn ÷ 1,618.74 | PHP 1,482,635 |
| Lease per m² per year | ÷ 10,000 | PHP 148.26 |
| Lease per m² per month | ÷ 12 | PHP 12.36 |
| NPV of lease, 8% real, 25 yr (annuity factor 10.675) | PHP 2.4bn × 10.675 | PHP 25.62bn ≈ US$414m |
| NPV as share of investment | US$414m ÷ US$40–70bn | 0.59% – 1.03% |
| Value of 2-year rent grace at implied rate | PHP 2.4bn × 2 | ≈PHP 4.8bn (US$77.6m) |
| Implied aggregate payroll from PHP 68bn tax at 20% effective rate | PHP 68bn ÷ 0.20 | PHP 340bn |
| Implied average annual compensation (160,000 jobs) | PHP 340bn ÷ 160,000 | PHP 2,125,000 (US$34,357) |
| Same at 10% effective rate | PHP 68bn ÷ 0.10 ÷ 160,000 | PHP 4,250,000 |
| Ratio to PH semiconductor engineer average (PHP 870,938) | 2,125,000 ÷ 870,938 | 2.44× |
| Ratio to PH semiconductor operator average (PHP 263,118) | 2,125,000 ÷ 263,118 | 8.08× |
| Ratio to PSA average wage (PHP 21,544/mo = PHP 258,528/yr) | 2,125,000 ÷ 258,528 | 8.22× |

## B.6 EXPORTS — PROJECTION PERIOD UNSPECIFIED; NOMINAL MAGNITUDES ONLY, NOT

### EQUIVALENT ANNUAL FLOWS

| QUANTITY | FORMULA | RESULT |
|---|---|---|
| Claim vs total 2025 PH merchandise exports | US$200bn ÷ US$84.48bn (PSA final) | 2.37× |
| Claim vs 2025 electronics exports | US$200bn ÷ US$45.89bn (PSA final) | 4.36× |
| Claim vs 2025 semiconductor exports | US$200bn ÷ US$34.62bn | 5.78× |

### B.7 COMPARATOR: FOXCONN WISCONSIN - ANNOUNCED, RENEGOTIATED, VERIFIED

| METRIC | ANNOUNCED (2017) | RENEGOTIATED TARGET (2021, BY END-2025) | WEDC-VER |
|---|---|---|---|
| Investment | US$10.0bn | US$672m | ~US$717 |
| Jobs | 13,000 | 1,454 | 1,242 |
| State incentives | up to US$2.85bn | up to US$80m | US$62.9 |
| Taxpayer saving from renegotiation | - | US$2.77bn | - |

08

## questions that must be answered

Thirty-three questions, addressed to the parties who hold the answers. Most ask only for disclosure of work officials say they already hold; where that work does not exist, the answer is to say so and withdraw the figures it supported.

### TO BCDA

1. Where exactly is the parcel? Publish Annex A.

### TO THE EXECUTIVE, DFA AND DOF

1. Will the framework be submitted to the Senate? If not, on the basis of what legal opinion?

2. Does the exclusive-use clause at §II.3 permit private industrial locators such as Foxconn? If not, what instrument changes it, and under what authority?
3. Why does §III cite Republic Act No. 7277, the Magna Carta for Disabled Persons, as the Bases Conversion and Development Act, and why has it not been corrected?
4. What is the intended activity mix, in hectares and in capital?
5. Publish the studies behind every headline figure. Who conducted them, when, and on what assumptions?
6. How does the disclosed workers' payroll-withholding projection reconcile with the employment and wage assumptions, and what comprises the rest of the PHP 180bn total?
7. What employment multiplier produces 500,000–800,000 indirect jobs, and from what source?
8. What is the assumed domestic value-added share of the US$200bn in exports?
9. What is the proposed lease term and Year-3 rate, and on what independent valuation?
10. Is the United States the master lessee? May it sublease, transfer or collateralise, and to whom?
11. Who is the "US-based company serving as project proponent," and how was it selected?

2. What governing law and dispute forum will apply?
3. Has a national security assessment of concentrating strategic assets at this site been conducted, and will it be published?
4. Given the USTR's 12.5% tariff, what trade-treatment commitments is the Philippines seeking in return for the Zone?
5. Which body, Cabinet, NEDA Board, or otherwise, has formally approved the Philippine position, and when?

12. Publish the water balance, the impounding dam design and footprint, and the abstraction volumes sought.
13. Publish the energy plan, including the DFC-scoped 1,200 MW LNG plant, and reconcile it with the statement that the project aims to avoid fossil fuels.
14. Resolved (§14.5): what was meant by wanting contracts "immune from any environmental situation", answered by the full briefing recording.
15. What is the estimated cost of fiscal incentives and of public enabling infrastructure?
16. Is the 40% open-space commitment binding on this parcel, and how is it reconciled with maximal rainwater capture?

### TO NCIP, DENR, NWRB, DOE, NGCP AND PCC

1. NCIP: has a certification precondition process been initiated? What is the status of the Aeta CADT applications over Capas filed in 1999, 2014 and 2019?
2. DENR: does any project-specific ECC exist for this parcel? Will a cumulative impact assessment be required?
3. NWRB: on what technical analysis was the sufficiency statement of 22 July 2026 made? Publish it.

### TO THE UNITED STATES

1. What legal arrangements does the United States consider necessary to operationalise the Zone, the question the State Department declined to answer in May 2026?
2. What does "joint governance" mean concretely, and what does "fuse American expertise in institutions and legal regimes" require of Philippine law?
3. What, if any, binding US financial commitment to implement the proposed zone exists beyond study-stage support? The separate signed

4. DOE and NGCP: how will up to 3 GW be served, by when, at what cost, and who bears the reserve-margin and price risk?
5. PCC: will the incentive package be reviewed for competitive neutrality against existing PEZA locators?

MCC energy threshold grant is not identified as zone financing, and its terms remain unreviewed.

4. Will the Zone have any defence, dual-use or export-control function, and will the United States accept an express exclusion clause?
5. How does the United States reconcile designating the Philippines as the site of its flagship Economic Security Zone with imposing a 12.5% forced-labour tariff on Philippine exports?

TO PROSPECTIVE INVESTORS, INCLUDING FOXCONN

1. Will you disclose your identity, capital commitment, employment commitment with a wage floor, technology-transfer commitment and local-content commitment as a condition of entry?
2. Foxconn specifically: given the Wisconsin experience, will you accept performance-linked clawbacks tied to verified investment and hiring?

09

## what to watch, and when

signing readiness — a dated report (10 september 2026) · the countdown to BCDA's expected signing window, before the end of 2026, the verified status of the seven preconditions and sixteen gates, and the comparison with the §23.3 decision rule

Exhibit 14. Indicators that distinguish the scenarios from one another, grouped by the horizon on which they resolve.

TO JULY 2027

## the decisive period

- Monthly net sentiment on a constant method, an early but weak indicator, on sampled machine-labelled mentions, of whether disclosure, if it comes, changes anything
- The #NoToPaxSilica-to-#PaxSilica ratio, currently 50 against 105
- The channel mix, and whether official communication reaches Facebook, Reddit and X rather than the news wire
- The water and land topic share, strongly negative and rising in the sampled July data
- Whether a framework is signed in November 2026, and whether its text is published
- Whether Annex A, the water balance and the grid study are published
- Whether the Year-3 rent and lease term are fixed at signature, which is the clearest available signal of whether the Philippines negotiated or capitulated
- Whether the framework contains clawbacks, employment covenants and local-content obligations
- Whether the Senate asserts a concurrence role; whether a Supreme Court petition is filed
- Whether any investor is named with a binding commitment and financial close

TO 2029

## delivery against milestones

- Actual capital deployed versus the US$10bn initial target
- Whether site development began in Q1 2028 as targeted
- Firm generation and water storage commissioned, ahead of load, or behind it
- Verified employment against milestones; the foreign-worker share against the stated under-10%
- Realised tax revenue and published tax expenditure
- Resolution or continued non-resolution of the Aeta CADT applications
- Whether local suppliers have entered the value chain, and how many
- Luzon reserve margin and the frequency of yellow and red alerts

- Whether Foxconn proceeds beyond due diligence, the single most informative signal available
- Whether the DFC LNG project reaches a final investment decision
- Whether the DOE approves grid connection, and at what tranche size, measured against the 100–200 MW ceiling the Energy Secretary stated on 27 July 2026
- Whether dedicated generation, the LNG import terminal and a route for delivering gas to the plant advance beyond feasibility studies
- Whether officials stop issuing new job figures

TO 2031

## whether it changed anything

- Domestic value-added share of Zone exports, the single most important development metric
- Number, revenue and employment of Philippine-owned supplier firms serving the Zone
- Whether any activity moved beyond ATP into advanced packaging, design or materials
- Industrial electricity price versus Indonesia and Vietnam, and whether the gap closed
- Water availability for Tarlac agriculture; groundwater levels; drought performance

Compliance record: ECC violations, hazardous waste incidents, labour disputes

Whether the Zone remained multilateral or became bilateral in substance

Whether emissions are consistent with the Philippines' NDC

10

## what has changed

Substantive changes to this site and the assessment, newest first. A correction or a removal quotes the text it replaces, verbatim — so "nothing is silently revised" can be checked here rather than taken on trust. Changes before 7 August 2026 are recorded in Appendix H of the full report.

CORRECTION

### The rest of the 18 October consistency check: fourteen site passages brought back to the assessment, three master corrections, and seven sources registered

18 October 2026 · v1.39 · assessment v2.79

This completes the weekly consistency check of 18 October 2026. On the site: the legal summary no longer calls publishing the DFA and Solicitor General opinions cheap; the power summary describes the LNG study as the only firm-generation option with reported feasibility funding, beside a dedicated plant of unspecified fuel, rather than the only near-term option; the claim checker no longer calls the Annex A vacuum deliberate; the lease summary states sublease and collateral rights as possibilities that would depend on the terms, the law and approvals, not as features; the stakeholder summary no longer calls the unanswered Local Government Code letter the governance failure; the land summary says the affected households cannot be determined from the published record, not that it is impossible; Scenario B says no published model shows its economics, not that none exists; the research-limitations summary drops three superlatives and a scenario mapping the report does not make; the geopolitical and stakeholder summaries regain the report's balancing sentences; the questions to the United States ask what, if any, binding financial commitment exists; the jobs summary

attributes “thousands” to the Finance Secretary; the social summary gains BCDA’s 4 September census statement, the reported July letter and relocation distance, and the 21 September estimate, each with its limits; two stakeholder rows gain the budget-floor exchange and the 4 September census update; the farmer-assistance rate is attributed to earlier BCDA and news records rather than the hearing; a sentence repeated in the overall assessment is removed; and seven water-procurement sources the report already cites are added to the sources register. In the report: the Akbayan stakeholder row no longer asserts that the resolution has never been calendared, heard or reported out, only that no committee disposition was located; a duplicated sentence is removed from the framework-signature row of Appendix C; and the question on contracts “immune from any environmental situation” is marked resolved, as §14.5 has recorded since early August. No finding, confidence level, scenario weight, precondition or red line changes.

> SUPERSEDED TEXT · VERBATIM
>
> ““Publishing them is cheap and entirely within the executive”; “the only near-term firm-generation option on the record”; “the Annex A vacuum is deliberate”; “is the governance failure now”; “it is impossible to determine which households”; “none has been modelled”; “the single highest-value disclosure available”; “would move the assessment materially toward Scenario A or B”; “the most clearly misleading item in the claim matrix”; “what financial commitment exists beyond feasibility studies”; “with financial assistance offered at ₱30 per square metre”; “none has been calendared, heard or reported out””

CORRECTION

## Scenario E loses two triggers the assessment never had, and two stale sentences in the social-listening summary are corrected

18 October 2026 · v1.38 · assessment v2.78

The weekly consistency check of 18 October 2026 found three passages where the site said more than the assessment. Scenario E, the no-project counterfactual, listed three triggers on the site; the assessment has only one, that either government formally states negotiations have ended or names another country as the first Zone host. The other two, “preconditions unmet and the executive declining to sign” and “a successful constitutional challenge”, had been on the site since publication and appear nowhere in the report. The first also misstated the report’s logic: an unmet precondition means not signing an instrument that creates substantive rights, not abandoning the project. Both are removed, and the scenario’s “some reputational cost with Washington” becomes the report’s “possible”. In the social-listening summary, a sentence calling the repost basis of the historical export unresolved is replaced by the report’s resolved finding: the export is consistent with the provider’s description that reposts were excluded. A clause

saying the local labels “do not reproduce the May recovery” used a reading the report withdrew on 5 October; it now states that withdrawal. Scenario weights are unchanged at A 10, B 35, C 30, D 15 and E 10, and no finding, confidence level, precondition or red line changes.

> SUPERSEDED TEXT · VERBATIM
> ““Preconditions unmet and the executive declining to sign”; “A successful constitutional challenge”; “some reputational cost with Washington”; “Whether the export excluded reposts is itself unresolved”; “and the local labels do not reproduce the May recovery””

CORRECTION

### Four site passages no longer treat November as the decision point, and “state land offered” becomes “BCDA-owned land offered”

18 October 2026 · v1.37 · assessment v2.78

The weekly consistency check of 18 October 2026 found site wording that the assessment does not carry. Since BCDA’s reply of 13 October, which expects signing before the end of 2026, the report treats November only as the previously reported target, but four site passages still made it the moment of decision. The frequently asked question on the preconditions now says “if any one is unmet at signature”; the homepage’s comparison of the two paths now asks whether the terms on the table at signature beat the alternative; Finding 04’s key figure and its copy text no longer count four months to a signature; and the legal summary refers to the contemplated instrument without calling it November’s. The link to the signing-readiness report now describes its countdown to the end-of-2026 window. Separately, the at-a-glance figure, the share card and its description called the 1,618.74 hectares “state land”; the assessment describes the parcel as BCDA-owned land, and all three now say so. No finding, confidence level, scenario weight, precondition or red line changes.

> SUPERSEDED TEXT · VERBATIM
> ““If any one is unmet in November,”; “whether the terms on the table in November beat the alternative”; “net tariff increment, four months before the philippines is asked to sign”; “four months before the Philippines is expected to sign a framework with the same government.”; “the contemplated November instrument”; “qualified November target”; “state land offered””

CORRECTION

### Automated remediation corrects 1 recorded finding

18 October 2026 · v1.36 · assessment v2.78

The remediation lane corrected 1 recorded finding; each correction was agreed by an independent OpenAI review. Findings corrected: An unknown dispatch status becomes

a finding that the exclusivity letter was unsent.

> SUPERSEDED TEXT · VERBATIM
> “undated and unsent, Reuters”

CORRECTION

### Automated remediation corrects 3 recorded findings

17 October 2026 · v1.35 · assessment v2.77

The remediation lane corrected 3 recorded findings; each correction was agreed by an independent OpenAI review. Findings corrected: A data-centre benchmark becomes an established project water footprint; SEIPI's growth rate is attached to the narrower PSA export series; The current water-procurement findings lack their primary public source routes.

> SUPERSEDED TEXT · VERBATIM
> ““Both are real; only one is being disclosed.”; “benchmark rates including indirect use, a 3 GW load implies a total water footprint of the order of 327 MLD — roughly 3.6× the disclosed figure.”; “Benchmark ~1.2 gal/kWh incl. indirect implies ~327 MLD for a”; “at a benchmark of about 1.2 gallons per kWh including indirect use, a 3 GW load implies roughly 327 MLD, some 3.6 times the disclosed figure.”; billion of a US$84.48 billion export book in 2025 (PSA final figures; SEIPI's broader electronics measure grew 16.11%).”

EARLIER ENTRIES · 30 · BACK TO 13 SEPTEMBER 2026

machine-readable copy · /changelog.json · automated daily data refreshes are recorded in the repository history, not here, unless they move a finding

#### about this assessment

Independent and Philippines-centred. Decision-grade means it supports one decision: whether to sign in November. It is not engineering-grade or transaction due-diligence grade. Site v1.39, reflecting assessment v2.79. Maintained as a living document: project facts verified to 14 October 2026, last updated 18 October 2026, reviewed daily, with immediate review on trigger events. Comparator, legal and technical sources verified through 27 July 2026; these move only when re-verified. The fifth State of the Nation

#### evidence tiers

Tier 1: US State Department media notes and fact sheets; the BCDA proposal letter and Note Verbale JMGR-NV-145-2026; PSA and CPBRD statistical series. Tier 2: high-quality specialist analysis with disclosed method. Tier 3: credible journalism, including Philippine national media. Tier 4: stakeholder statements. Primary text beats characterisation throughout.

Address of 27 July is incorporated from the Official Gazette transcript. Nothing is silently revised: every substantive change is versioned, logged and, where it corrects something previously published, stated as a correction rather than edited away. The version current when the framework is signed will be frozen as the permanent pre-signature record. Structured scoping review, not PRISMA-compliant and not described as such. A single integrated research synthesis. No human expert peer review has been obtained. No fieldwork. Maintenance disclosure: this site is operated by AI systems under human editorial direction. Institutional sources and Philippine media are swept every morning; social-media data is collected and classified daily. New news and finding claims must pass a second independent AI model attempting to refute them; data classifications and mechanical updates instead pass deterministic validation gates. No Key Judgment moves on a single source. Every change is versioned and logged; corrections are stated as corrections. Final editorial authority, and the decision to publish, rest with the human publisher.

### known limitations

The public contractual record includes the Declaration, BCDA offer and BOI-published US reply; House instruments, EO 122 and other official records are also available. Annex A and an executed zone framework were not located. Site rainfall, catchment, aquifer and seismic data are unpublished, so the water and power models use parametric ranges that must be re-run against site data when it exists.

### currency

PHP 61.85 = US$1 throughout, the peso's record-low close of 24 July 2026. Where a source gives pesos, the figure is reported as given and converted.

DOWNLOAD FULL REPORT · PDF ↓

Usage analytics: Google Analytics measures aggregate site use—including page views, report downloads, outbound links and explainer playback. Advertising signals and ad personalization are disabled; no form content is sent.